NEPAL DOORSANCHAR COMPANY LIMITED (Nepal Telecom)

Single Stage Two Envelope BIDDING DOCUMENT

Supply, Delivery, Installation, Testing and Commissioning of

FTTH OLT, EMS and its Accessories

International Competitive Bidding (ICB)

IFB No. NDCL/CTO/ICB/04/080-81

Issued on: September 01, 2023

Invitation for Bids No.: NDCL/CTO/ICB/04/080-81
ICB No.: NDCL/CTO/ICB/04/080-81

Purchaser:
Nepal Doorsanchar Company Limited (Nepal Telecom)
Office of Chief Technical Officer, Central Procurement Department, Central Office, Bhadrakali, Kathmandu, Nepal
Tel No.: 977-1- 4210310
Email: procurement@ntc.net.np

Abbreviations

BDS..... Bid Data Sheet

BD ..... Bidding Document

DCS..... Delivery and Completion Schedule

DP ……. Development Partner

EQC ..... Evaluation and Qualification Criteria

GCC ..... General Conditions of Contract

GoN..... Government of Nepal

ICC..... International Chamber of Commerce

IFB ..... Invitation for Bids

ITB ..... Instructions to Bidders

LGRS ..... List of Goods and Related Services

NCB ……. National Competitive Bidding

PAN ……..Permanent Account Number

PPMO ……Public Procurement Monitoring Office

SBD..... Standard Bidding Document

SBQ..... Schedule of Bidder Qualifications

SCC……. Special Conditions of Contract

SR ..... Schedule of Requirements

TS..... Technical Specifications

VAT …… Value Added Tax

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Invitation for Bids

Nepal Doorsanchar Company Limited (Nepal Telecom)
Office of Chief Technical Officer
Central Office, Bhadrakali, Kathmandu, Nepal
Invitation for Bids No: NDCL/CTO/ICB/04/080-81
Date of publication: 01 September, 2023

1. **Office of Chief Technical Officer, Central Procurement Department, Central Office, Bhadrakali, Kathmandu, Nepal** invites ***electronic*** bids from eligible bidders for the procurement of Supply, Delivery, Installation and Commissioning of Point of Interconnection and Accessories under **International Competitive Bidding – Single Stage Two Envelope.**

2. Under the Single Stage, Two Envelope Procedure, Bidders are required to submit simultaneously two separate sealed envelopes, one containing (i) the Technical Bid and the other (ii) the Price Bid, both in turn enclosed in one sealed envelope as per the provision of ITB 23 of the Bidding Document. The Eligible Bidders may obtain further information and inspect the bidding documents at the office of **Nepal Doorsanchar Company Limited, Office of Chief Technical Officer, Central Procurement Department, Central Office, Bhadrakali, Kathmandu, Nepal, *Tel No.* +977 1 4210310, Electronic Mailing Address:** procurement@ntc.net.np or may visit PPMO egp system at www.bolpatra.gov.np/egp

3. Bidder who chooses to submit their bid electronically may purchase the hard copy of the bidding documents as mentioned above or may download the bidding documents for e-submission from PPMO's e-GP system www.bolpatra.gov.np/egp. Bidders, submitting their bid electronically, shall deposit the cost of a non-refundable fee of **NPR 40,000.00** (**In Words**: Nepalese Rupees **Forty Thousand** only) or **USD 310.00** (**In Words**: United States Dollar **Three Hundred Ten** only) for bidding document in the following account as specified below.

Information to deposit the cost of bidding document in Bank:

Currency	**For NPR**	**For USD**
Account Name	Nepal Doorsanchar Company Limited	Nepal Doorsanchar Company Limited
Name of Bank:	NMB Bank Ltd. Head Office Babarmahal, Kathmandu, Nepal	Standard Chartered Bank Nepal Limited, New Baneshwor, Kathmandu, Nepal
A/C No.:	0010001373900349	01041562652
Swift Code	NMBBNPKA	SCBLNPKA

4. Sealed or Electronic bids must be submitted to **Nepal Doorsanchar Company Limited, Office of Chief Technical Officer, Central Procurement Department, Central Office, Bhadrakali, Kathmandu** through PPMO's e-GP system www.bolpatra.gov.np/egp on or before 12:00 Noon on **17 October, 2023.** Bids received after this deadline will be rejected.

5. The bids will be opened in the presence of Bidders' representatives who choose to attend at **17 October 2023 at 1:00 PM** at the office of Nepal Doorsanchar Company Limited, Office of Chief Technical Officer, Central Procurement Department, Central Office, Bhadrakali, Kathmandu . Bids must be valid for a period of 120 days from the date of bid opening and must be accompanied by a bid security or scanned copy of the bid security in pdf format in case of e-bid, amounting to a minimum of **NPR 11,852,000.00** (In Words: NPR Eleven Million Eight Hundred Fifty Two Thousand only) or **USD 90,130.00** (In Words: US Dollars Ninety Thousand One Hundred Thirty only) which shall be valid for minimum 30 days beyond the bid validity period (i.e. valid at least up to 15 March 2024).
6. If the last date of purchasing and /or submission falls on a government holiday, then the next working day shall be considered as the last date. In such case the validity period of the bid and bid security shall remain the same as specified for the original last date of bid submission.

Section I. Instructions to Bidders

A. General

1. Scope of Bid	1.1 In connection with the Invitation for Bids ***indicated in the Bid Data Sheet (BDS)***, the Purchaser as ***indicated in the BDS*** issues this Bidding Document for the supply of Goods and Related Services incidental thereto as specified in Section V, Schedule of Requirements. The name, identification, and number of contracts (packages/lots) are ***indicated in BDS***. 1.2 Throughout this Bidding Document : (a) the term "in writing" means communicated in written form with proof of receipt; (b) if the context so requires, singular means plural and vice versa; and (c) "day" means calendar day.
2. Source of Funds	2.1 GoN Funded: In accordance with its annual program and budget, approved by the GoN, the Purchaser intends to apply a portion of the allocated budget to eligible payments under the contract(s) ***indicated in the BDS*** for which this Bidding Document is issued. Or DP Funded: The GoN has applied for or received financing (hereinafter called "funds") from the Development Partner (hereinafter called "the DP") ***indicated in the BDS*** toward the cost of the project ***named in the BDS***. The GoN intends to apply a portion of the funds to eligible payments under the contract(s) for which this Bidding Document is issued. 2.2 DP Funded: Payment by the DP will be made only at the request of the GoN and upon approval by the DP in accordance with the terms and conditions of the financing agreement between the GoN and the DP (hereinafter called the "Loan Agreement"), and will be subject in all respects to the terms and conditions of that Loan Agreement. No party other than the GoN shall derive any rights from the Loan Agreement or have any claim to the funds.
3. Fraud and Corruption	3.1 Procuring Entities as well as Bidders, suppliers and contractors and their sub-contractors shall adhere to the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this:; (a) the Purchaser adopts, for the purposes of this provision, the terms as defined below:

	(i) "corrupt practice" means the offering, giving, receiving, or soliciting, directly or indirectly, anything of value to influence improperly the actions of another party; (ii) "fraudulent practice" means any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation; (iii) "coercive practice" means impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party; (iv) "collusive practice" means an arrangement between two or more parties designed to achieve an improper purpose, including influencing improperly the actions of another party. (v) "obstructive practice" means (a) deliberately destroying, falsifying, altering, or concealing of evidence material to an investigation; (b) making false statements to investigators in order to materially impede an investigation; (c) failing to comply with requests to provide information, documents, or records in connection with an investigation; (d) threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or (e) materially impeding GoN/DP's contractual rights of audit or access to information; and (vi) "integrity violation" is any act which violates Anticorruption Policy, including (i) to (v) above and the following: abuse, conflict of interest, violations of GoN/DP sanctions, retaliation against whistleblowers or witnesses, and other violations of Anticorruption Policy, including failure to adhere to the highest ethical standard. (b) the Purchaser will reject a proposal for award if it determines that the Bidder recommended for award has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations in competing for the contract;
	(c) DP will cancel the portion of the financing allocated to a contract if it determines at any time that representative(s) of the GoN or of a beneficiary of DP-financing engaged in corrupt, fraudulent, collusive, or coercive practices or other integrity violations during the procurement or the execution of that contract, without the GoN having taken timely and appropriate action satisfactory to DP to remedy the situation. (d) DP will impose remedial actions on a firm or an individual, at any time, in accordance with DP's Anticorruption Policy and related Guidelines (as amended from time to time), including declaring ineligible, either indefinitely or for a stated period of time, to participate in DP-financed, -administered, or -supported activities or to benefit from an DP-financed, -administered, or -supported contract, financially or otherwise, if it at any time determines that the firm or individual has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations; and

	(e) The Supplier shall permit the GoN/DP to inspect the Supplier's accounts and recordsrelating to the performance of the Supplier and to have them audited by auditors appointed by the GoN/DP, if so required by the GoN/DP.
	3.2 The Bidder shall not carry out or cause to carry out the following acts with an intention to influence the implementation of the procurement process or the procurement agreement : (a) give or propose improper inducement directly or indirectly, (b) distortion or misrepresentation of facts, (c) engaging in corrupt or fraudulent practice or involving in such act, (d) interference in participation of other competing bidders, (e) coercion or threatening directly or indirectly to cause harm to the person or the property of any person to be involved in the procurement proceedings, (f) collusive practice among bidders before or after submission of bids for distribution of works among bidders or fixing artificial/uncompetitive bid price with an intention to deprive the Purchaser the benefit of open competitive bid price, (g) Contacting the Purchaser with an intention to influence the Purchaser with regards to the bids or interference of any kind in examination and evaluation of the bids during the period from the time of opening of the bids until the notification of award of contract.
	3.3 PPMO, on the recommendation of the Procuring Entity may blacklist a Bidder for a period of one (1) to three (3) years for its conduct including on the following grounds and seriousness of the act committed by the bidder: (a) if convicted by a court of law in a criminal offence which disqualifies the Bidder from participating in the contract, (b) if it is established that the contract agreement signed by the Bidder was based on false or misrepresentation of Bidder's qualification information, (c)if it at any time determines that the firm has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for, or in executing, a GoN/DP-financed contract. (d) if the Successful Bidder fails to sign the Contract.
	3.4 A bidder declared blacklisted and ineligible by the GoN, Public Procurement Monitoring Office (PPMO) and/or the DP in case of DP funded project, may be ineligible to bid for a contract during the period of time determined by the GoN, PPMO and/or the DP including credit information bureau of Nepal. 3.5 In case of a natural person or firm/institution/company which is already declared blacklisted and ineligible by the GoN, any other new or existing firm/institution/company owned partially or fully by such Natural person or Owner or Board of director of blacklisted firm/institution/company; shall not be eligible bidder.

	3.1 Furthermore, Bidders shall be aware of the provisions of GCC 34.1(c).
4. Eligible Bidders	4.1 This Invitation for Bids is open to eligible Bidders from all countries, except for any ***specified in the BDS***. 4.2 A Bidder may be a natural person, private entity, government-owned entity (subject to ITB 4.5) or any combination of them with a formal intent to enter into an agreement or under an existing agreement in the form of a Joint Venture (JV). Maximum number of partners in JV shall be as **specified in BDS**. In the case of a JV: (a) all parties to the JV shall be jointly and severally liable; and (b) a JV shall nominate a representative who shall have the authority to conduct all businesses for and on behalf of any and all the parties of the JV during the bidding process and, in the event the JV is awarded the Contract, during contract execution. 4.3 A Bidder shall not have a conflict of interest. Any Bidders found to have a conflict of interest shall be disqualified. A Bidder may be considered to be in a conflict of interest with one or more parties in this bidding process if, including but not limited to: (a) have controlling shareholders in common; (b) receive or have received any direct or indirect subsidy from any of them; (c) have the same legal representative for purposes of this Bid; (d) have a relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the Bid of another Bidder, or influence the decisions of the Purchaser regarding this bidding process; (e) a Bidder participates in more than one bid in this bidding process. Participation by a Bidder in more than one Bid will result in the disqualification of all Bids in which it is involved. However, this does not limit the inclusion of the same subcontractor, not otherwise participating as a Bidder, in more than one bid; or (f) a Bidder or any of its affiliates participated as a consultant in the preparation of the design or technical specifications of the goods and services that are the subject of the bid. (g) a Bidder that has a close business or family relationship with a professional staff of the Procuring Entity. 4.4 A Bidder that is under a declaration of ineligibility by the GoN/DP in accordance with ITB 3.4, at the date of the deadline for bid submission or thereafter, shall be disqualified. The list of debarred firms is available at the electronic address **specified in the BDS**.

	4.5 A GoN-owned enterprise may also participate in the bid if it is legally and financially autonomous, it operates under commercial law, and it is not dependent agency of the Purchaser. 4.6 Bidders shall provide such evidence of their continued eligibility satisfactory to the Purchaser, as the Purchaser shall reasonably request. 4.7 Firms shall be excluded in any of the cases, if (a) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations prohibits any import of goods or Contracting of works or services from that country or any payments to persons or entities in that country. (b) DP Funded: as a matter of law or official regulation, GoN prohibits commercial relations with that country, provided that the DP is satisfied that such exclusion does not preclude effective competition for the supply of goods or related services required; (c) DP Funded: a firm has been determined to be ineligible by the DP in relation to their guidelines or appropriate provisions on preventing and combating fraud and corruption in projects financed by them.
	4.8 A bidder and all parties constituting the Bidder shall have the nationality of an eligible country as defined by the concerned DP for DP funded projects. 4.9 The domestic Bidder who has obtained Permanent Account Number (PAN) and Value Added Tax (VAT) registration certificate(s) and Tax clearance certificate or proof of submission of tax return from the Inland Revenue Office shall only be eligible. The foreign bidder submitting the documents ***indicated in the BDS*** at the time of bid submission and a declaration to submit the document(s) ***indicated in the BDS*** at the time of contract agreement shall only be eligible. 4.10 In case a prequalification process has been conducted prior to the bidding process, this bidding is open only to prequalified Bidders.
5. Eligible Goods and Related Services	5.1 All goods and related services to be supplied under the contract are eligible, unless their origin is from a country ***specified in the BDS***. 5.2 For purposes of this clause, "origin" means the place where the goods are mined, grown, or produced, or the place from which the related services are supplied 5.3 The nationality of the firm/Bidder that produces, assembles, distributes, or sells the goods shall not determine their origin.
6. Site Visit	6.1 For goods contracts requiring installation/ commissioning/ networking or similar services at site, the Bidder, at the Bidder's own responsibility and risk, is encouraged to visit and examine the Site and obtain all information that may be necessary for preparing the Bid and entering into a contract for the supply of goods and related services.

	6.2 The Bidder should ensure that the Purchaser is informed of the visit in adequate time to allow it to make appropriate arrangements. 6.3 The costs of visiting the Site shall be at the Bidder's own expense.

B. Contents of Bidding Document

7. Sections of the Bidding Document	7.1 The Bidding Document consist of Parts 1, 2, and 3, which include all the Sections indicated below, and should be read and construed in conjunction with any Addenda issued in accordance with ITB 9. **PART 1 Bidding Procedures** • Section I. Instructions to Bidders (ITB) • Section II. Bid Data Sheet (**BDS**) • Section III. Evaluation and Qualification Criteria • Section IV. Bidding Forms **PART 2 Supply Requirements** • Section V. Schedule of Requirements **PART 3 Conditions of Contract and Contract Forms** • Section VI. General Conditions of Contract (GCC) • Section VII. Special Conditions of Contract (SCC) • Section VIII. Contract Forms 7.2 The Purchaser will reject any Bid submission (in case of hard copy submission) if the Bidding Document was not purchased directly from the Purchaser, or through its assigned office as stated in the invitation for bids or has not deposited (in case of electronically submission) the cost of Bidding Document as stated in the invitation for bids. 7.3 The Bidder is expected to examine all instructions, forms, terms, and specifications in the Bidding Document as well as in Amendments, if any. Failure to furnish all information or documentation required by the Bidding Document may result in the rejection of the Bid. 7.4 The Invitation for Bids issued by the Purchaser is not part of the Bidding Document
8. Clarification of Bidding Document/ Pre-bid meeting	8.1 A prospective Bidder requiring any clarification of the Bidding Document shall contact the Purchaser in writing at the Purchaser's address ***indicated in the BDS*** or raise any question or curiosity during the pre-bid meeting if provided for in accordance with ITB 8.2. The Purchaser will respond in writing to any request for clarification, provided that such request is received within the time limit ***specified in the BDS*** prior to the deadline for submission of Bids. The Purchaser shall forward copies of its response to all Bidders who have acquired the Bidding Document directly from it, including a description of the inquiry but without identifying its source. Should the Purchaser deem it necessary

	to amend the Bidding Document as a result of a clarification, it shall do so following the procedure under ITB 9 and 24.2. 8.2 The purchaser may organize a pre-bid meeting of Bidders at least fifteen (15) days before the deadline for submission of Bids at the place, date, and time as ***specified in the BDS*** to provide information relating to Bidding Documents, Technical specifications and the like matters. Should the purchaser deem it necessary to amend the Bidding Document as a result of a clarification, it shall do so following the procedure under ITB 9 and ITB 24.2.
9. Amendment of Bidding Document	9.1 At any time prior to the deadline for submission of the Bids, the Purchaser may amend the Bidding Document by issuing addenda. 9.2 Any addendum issued shall be part of the Bidding Document and shall be communicated in writing to all who have obtained the Bidding Document directly from the Purchaser. 9.3 To give prospective Bidders reasonable time in which to take an addendum into account in preparing their Bids, the Purchaser may, at its discretion, extend the deadline for the submission of the Bids, pursuant to ITB 24.2.

C. Preparation of Bids

10. Cost of Bidding	10.1 The Bidder shall bear all costs associated with the preparation and submission of its Bid, and the Purchaser shall not be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.
11. Language of Bid	11.1 The Bid, as well as all correspondence and documents relating to the Bid exchanged by the Bidder and the Purchaser, shall be written in the language ***specified in the BDS***. Supporting documents and printed literature that are part of the Bid may be in another language provided they are accompanied by an accurate translation of the relevant passages in the language ***specified in the BDS***, in which case, for purposes of interpretation of the Bid, such translation shall govern.
12. Documents Comprising the Bid	12.1 The Bid shall comprise two envelopes submitted simultaneously, one called the Technical Bid containing the documents listed in ITB 12.2 and the other the Price Bid containing the documents listed in ITB 12.3, both envelopes enclosed together in an outer single envelope. 12.2 The Technical Bid shall comprise the following: (a) Letter of Technical Bid; (b) Bid Security in accordance with ITB 21; (c) alternative technical bids, at Bidder's option and if permissible, in accordance with ITB 14; (d) written confirmation authorizing the signatory of the Bid to commit the Bidder, in accordance with ITB 22;

	(e) documentary evidence in accordance with ITB 17 establishing the Bidder's eligibility to bid; (f) documentary evidence in accordance with ITB Clauses 18 and 31, that the Goods and Related Services conform to the Bidding Document; (g) documentary evidence in accordance with ITB 19 establishing the Bidder's qualifications to perform the contract if its Bid is accepted; and (h) any other required documents, which is not against the provision of Procurement Act/Regulation/Directives and Standard Bidding Document issued by PPMO, ***required in the BDS.*** 12.3 The Price Bid submitted by the Bidder shall comprise the following: (a) Price Bid Submission Letter and the applicable Price Schedules, in accordance with ITB 13, ITB 15, and ITB 16; (b) alternative Price Bid corresponding to the alternative Technical Bid, if permissible, in accordance with ITB 14; and (c) any other document required in the BDS. 12.4 The Bidder is solely responsible for the authenticity of the submitted documents. 12.5 The Technical Bid shall not include any financial information related to the Price Bid. A Technical Bid containing such material financial information shall be declared non-responsive.
13. Bid Submission Letter and Price Schedules	13.1 The Bidder shall submit the Technical Bid Submission Letter and the Price Bid Submission Letter using the form furnished in Section IV, Bidding Forms. These forms must be completed without any alterations to their format, and no substitutes shall be accepted. All blank spaces shall be filled in with the information requested. 13.2 The Bidder shall submit, as part of the Price Bid, the Price Schedules for Goods and Related Services, according to their origin as appropriate, using the forms furnished in Section IV, Bidding Forms.
14. Alternative Bids	14.1 Unless otherwise ***indicated in the BDS***, alternative bids shall not be considered.
15. Bid Prices and Discounts	15.1 The prices and discounts quoted by the Bidder in the Letter of Price bid and in the Price Schedules shall conform to the requirements specified below. 15.2 The Bidder shall complete the appropriate Price Schedule and the sources of Goods schedules included herein, stating the unit prices, total cost per item, the total Bid amount, and the expected countries of origin of the Goods to be supplied under the contract. 15.3 All items in the Schedule of Supply must be listed and priced separately in the Price Schedules. If a Price Schedule shows items listed but not priced, their prices shall be assumed to be included in the prices of other items. Items not listed in the Price Schedule shall be assumed not to be

included in the Bid, and provided that the Bid is substantially responsive, the corresponding adjustment shall be applied in accordance with ITB 39.3. Unit rates and prices for all items in the Schedule of Supply shall be expressed in positive values. If unit rates and prices are expressed in negative values, the bid will be rejected.

15.4 The price to be quoted in the Letter of Price Bid shall be the total price of the Bid excluding any discounts offered. Absence of the total bid price in the Letter of Price Bid may result in the rejection of the Bid.

15.5 If the Bidder intends to offer any unconditional discount, it shall always be expressed in fixed percentage and that shall not vary as the quantity varies and be applicable to each unit rate. The discount and methodology for its application shall be quoted in Letter of Price Bid.

15.6 The terms EXW, CIF, CIP, and other similar terms shall be governed by the rules prescribed in the current edition of Incoterms, published by The International Chamber of Commerce, at the date of the Invitation for Bids or **as specified in the BDS.**

15.7 Prices shall be quoted as specified in each Price Schedule included in **Section IV, Bidding Forms**. The disaggregation of price components is required solely for the purpose of facilitating the comparison of Bids by the Purchaser. This shall not in any way limit the Purchaser's right to contract on any of the terms offered. Prices shall be entered in the following manner:

(a) For Goods manufactured in Nepal:

(i) the price of the goods quoted EXW (ex works, ex factory, ex warehouse, ex showroom, or off-the-shelf, as applicable), including all customs duties, Value Added Tax and other taxes already paid or payable on the components and raw material used in the manufacture or assembly of goods quoted ex works or ex factory, or on the previously imported goods of foreign origin quoted ex warehouse, ex showroom, or off-the-shelf;

(ii) Value Added Tax and all other taxes applicable in Nepal and payable on the Goods if the Contract is awarded to the Bidder;

(iii) the price for inland transportation, insurance, and other local services required to convey the Goods to their final destination (Project Site) **specified in the BDS.**

(iv) the total price for the item.

(b) For Goods manufactured outside Nepal, to be imported:

i. the price of the goods quoted CIF (named port of destination), or CIP (border point), or CIP (named place of destination), named place of destination as **specified in the BDS;**

	ii. the price for inland transportation, insurance, and other local services required to convey the Goods from the named place of destination to their final destination (Project Site) **specified in the BDS;** iii. in addition to the CIP prices specified in (b)(i) above, the price of the Goods to be imported may be quoted FOB port of shipment (or FCA, as the case may be) or CPT (named place of destination), if so **specified in the BDS;** and iv. the total price for the item. (c) For Goods manufactured outside Nepal, already imported: *[For previously imported Goods, the quoted price shall be distinguishable from the original import value of these Goods declared to customs and shall include any rebate or mark-up of the local agent or representative and all local costs except import duties and taxes, which have been and/or have to be paid by the Purchaser. For clarity the bidders are asked to quote the price including import duties, and additionally to provide the import duties and the price net of import duties which is the difference of those values.]* (i) the price of the Goods, including the original import value of the Goods; plus any mark-up (or rebate); plus any other related local cost, and custom duties and other import taxes already paid or to be paid on the Goods already imported. (ii) the custom duties and other import taxes already paid (need to be supported with documentary evidence) or to be paid on the Goods already imported; (iii) the price of the Goods, obtained as the difference between (i) and (ii) above; (iv) any sales and other taxes which will be payable on the Goods if the contract is awarded to the Bidder; (v) the price for inland transportation, insurance, and other local services required to convey the Goods from the named place of destination to their final destination (Project Site) **specified in the BDS;** and (vi) the total price for the item. (d) For Related Services, other than inland transportation and other services required to convey the Goods to their final destination, whenever such Related Services are specified in the Schedule of Requirements:

	(i) the local currency cost component of each item comprising the Related Services; and (ii) the foreign currency cost component of each item comprising the Related Services, inclusive of all custom ruties, Value Added Tax and other taxes aplicable in the Purchaser's country, payable on the related services, if the contract is awarded to the Bidder. **Refer BDS for details.** 15.8 Prices quoted by the Bidder shall be fixed during the Bidder's performance of the Contract and not subject to variation on any account, unless otherwise ***specified in the BDS***. A Bid submitted with an adjustable price quotation shall be treated as non responsive and shall be rejected, pursuant to ITB 32. However, if in ***accordance with the BDS***, prices quoted by the Bidder shall be subject to adjustment during the performance of the Contract, a Bid submitted with a fixed price quotation shall not be rejected, but the price adjustment shall be treated as zero 15.9 If so indicated in ITB 1.1, Bids are being invited for individual contracts (lots) or for any combination of contracts (packages). Bidders wishing to offer any price discount for the award of more than one Contract shall specify in their Price Bids the price discount applicable to each package, or alternatively, to individual Contracts within the package. Price discounts shall be submitted in accordance with ITB 15.7, provided the Price Bids for all lots are submitted and opened at the same time.
16. Currencies of Bid	16.1 Bid prices shall be quoted in the following currencies: (a) Bidders may express their bid price in any fully convertible currency. If a Bidder wishes to be paid in a combination of amounts in different currencies, it may quote its price accordingly but shall use no more than three currencies in addition to the Nepalese currency. (b) All expenditures that are to be incurred in Nepal for i) inland transportation and related costs, ii) all taxes, and iii) local currency cost component of related services other than inland transportation and other services should be expressed in the Bid in Nepalese currency and will be payable in Nepalese currency.
17. Documents Establishing the Eligibility of the Bidder	17.1 To establish their eligibility in accordance with ITB 4, Bidders shall: (a) complete the eligibility declarations in the Bid Submission Letter, included in Section IV, Bidding Forms; and (b) if the Bidder is an existing or intended JV in accordance with ITB 4.2, submit a copy of the JV Agreement, or a letter of intent to enter into such an Agreement. The respective document shall be

	signed by all legally authorized signatories of all the parties to the existing or intended JV, as appropriate. (c) submit the copy of the documents as ***specified in Section III, Evaluation and Qualification Criteria***.
18. Documents Establishing the Conformity of the Goods and Related Services to the Bidding Document	18.1 To establish the conformity of the Goods and Related Services to the Bidding Document, the Bidder shall furnish as part of its Technical Bid the documentary evidence that the Goods and Related Services conform to the requirements specified in Section V, Supply Requirements. 18.2 The documentary evidence may be in the form of literature, drawings or data, and shall consist of a detailed item-by-item description of the essential technical and performance characteristics of the Goods and Related Services, demonstrating substantial responsiveness of the Goods and Related Services to those requirements, and if applicable, a statement of deviations and exceptions to the provisions of Section V, Schedule of Requirements. 18.3 The Bidder shall also furnish a list giving full particulars, including available sources and current prices of spare parts, special tools, etc., necessary for the proper and continuing functioning of the Goods during the period **specified in the BDS** following commencement of the use of the goods by the Purchaser. 18.4 Standards for workmanship, process, material, and equipment, as well as references to brand names or catalogue numbers specified by the Purchaser in the Section V, Schedule of Requirements, are intended to be descriptive only and not restrictive. The Bidder may offer other standards of quality, brand names, and/or catalogue numbers, provided that it demonstrates, to the Purchaser's satisfaction, that the substitutions ensure substantial equivalence or are superior to those specified in Section V, Schedule of Requirements.
19. Documents Establishing the Qualifications of the Bidder	19.1 To establish its qualifications to perform the Contract, the Bidder shall submit as part of its Technical Proposal the evidence indicated for each qualification criteria specified in Section III (Evaluation and Qualification Criteria). The documentary evidence of the Bidder's qualifications to perform the contract, if its bid is accepted, shall establish to the Purchaser's satisfaction that the Bidder meets each of the qualification criterion specified. 19.2 If so ***required in the BDS***, a Bidder that does not manufacture or produce the Goods it offers to supply shall submit the Manufacturer's Authorization using the form included in Section IV, Bidding Forms to demonstrate that it has been duly authorized by the manufacturer or producer of the Goods to supply these Goods in Nepal and take care of the warranty provided. 19.3 If so ***required in the BDS***, a Bidder that does not conduct business within Nepal shall submit evidence that it will be represented by an Agent in Nepal equipped and able to carry out the Supplier's maintenance, repair

	and spare parts-stocking obligations prescribed in the Conditions of Contract and/or Technical Specifications. 19.4 A foreign Bidder wishing to have or already having a local agent shall state the following: a. Name and address of the Agent/Representative, b. The Agent/Representative providing type of services, c. Amount of commission if the Agent/Representative is entitled to get such payment and if it participates in the procedure of payment, d. Other agreement with Agent/Representative, if any, e. Bidder shall certify in the Letter of Authorization as follows: "We certify that the statement and disclosure made by us on the above are complete and true to the best of our knowledge and belief", If the agent has not been appointed: a. Source of information about tender invitation, b. The remuneration given to the individual or firm/company or organization to work on its behalf for submitting tender, representation in the bid opening and other required action in connection with the tender, c. Transfer or handover an evidence of foreign currency exchanged which required to be submitted with the tender, d. If the bank account of any Nepali citizen has been used for the exchange of foreign currency specify the name of the individual and his address. If the foreign currency has been exchanged by self then the certificate of currency exchange. 19.5 If a foreign Bidder in its Bid, has not provided the information mentioned in ITB 19.4 or has submitted its bid stating that the Bidder does not have a local agent and later it is proved that the bidder has a local agent or it is proved that the commission mentioned in the Bid is less than the commission received by the local agent then the Purchaser shall initiate proceedings to blacklist such bidder in accordance with ITB 3.3.
20. Period of Validity of Bids	20.1 Bid shall remain valid for a period ***specified in the BDS*** after the bid submission deadline date prescribed by the purchaser. If the prescribed bid submission deadline date falls on a government holiday, then the next working day shall be considered as the bid submission deadline date. In such case the validity period of the bids shall be considered from the original bid submission deadline date. A bid valid for a shorter period shall be rejected by the purchaser as nonresponsive. 20.2 In exceptional circumstances, prior to the expiration of the bid validity period, the Purchaser may request Bidders to extend the period of validity of their Bids. The request and the responses shall be made in writing. If a Bid Security is requested in accordance with ITB 21, it shall also be extended for a corresponding period. A Bidder may refuse

	the request without forfeiting its Bid Security. A Bidder granting the request shall not be required or permitted to modify its Bid and to include any additional conditions against the provisions specified in Bid Documents. ***Also refer to BDS***.
21. Bid Security	21.1 The Bidder shall furnish as part of its bid, in original form a Bid Security as ***specified in the BDS***. In case of e-submission of bid, the Bidder shall upload scanned copy of Bid security letter at the time of electronic submission of the bid. The Bidder accepts that the scanned copy of the Bid security shall, for all purposes, be equal to the original. The details of original Bid Security and the scanned copy submitted with e-bid should be the same otherwise the bid shall be non-responsive. 21.2 If a bid security is specified pursuant to ITB 21.1, the bid security shall be a demand guarantee in any of the following forms at the Bidder's option: (a) original copy of an unconditional bank guarantee from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law or; (b) original copy of an unconditional bank guarantee from commercial foreign bank or; (c) original copy of cash deposit voucher in the Purchaser 's Account as ***specified in BDS***. In case of a bank guarantee, the Bid Security shall be submitted either using the Bid Security Form included in Section IV, Bidding Forms or in another form acceptable to the purchaser. The form must include the complete name of the Bidder. The Bid Security shall be valid for minimum thirty (30) days beyond the end of the validity period of the bid, or beyond any period of extension if requested under ITB 20.2. The bid security issued by any foreign Bank outside Nepal must be counter guaranteed by an Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law in Nepal. 21.3 If a bid Security is required in accordance with ITB 21.1, any Bid not accompanied by an enforceable and substantially compliant Bid Security in accordance with ITB 21.2, shall be rejected by the Purchaser as nonresponsive. In case of e- Submission, if the scanned copy of an acceptable bid security letter is not uploaded with the electronic bid then bid shall be rejected. 21.4 If a Bid Security is specified pursuant to ITB 21.1, the Bid Security of unsuccessful Bidders shall be returned within three (3) days upon the successful Bidder's` furnishing of the required performance security and signing of the Contract Agreement pursuant to ITB 44.1 and 45.1. 21.5 If a Bid Security is specified pursuant to ITB 21.1, the Bid Security of the successful Bidder shall be returned as promptly as possible once the

	successful Bidder has furnished the required Performance Security and signed the Contract Agreement. 21.6 The Bid Security may be forfeited: (a) a Bidder requests for withdrawal or modification of its bid, except as provided in ITB 20.2 (i) during the period of bid validity specified by the Bidder on the Letter of Bid, in case of electronic submission; (ii) from the period twenty-four hours prior to bid submission deadline up to the period of bid validity specified by the Bidder on the Letter of Bid, in case of hard copy submission. (b) a Bidder changes the prices or substance of the bid while providing information pursuant to clause 29.1; (c) a Bidder involves in fraud and corruption pursuant to clause 3.1; (d) the successful Bidder fails to: (i) furnish a performance security in accordance with ITB 44.1; (ii) sign the Contract in accordance with ITB 45.1; or (iii) accept the correction of arithmetical errors pursuant to clause 36. 21.7 The Bid Security of a JV must be in the name of the JV that submits the bid. If the JV has not been legally constituted at the time of bidding, the Bid Security shall be in the names of all future partners as named in the letter of intent mentioned in ITB 17.1 (b).
22. Format and Signing of Bid	22.1 The Bidder shall prepare one original set of the Technical Bid and one original set of the Price Bid as described in ITB 12 and clearly mark each "ORIGINAL - TECHNICAL BID" and "ORIGINAL - PRICE BID". Alternative bids, if permitted in accordance with ITB 14, shall be clearly marked "ALTERNATIVE". In addition, the Bidder shall submit copies of the Technical Bid and the Price Bid, in the number specified in the BDS and clearly mark them "COPY NO… - TECHNICAL BID" and "COPY NO…. - PRICE BID". In the event of any discrepancy between the original and the copies, the original shall prevail. In case of e-submission of bid, the Bidder shall submit his bid electronically in PDF or online forms files as specified in ITB Clause 23.1(b). If a Bidder submits both the electronic bid and a bid in hard copy within the bid submission deadline, then the submitted Bids shall be accepted for evaluation provided that the facts and figures in hard copy confirm to those in electronic bid. If there is any major discrepancy in fact and figures in the electronic bid and bid in hard copy, it shall be treated as two separate bids from one Bidder and both the Bids shall be disqualified, as per ITB Clause 4.3 (e). 22.2 The original and all copies of the bid shall be typed or written in indelible ink and shall be signed by a person duly authorized to sign on behalf of the Bidder. This authorization shall consist of a written confirmation as

	specified in the BDS and shall be attached to the Bid. The name and position held by each person signing the authorization must be typed or printed below the signature. All pages of the bid, except for un amended printed literature, shall be signed or initialed by the person signing the bid. 22.3 Any amendments such as interlineations, erasures, or overwriting shall be valid only if they are signed or initialed by the person signing the Bid.

D. Submission and Opening of Bids

23. Sealing and Marking of Bids	23.1 Unless otherwise **specified in BDS**, Bidders shall submit their bids by electronic or by mail/ by hand/ by courier. Procedures for submission, sealing and marking are as follows: (a) Bidders submitting bids by mail, by hand or by Courier shall enclose the original of the Technical Bid, and the original of the Price Bid and each copy of the Technical Bid and Price Bid, including alternative bids, if permitted in accordance with ITB 14, in separate sealed envelopes, duly marking the envelopes as **"ORIGINAL TECHNICAL BID", "ORIGINAL – PRICE BID", "ALTERNATIVE" and "COPY No….. – TECHNICAL BID" and "COPY NO….. PRICE BID"** as appropriate. These envelopes containing the original and the copies shall then be enclosed in one single envelope. (b) Bidders submitting Bids electronically shall follow the electronic bid submission procedure specified in this clause. i. The bidder is required to register in the e-GP system https://www.bolpatra.gov.np/egp following the procedure specified in e-GP guideline. ii. Interested bidders may either purchase the bidding document from the Employer's office as specified in the Invitation for Bid (IFB) or bidders may download the IFB and bidding document from e-GP system. iii. The registered bidders need to maintain their profile data required during preparation of bids. iv. In order to submit their bids the cost of the bidding document can be deposited as specified in IFB. In addition, electronic scanned copy (.pdf format) of the bank deposit voucher/cash receipt should also be submitted along with the technical bid. v. The bidder can prepare their technical and price bids using data and documents maintained in bidder's profile and forms/format provided in bidding document by Employer. The bidder may submit bids as a single entity or as a joint venture. The bidder submitting bid in joint venture shall have to upload joint venture agreement along with

partner(s) Bolpatra ID provided during bidder's registration.

vi. Bidders (all partners in case of JV) should update their profile data and documents required during preparation and submission of their technical bids.

vii. In case of bid submission in JV, the consent of the partners shall be obtained through the confirmation link sent to the registered email address and the partners shall have to acknowledge their confirmation.

The required forms and documents shall be part of technical bids.

No.	Document	Requirement	Remarks
1.	Letter of Technical Bid	Mandatory	PDF
2.	Bid Security/Bank Guarantee	Mandatory	PDF
3.	Company registration Certificate	Mandatory	PDF
4.	VAT registration Certificate	Mandatory (for domestic bidders only)	PDF
5.	Business Registration Certificate	Mandatory	PDF
6.	Tax Clearance Certificate/Tax return submission evidence/evidence of time extension	Mandatory (for domestic bidders only)	PDF
7.	Power of Attorney of Bid signatory	Mandatory	PDF
8.	Bank Voucher for cost of bid document	Mandatory	PDF
9.	Joint venture agreement	Mandatory in case of JV Only	PDF
10.	Qualification Documents	Mandatory	PDF
11.	Technical Specification	Mandatory	PDF or Online Forms
12.	Delivery and Completion Schedule	Mandatory	PDF or Online Forms
13.	Additional documents: specified in ITB 12.2 (h)	Mandatory (If any)	PDF

The required forms and documents shall be part of price bids.

No.	Document	Requirement	Remarks
1.	Letter of Price Bid	Mandatory	PDF
2.	Completed Price Schedule	Mandatory	Online Forms/ PDF
3.	Additional Documents specified in ITB 12.3 (c)	Mandatory (If any)	PDF

Note:

a) ***The documents specified as "Mandatory" should be included in e-submission and non-submission of the documents shall be considered as non-responsive bid.***

b) *Bidders (all partners in case of JV) should verify/update their profile documents as appropriate for the specific bid before submitting their bid electronically.*

viii. After providing all the details and documents, two separate bid response documents i.e technical bids and price bids will be generated from the system. Bidders are advised to download and verify the response documents prior to bid submission.

ix. For verifying the authentic user, the system will send one time password (OTP) in the registered e-mail address of the bidder. System will validate the OTP and allow bidder to submit their bid.

x. Electronically submitted bids can be modified and/or withdrawn through system. The bidder may modify their bids multiple times online within bid submission date and time specified in e-GP system. Once a Bid is withdrawn, bidder won't be able to submit another bid response for the same bid.

xi. The Bidder / Bid shall meet the following requirements and conditions for e-submission of bids;

aa) The e-submitted bids must be readable through PDF reader.

bb) The facility for submission of bid electronically through e-submission is to promote transparency, non-discrimination, equality of access, and open competition in the bidding process. The Bidders are fully responsible to use the e- submission facility properly in e-GP system as per specified procedures and in no case the Employer shall be held liable for Bidder's inability to use this facility.

	cc) When a bidder submits electronic bid through the PPMO e-GP portal, it is assumed that the bidder has prepared the bid by studying and examining the complete set of the Bidding documents including specifications, drawings and conditions of contract. 23.2 The inner and outer envelopes shall: (a) bear the name and address of the Bidder; (b) be addressed to the Purchaser in accordance with ITB 24.1; and (c) bear the specific identification of this bidding process indicated in BDS 1.1. 23.3 The outer envelope and the inner envelope containing Technical Proposal shall bear a warning not to open before the time and date for the opening of Technical Bid in accordance with ITB 27.1. 23.4 The inner envelope containing the Price Bid shall bear a warning not to open until advised by the Employer in accordance with ITB 27.7 23.5 If all envelopes are not sealed and marked as required, the Purchaser will assume no responsibility for the misplacement or premature opening of the bid.
24. Deadline for Submission of Bids	24.1 Bids must be received by the Purchaser at the address and no later than the date and time ***indicated in the BDS***. In case of e-submission, the standard time for e-submission is Nepal Standard Time as set out in the server. The e-procurement system will accept the e-submission of bid from the date of publishing of notice and will automatically not allow the e-submission of bid after the deadline for submission of bid. 24.2 The Purchaser may, at its discretion, extend the deadline for the submission of Bids by amending the Bidding Document in accordance with ITB 9, in which case all rights and obligations of the Purchaser and Bidders previously subject to the deadline shall thereafter be subject to the deadline as extended. However, the time available to submit bids shall not be less than five (5) days since amendment in bidding document.
25. Late Bids	25.1 The Purchaser shall not consider any Bid - Technical or Price - that arrives after the deadline for submission of Bids, in accordance with ITB 24. Any Bid received by the Purchaser after the deadline for submission of Bids shall be declared late, rejected, and returned unopened to the Bidder.
26. Withdrawal, or Modification of Bids	26.1 A bidder may withdraw, or modify its bid after it has been submitted either in hard copy or by e-Submission. Once a Bid is withdrawn, bidder shall not be able to submit another bid for this bidding process. Procedures for withdrawal or modification of submitted bids are as follows: **<u>GoN Funded:</u>** (i) Bids submitted in hard Copy

a) Bidders may withdraw or modify its bids by sending a written notice in a sealed envelope, duly signed by an authorized representative, and shall include a copy of the authorization in accordance with ITB 22.2 before 24 hours prior to the last deadline of submission of bid. The corresponding modification of the bid must accompany the respective written notice. All notices must be:

(aa) prepared and submitted in accordance with ITB 22 and ITB 23, and in addition, the respective envelopes shall be clearly marked "WITHDRAWAL", "MODIFICATION;" and

(bb) received by the Purchaser 24 hours prior to the deadline prescribed for submission of bids, in accordance with ITB 24.

DP Funded:

Bidders may withdraw or modify its Bid – Technical or Price – after it has been submitted by sending a written notice, duly signed by an authorized representative, and shall include a copy of the authorization in accordance with ITB 22.2. The corresponding modification of the Bid must accompany the respective written notice. All notices must be

(aa) prepared and submitted in accordance with ITB 22 and ITB 23, and in addition, the respective envelopes shall be clearly marked "WITHDRAWAL," and "MODIFICATION;" and

(bb) received by the Employer prior to the deadline prescribed for submission of Bids, in accordance with ITB 24.

ii) E-submitted bids.

a) Bidder may submit modification or withdrawal prior to the deadline prescribed for submission of bids through e-GP system by using the forms and instructions provided by the system. Once a Bid is withdrawn, bidder shall not able to submit another bid for the same bid.

26.2 Bids requested to be withdrawn in accordance with ITB 26.1 (i) shall be returned unopened to the Bidders after the end of bid opening process.

26.3 The following provisions apply for withdrawal or modification of the Bids:

GoN Funded

(i) In case of bids submitted in hard copy no bid shall be withdrawn or modified in the interval between 24 hours prior time of the deadline for submission of bids and the expiration of the period of bid validity specified by the Bidder on the Letter of Bid or any extension thereof.

(ii) In case of e-submitted bids no bids shall be withdrawn or modified in the interval between deadline for submission of bids and the expiration of the period of bid validity specified by the Bidder on the bid submission form or any extension there of.

DP Funded

No Bid may be withdrawn or modified in the interval between the deadline

	for submission of Bids and the expiration of the period of bid validity specified by the Bidder on the Letters of Technical Bid and Price Bid or any extension thereof. 26.4 Except in case of any modification or correction in bid document made by procuring entity, Bidder may submit request for withdrawal or modification only one time. 26.5 In case of hard copy bid, no bid may be withdrawn if the bid has already been modified; except in case of any modification or correction in bid document by procuring entity. 26.6 Request for withdrawal or modification must be made through the same medium of submission. Request for withdrawal or modifications through different medium shall not be considered.
27.Bid Opening	27.1 The Purchaser's bid opening committee shall conduct the opening of Technical Bids in public in the presence of bidder or its representative who choose to attend at the address, date and time ***specified in the BDS***. The Price Bids will remain unopened and will be held in custody of the Employer until the specified time of their opening. If the Technical Bid and Price Bid are submitted together in one envelope, the Employer shall reject the entire Bid. 27.2 The opening committee shall download the e-submitted Technical Bid files. The e-procurement system allows the Purchaser to download the e-submitted Technical Bid files (report) only after bid opening date and time after login simultaneously by two members of the Bid Opening Committee. 27.3 Electronically submitted Technical Bid shall be opened at first in the same time and date as *specified above*. Electronic Bids shall be opened one by one and read out. The e-submitted Technical Bids must be readable through open standards interfaces. Unreadable and or partially submitted bid files shall be considered incomplete. 27.4 Before opening the bids, the opening committee shall separate the envelopes of the bids received after the deadline of bid submission, the envelopes containing an application given for WITHDRAWAL, MODIFICATION of bids and the envelopes of bids duly registered. The bids received after the deadline of submission shall be returned to the concerned bidder unopened. Then envelopes marked "WITHDRAWAL" shall be opened first, read out, and recorded, and the envelope containing the corresponding Bid shall not be opened, but returned to the Bidder. If the withdrawal notice is not accompanied by a copy of the valid authorization pursuant to ITB 22.2, the withdrawal shall not be permitted and the corresponding Bid will be opened. Next, envelopes marked "MODIFICATION" shall be opened, read out, and recorded with the corresponding Bid. No Bid shall be modified unless the corresponding Modification Notice contains a valid authorization to request the modification and is read out and recorded at bid opening. Only envelopes that are opened, read out, and recorded at bid opening

	shall be considered further. Price Bids, both Original and Modification, will remain unopened in accordance with ITB 27.1. 27.5 All other envelopes holding the Technical Bid shall be opened one at a time, and the following read out and recorded: the name of the Bidder; whether there is a modification; the presence of a Bid Security, and any other details as the Purchaser may consider appropriate. Only Technical Bids read out and recorded at bid opening shall be considered for evaluation. No Bid shall be rejected at bid opening except for late bids, in accordance with ITB 25.1. 27.6 The opening committee shall prepare a record of the opening of Technical Bids that shall include, as a minimum: the name of the Bidder and whether there is a withdrawal, or modification; and the presence or absence of a Bid Security. The Bidders' representatives who are present shall be requested to sign the record. The omission of a Bidder's signature on the record shall not invalidate the contents and effect of the record. A copy of the record shall be distributed to all Bidders who submitted bids in time, and posted online when electronic bidding is permitted. The Bidders' representatives who are present shall also be requested to sign an attendance sheet. 27.7 At the end of the evaluation of the Technical Bids, the purchaser will invite bidders who have submitted substantially responsive Technical Bids and who have been determined as being qualified for award to attend the opening of the Price Bids. The date, time, and location of the opening of Price Bids will be advised in writing by the purchaser. Bidders shall be given at least 15 days' notice for the opening of Price Bids. 27.8 The purchaser will notify Bidders in writing who have been rejected on the grounds of their Technical Bids being substantially nonresponsive to the requirements of the Bidding Document and return their Price Bids unopened. 27.9 The purchaser shall conduct the opening of Price Bids of all Bidders who submitted substantially responsive Technical Bids, in the presence of Bidders` representatives who choose to attend at the address, on the date, and time specified by the Employer. The Bidder's representatives who are present shall be requested to sign a register evidencing their attendance. 27.10 All envelopes containing Price Bids shall be opened one at a time and the following read out and recorded: (a) the name of the Bidder; (b) whether there is a modification; (c) the Bid Prices, including any discounts and alternative offers; and (d) any other details as the purchaser may consider appropriate.

	Only Price Bids, discounts, modifications, and alternative offers read out and recorded during the opening of Price Bids shall be considered for evaluation. No Bid shall be rejected at the opening of Price Bids. 27.11 The purchaser shall prepare a record of the opening of Price Bids that shall include, as a minimum, the name of the Bidder, the Bid Price (per lot/package if applicable), any discounts, modifications and alternative offers. The Bidders' representatives who are present shall be requested to sign the record. The omission of a Bidder's signature on the record shall not invalidate the contents and effect of the record.

E. Evaluation and Comparison of Bids

28.Confidentiality	28.1 Information relating to the examination, evaluation, comparison, and post-qualification of Bids, and recommendation of contract award, shall not be disclosed to Bidders or any other persons not officially concerned with such process until publication of the Contract award; thereafter, information will be disclosed in accordance with ITB 43.1. 28.2 Any attempt by a Bidder to influence the Purchaser in the examination, evaluation, comparison, and post-qualification of the Bids or Contract award decisions may result in the rejection of its Bid. 28.3 Notwithstanding ITB 28.2, from the time of bid opening to the time of Contract award, if any Bidder wishes to contact the Purchaser on any matter related to the bidding process, it should do so in writing.
29.Clarification of Bids	29.1 To assist in the examination, evaluation, comparison and post-qualification of the Technical and Price Bids, the Purchaser may, at its discretion, ask any Bidder for a clarification of its Bid. Any clarification submitted by a Bidder with regard to its Bid and that is not in response to a request by the Purchaser shall not be considered. The Purchaser's request for clarification and the response shall be in writing. No change in the prices or substance of the Technical Bid or prices in the Price Bid shall be sought, offered, or permitted, except to confirm the correction of arithmetic errors discovered by the Purchaser in the evaluation of the Bids, in accordance with ITB 36. In case of e-submission of bid, upon notification from the purchaser, the bidder shall also submit the original of documents comprising the Technical and Price Bids as per ITB 12.2 and ITB 12.3 for verification of submitted documents for acceptance of the e-submitted bid. 29.2 If a Bidder does not provide clarifications of its Bid by the date and time set in the purchaser's request for clarification, its Bid may be rejected.
30.Deviations, Reservations, and Omissions	30.1 During the evaluation of bids, the following definitions apply: (a) "Deviation" is a departure from the requirements specified in the Bidding Document; (b) "Reservation" is the setting of limiting conditions or withholding from complete acceptance of the requirements specified in the Bidding Document; and

	(c) "Omission" is the failure to submit part or all of the information or documentation required in the Bidding Document.
31. Examination of Technical Bid	31.1 The purchaser shall examine the Technical Bid to confirm that all documents and technical information requested in ITB 12.2 have been submitted. If any of these documents or information (except alternative Technical Bid which is optional) is missing, the bid shall be rejected. 31.2 In case of e-submission bids, the Employer shall confirm that all the documents and information requested in ITB 23.1 have been submitted. If any of these documents or information is missing, the bid shall be rejected.
32.Determination of Responsiveness of Technical Bid	32.1 The Purchaser's determination of the responsiveness of a Bid is to be based on the contents of the Technical Bid itself, as defined in ITB 12.2. 32.2 A substantially responsive Technical Bid is one that meets the requirements of the Bidding Document without material deviation, reservation, or omission. A material deviation, reservation, or omission is one that, (a) if accepted, would: (i) affect in any substantial way the scope, quality, or performance of the Goods and Related Services specified in Section V, Schedule of Requirements; or (ii) limits in any substantial way, inconsistent with the Bidding Document, the Purchaser's rights or the Bidder's obligations under the proposed Contract; or (b) if rectified, would unfairly affect the competitive position of other Bidders presenting substantially responsive bids. 32.3 The Purchaser shall examine the technical aspects of the bid in particular, to confirm that all requirements of Section V, Schedule of Requirements have been met without any material deviation or reservation. 32.4 If a bid is not substantially responsive to the requirements of the Bidding Document, it shall be rejected by the Purchaser and may not subsequently be made responsive by correction of the material deviation, reservation, or omission. 32.5 In case of e-submission bids, the purchaser evaluates the bid on the basis of the information in the electronically submitted bid files. If the Bidder cannot substantiate or provide evidence to establish the information provided in e-submitted bid through documents/ clarifications as per ITB Clause 29.1, the bid shall not be considered for further evaluation. 32.6 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.

	32.7 Except in case of e-submission, the Financial Bid of the bidder, which is evaluated as substantially non-responsive in technical bid, shall be returned to the respective bidders.
33.Non-material Non-conformities	33.1 The Purchaser may regard a Bid as responsive even if it contains minor deviations that do not materially alter or depart from the characteristics, terms, conditions and other requirement set forth in the Bidding Document or if it contains errors or oversights that are capable of being corrected without affecting the substance of the Bid. 33.2 Provided that a Bid is substantially responsive, the Purchaser may request that the Bidder submit the necessary information or documentation, within a reasonable period of time, to rectify non-material non-conformities or omissions in the Bid related to documentation requirements. Requesting information or documentation on such non-conformities shall not be related to any aspect of the price of the Bid. Failure of the Bidder to comply with the request may result in the rejection of its Bid. 33.3 Provided that a Bid is substantially responsive, the Purchaser shall rectify non-material non-conformities or omissions. To this effect, the Bid Price shall be adjusted, for comparison purposes only, to reflect the price of the missing or non-conforming item or component. The adjustment shall be made using the method indicated in Section III, Evaluation and Qualification Criteria. 33.4 If small differences are found such as in technical specification, description, feature which does not make the bid to be rejected, then the cost, which is calculated to the extent possible due to such differences, shall be included while evaluating bid. 33.5 If the value is found fifteen percent more than the quoted amount of the bidder on account of small differences pursuant to ITB 32.4, such bid shall be considered irresponsive in substance and shall not be considered for evaluation.
34.Qualification of the Bidder	34.1 The Employer shall determine to its satisfaction during the evaluation of Technical Bids whether Bidders meet the qualifying criteria specified in Section III (Evaluation and Qualification Criteria). 34.2 The determination shall be based upon an examination of the documentary evidence of the Bidder's qualifications submitted by the Bidder, pursuant to ITB 19.1. 34.3 An affirmative determination shall be a prerequisite for the opening and evaluation of a Bidder's Price Bid. A negative determination shall result into the disqualification of the Bid, in which event the Employer shall return the unopened Price Bid to the Bidder.
35.Examination of Price Bids	35.1 The purchaser shall examine the Price Bid to confirm that all documents and financial information requested in ITB 12.3 have been submitted. If any of these documents or information (except alternative Price Bid

	which is optional) is missing, the bid shall be rejected. 35.2 In case of e-submission bids, the purchaser shall confirm that all the documents and financial information requested in ITB 23.1 have been submitted. If any of these documents or information is missing, the bid shall be rejected.
36.Correction of Arithmetical Errors	36.1 During the evaluation of Price Bids, the Purchaser shall correct arithmetical errors on the following basis: a) if there is a discrepancy between the unit price and the total price that is obtained by multiplying the unimat price and quantity, the unit price shall prevail and the total price shall be corrected, unless in the opinion of the Purchaser there is an obvious misplacement of the decimal point in the unit price, in which case the total price as quoted shall govern and the unit price shall be corrected; b) if there is an error in a total corresponding to the addition or subtraction of subtotals, the subtotals shall prevail and the total shall be corrected; and c) If there is a discrepancy between the bid price in the Summary of price schedule and the bid amount in item (c) of the Letter of Price Bid, the bid price in the Summary of price schedule will prevail and the bid amount in item (c) of the Letter of Price Bid will be corrected; and d) if there is a discrepancy between words and figures, the amount in words shall prevail, unless the amount expressed in words is related to an arithmetic error, in which case the amount in figures shall prevail subject to (a), (b) and (c) above. 36.2 If the Bidder that submitted the lowest evaluated Bid does not accept the correction of errors, its Bid shall be rejected and the bid security shall be forfiteed.
37.Conversion to Single Currency	37.1 For evaluation and comparison of Price Bids, all bid prices expressed in the amounts in various currencies shall be converted into Nepalese Rupees using the selling exchange rates established by Nepal Rastra Bank and on the on the date **specified in the BDS**.
38. Goods manufactured in Nepal to be procured	38.1 If the price of goods manufactured in Nepal, are higher up to fifteen percent than that of manufactured in foreign countries, the goods manufactured in Nepal shall be prefered in the evaluation of the Bids **as specified in BDS**. 38.2 for granting such preference pursuant to 38.1, the bidder must submit the country of origin issued by competent authority.
39.Evaluation and Comparison of Price Bids	39.1 The Purchaser shall evaluate and compare all substantially responsive Bids to determine the lowest evaluated bid. 39.2 To evaluate a Price Bid, the Purchaser shall only use all the criteria and methodologies defined in this Clause and in Section III, Evaluation and

	Qualification Criteria. No other criteria or methodology shall be permitted. 39.3 To evaluate a Price Bid, the Purchaser shall consider the following: (a) the bid price as quoted in accordance with ITB 15 **as specified in BDS**; (b) adjustment for correction of arithmetic errors in accordance with ITB 36.1; (c) adjustment due to discounts offered in accordance with ITB 15.7; (d) adjustment for nonmaterial nonconformities in accordance with ITB 33.3; (e) adjustment due to application of the evaluation criteria **specified in the BDS** from amongst those set out in Section III (Evaluation and Qualification Criteria). These criteria may include factors related to the characteristics, performance, and terms and conditions of purchase of the Goods and Related Services which shall be expressed to the extent practicable in monetary terms to facilitate comparison of bids unless otherwise specified in Section III; and (f) adjustment due to the application of a margin of preference in accordance with ITB clause 38. 39.4 The Purchaser's evaluation of a bid will exclude and not take into account: (a) in the case of Goods offered from within Nepal, all sales tax and all other taxes, applicable in Nepal and payable on the Goods if the Contract is awarded to the Bidder; (b) in the case of Goods offered from outside Nepal, all customs duties, sales tax, and other taxes, applicable in Nepal and payable on the Goods if the Contract is awarded to the Bidder; and (c) any allowance for price adjustment during the period of performance of the Contract, if provided in the Bid. 39.5 If this Bidding Document allows Bidders to quote separate prices for different lots/packages, and to award multiple Contracts to a single Bidder, the methodology to determine the lowest evaluated price of the Contract combinations, including any discounts offered in the Letter of Price Bid, is specified in Section III (Evaluation and Qualification Criteria). 39.6 In Case, a corruption case is being filed to Court against the Natural Person or Board of director of the firm/institution /company or any partner of JV, such Natural Person or Board of director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.

40.Purchaser's Right to Accept Any Bid, and to Reject Any or All Bids	40.1 The Purchaser reserves the right to accept or reject any Bid, and to cancel the bidding process and reject all Bids at any time prior to Contract award, without thereby incurring any liability to the Bidders.

F. Award of Contract

41.Award Criteria	41.1 The Purchaser shall select to award the Contract to the Bidder whose offer has been determined to be the lowest evaluated Bid and is substantially responsive to the Bidding Document, provided further that the Bidder is determined to be qualified to perform the Contract satisfactorily.
42.Purchaser's Right to Vary Quantities at Time of Award	42.1 At the time the Contract is awarded, the Purchaser reserves the right to increase or decrease the quantity of Goods and Related Services originally specified in Section V, Schedule of Requirements, provided this does not exceed the percentages ***indicated in the BDS***, and without any change in the unit prices or other terms and conditions of the Bid and the Bidding Document.
43.Notification of Intention to Award	43.1 The Purchaser shall notify the concerned Bidder whose bid has been selected in accordance with ITB 41.1 within seven days of the selection of the bid, in writing that the Purchaser has intention to accept his/her bid and shall Inform via the Letter of Intention included in the Contract Forms and the information of name, address and amount of selected bidder shall be given to all other bidders who submitted the bid. 43.2 If no bidder submits an application pursuant to ITB 46.1 within a period of seven days of providing the notice under ITB 43.1, the Purchaser shall accept the bid selected in accordance with ITB 41.1 prior to the expiry of bid validity period, and notification of award shall be communicated to the bidder to furnish the performance security and sign the contract within fifteen days. 43.3 In Case, a corruption case is being filed to Court against the Natural Person or Board of Director of the firm/institution /company or any partner of JV, such Natural Person or Board of Director of the firm/institution /company or any partner of JV such bidder's bid shall be excluded from the evaluation, if public entity receives instruction from Government of Nepal.
44.Performance Security	**44.1** Within fifteen (15) days of the receipt of notification of award from the Purchaser, the successful Bidder shall furnish the Performance Security in accordance with the GCC, **as specified below from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law in Nepal** using **Sample Form** for **the** Performance Security included in Section VII **(**Contract Forms or another form acceptable to the Purchaser. i) If bid price of the bidder selected for acceptance is up to 15 (fifteen) percent less than the approved cost estimate, the performance security

	amount shall be 10 (Ten) percent of the bid price. ii) For the bid price of the bidder selected for acceptance is more than 15 (fifteen) percent below of the cost estimate, the performance security amount shall be determined as follows: **Performance Security Amount = [(0.85 x Cost Estimate –Bid Price) x 0.5] + 10% of Bid Price.** The Bid Price and Cost Estimate shall be exclusive of Value Added Tax.
	44.2 Failure of the successful Bidder to submit the above-mentioned Performance Security or sign the Contract Agreement shall **constitute** sufficient grounds for the annulment of the award and forfeiture of the Bid Security and black listing. In that event the Purchaser shall award the Contract to the next lowest evaluated Bidder whose offer is substantially responsive and is determined by the Purchaser to be qualified to perform the Contract satisfactorily.
45. Signing of Contract	**45.1** The successful Bidder shall sign the contract in the form included in section VIII after the submission of performance security in accordance with ITB 44. **45.2** At the same time, the Employer shall affix a public notice on the result of the award on its notice board and make arrangement for causing such notice to be affixed on the notice board also of the ***District Coordination Committee, District Administration Office, Provincial Treasury and Controller Office and District Treasury and Controller Office.*** The Employer may make arrangements to post the notice into its website, if it has; and if it does not have, into the website of the Public Procurement Monitoring Office, identifying the bid and lot/package numbers and the following information: (i) the result of evaluation of bid; (ii) date of publication of notice inviting bids; (iii) name of newspaper; (iv) reference number of notice; (v) item of procurement; (vi) name and address of bidder making contract and (viii) contract Price. 45.3 The Purchaser shall promptly respond in writing to any unsuccessful Bidder who, within thirty days from the date of issuance of notification pursuant to ITB 43.1, requests in writing the grounds on which its bid was not selected. 45.4 If the bidder whose bid has been accepted fails to sign the contract as stated ITB 45.1, the Public Procurement Monitoring Office shall blacklist the bidder on recommendation of the Public Entity.
46.Complaint and Review	46.1 If a Bidder dissatisfies with the Procurement proceedings or the decision made by the Purchaser in opening of the price bid or the intention to award the Contract, it may file an application to the Chief of the concerning Public Entity of the Purchaser within seven (7) days of providing the notice under ITB 27.8 and ITB 43.1 by the Public Entity, for review of the proceedings stating the factual and legal grounds.

	46.2 An application filed after the deadline pursuant ITB 46.1 shall not be processed. 46.3 The chief of Public Entity of the Purchaser shall, within five (5) days after receiving the application, give its decision with reasons, in writing pursuant to ITB 46.1: (a) whether to suspend the procurement proceeding and the procedure for further proceedings to be adopted; or (b) whether or not to reject a application. No application can be submitted before the Review Committee for review against the decision made by the chief of the Public Entity for the Bid amount up to the value ***as stated in BDS*.** 46.4 If the Bidder is not satisfied with the decision of the Public Entity in accordance with ITB 46.3, or the decision by the Public Entity is not given within five (5) days of receipt of application pursuant to ITB 46.1, it can, within seven (7) days of receipt of such decision, file an application to the Review Committee of the GoN, stating the reason of its disagreement on the decision of the chief of Public Entity and furnishing the relevant documents, provided that its Bid amount is above the amount as stated in ITB 46.3. The application may be sent by hand, or by post, or by courier, or by electronic media at the risk of the Bidder itself. 46.5 Late application filed after the deadline pursuant to ITB 46.4 shall not be processed. 46.6 Within three (3) days of the receipt of application from the Bidder, pursuant to ITB 46.4, the Review Committee shall notify the concerning Public Entity of the Purchaser to furnish its procurement proceedings and comments on the issue, pursuant to ITB 46.3. 46.7 Within three (3) days of receipt of the notification pursuant to ITB 46.6, the Public Entity shall furnish the copy of the related documents along with its comment or reaction of complaint to the Review Committee. 46.8 The Review Committee, after inquiring from the Bidder and the Public Entity, if needed, shall give its decision within one (1) month after receiving the application filed by the Bidder, pursuant to ITB 46.4. 46.9 The Bidder, filing application pursuant to ITB 46.4, shall have to furnish a cash amount or Bank guarantee from Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law ***as stated in BDS*** with the validity period of at least ninety (90) days from the date of the filing of application pursuant to ITB 46.4. Application filed without furnishing the security deposit shall not be processed. 46.10 If the claim made by the Bidder pursuant to ITB 46.4 is justified, the Review Committee shall have to return the security deposit to the applicant, pursuant to ITB 46.9, within seven (7) days of such decision made.

	46.11 If the claim made by the Bidder pursuant to ITB 46.4 is rejected by the Review Committee, the security deposit submitted by the Bidder pursuant to ITB 46.9 shall be forfeited.

Section II. Bid Data Sheet

A. Introduction	
ITB 1.1	The number of the Invitation for Bids (IFB) is: NDCL/CTO/ICB/04/080-81
ITB 1.1	Name of the Purchaser: Nepal Doorsanchar Company Limited (Nepal Telecom) Office of Chief Technical Officer, Central Procurement Department, Central Office, Bhadrakali, Kathmandu, Nepal
ITB 1.1	Name and Identification number of the Contracts: NDCL/CTO/ICB/04/080-81 for Supply, Delivery, Installation, Testing and Commissioning of FTTH OLT, EMS and its Accessories
ITB 2.1	***DP Funded: "Not Applicable"*** Source of Fund: ***Nepal Telecom's own Fund***
ITB 4.1	Bidders from the following countries are not eligible: ***"Not Applicable"***
ITB 4.2	**a. <u>Participation in Consortium:</u>** Bidder may submit Bid in consortium. If the Bidder is a Consortium, all of the parties shall be jointly and severally liable to the Nepal Telecom for the fulfillment of the provisions of the Contract and shall designate one party to act as a leader with authority to bind the Consortium. A bidder can submit only one bid either as a partner of the Consortium or individually. The Consortium agreement among all the members shall be submitted. The agreement shall include roles and responsibilities of all the members. The composition Consortium shall not be altered without the prior consent of the Purchaser. Refer to Section III: "Evaluation and Qualification Criteria (EQC)" Consortium should be registered in Inland Revenue Department or Office on or before the Contract Signing. **b. <u>Bidding on behalf of a Principal Company:</u>** In case of Nepali Company submitting bid proposal on behalf of a Principal Company (Manufacturer/ Bidder other than Nepalese): i. The Bidder (Principal Company) shall furnish Power of Attorney to Nepalese Company to submit a Bid. ii. The Bidder (Principal Company) shall quote the prices as stated in clause ITB 15.
ITB 4.2	Maximum number of partner in a joint venture shall be : ***3 (Three)***
ITB 4.4	A list of debarred firms is available at http://www.ppmo.gov.np

ITB 4.9	The foreign Bidder at the time of bid submission: ▪ shall submit Certificate of Incorporation/Certificate of Registration ▪ shall declare to submit at the time of contract agreement [PAN and VAT Certificates at the time of contract/ before opening L/C] ▪ Resident foreign bidder shall submit: PAN/VAT certificate and tax clearance certificate at the time of bid submission. ▪ The foreign Bidder responsible for Services to be rendered inside Nepal shall declare to submit PAN and VAT Certificates at the time of contract before of opening L/C
ITB 5.1	Goods and related services to be supplied from following countries are not eligible: ***"Not Applicable"***
B. Bidding Document	
ITB 8.1	For **clarification purposes** only, the Purchaser's address is: Attention: Chief Technical Officer Name: Nepal Telecom, Central Procurement Department, Office of Chief Technical Officer, Central Office Address: Bhadrakali, Kathmandu, Nepal Tel. No. : +977 1 4210309 Electronic Mail Address: procurement@ntc.net.np
ITB 8.1	The purchaser will respond in writing to any request for clarification provided that such request is received no later than 15 days prior to the deadline date for submission of bid. Purchaser, may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective bidder, may issue clarification and corrections seven (7) days prior to the deadline for the submission of bids. Non submission of queries within the time stipulated as above shall be considered as acceptance by Bidder for all the Tender Document's terms and conditions as interpreted by **Nepal Telecom**.
ITB 8.2	A Pre-Bid meeting : **Not Applicable**
C. Preparation of Bids	
ITB 11.1	The language of the Bid is: English
ITB 12.2 (h)	The Bidder shall submit the following additional documents with its Bid: i. Self-declaration letter of authenticity of submitted documents ii. Seal and Sign on each and every Pages of bid document with Compliance Statement on each and every clause of technical specification. iii. Letter stating that the bidder is not under a declaration of blacklisted or ineligibility for corrupt and fraudulent practices issued by Government of Nepal.

	iv. Letter stating that the bidder is not having and not plan to have ownership with competitors of Nepal Telecom in Nepal until the completion of all the contractual obligations. v. Detailed BOQ/BOM of Goods as per schedule of requirement. This shall include the country of origin, manufacturer of goods, make/model without any price related information.
ITB 12.3 (c)	The Bidder shall submit with its Price Bid the following additional documents: "Not Applicable".
ITB 14.1	Alternative Bids ***"shall not be"*** permitted.
ITB 15.6	The Incoterms edition is ***"Incoterms 2020"*.**
ITB 15.7 (a) iii, (b) ii & (c) v	Final Destination (Project Site): Nepal Doorsanchar Company Limited, WCSD's **Central Store, Chhauni.**
ITB 15.7 (b) i	For Goods offered from outside the Purchaser's country, the Bidder shall quote prices using the following Incoterm: CIP Customs entry points for FTTH OLTs and Accessories are India/Nepal border of Jogbani/Biratnagar, Raxaul/Birgunj, Raxaul/Sirsiya, Sunauli/Bhairahawa, Rupadiya/Nepalgunj, Gaurifanta/Dhangadhi and China/Nepal border of Zhangmu (Khasa)/Tatopani, Keyrong/Rasuwa (Timure). Lot I Part A Equipment shall be delivered by air shipment. All the prices of services to be rendered in Nepal, including inland transportation cost shall be inclusive of taxes/ duties such as VAT, etc. applicable in Nepal
ITB 15.7	**a) <u>The Bidders from Nepal (If applicable for this bidding):</u>** The Bidders from Nepal shall quote the price in Nepali Currency. The price shall be inclusive of all taxes/duties such as VAT, Customs Duties, and Security Tax etc. applicable in Nepal. Such Bidder shall submit up to date firm/ company registration certificate and tax clearance certificate from Government of Nepal. **b) <u>The Bidder from outside Nepal:</u>** The bidder from outside Nepal shall quote for goods in US$ or EURO. The prices shall be exclusive of taxes/duties such as VAT, Customs Duties, and Security Tax etc. applicable in Nepal. The Bidder from outside Nepal shall quote in Nepalese Rupees for the Inland Transportation and the price shall be inclusive of VAT applicable in Nepal. The Bidder from outside Nepal, if wishes to supply goods and services with Nepal as country of origin or wishes to quote in Nepalese Currency fully or partially, shall quote in Nepalese Currency. This price shall be inclusive of taxes/duties such as VAT, Local Development Tax, Customs Duties, and Security Tax etc. applicable in Nepal. Such Bidder shall submit Tax Invoice with VAT number.

	c) **Service to be rendered inside Nepal:** All the prices of services to be rendered in Nepal, including inland transportation, cost shall be inclusive of taxes/ duties such as VAT, Local Development Tax, Customs Duties, and Security Tax etc. applicable in Nepal If the Bidder is other than Nepalese Bidder (If applicable for this bidding), the Bidder shall submit VAT Registration Certificate issued by Nepal Government before or at the signing of the Contract. The bidder may authorize any other service provider (Manufacturer/ Subsidiary/ Local Partner/ Local Agent/ Consortium Member) to provide the service in Nepal. However, such other service provider (Manufacturer/ Subsidiary/ Local Partner/ Local agent/ Consortium Member) shall submit VAT Registration Certificate from Nepal Government. If the Supplier quotes in currency other than the Nepalese Rupees for the services to be rendered inside Nepal, the price shall be considered to be inclusive of VAT. In such a case all the prices quoted in foreign currency for the services to be rendered inside Nepal shall be converted to Nepalese Rupees applying the exchange rate of the Bid Opening Date at the time of signing of Contract. d) **Service to be rendered outside Nepal:** The Bidder from outside Nepal shall quote in US$ or EURO for services to be rendered outside Nepal. In such a case, price shall be exclusive of VAT. The Bidder from outside Nepal may quote in NPR for the services to be rendered outside Nepal. In such a case the price shall be inclusive of VAT. The Bidder shall be responsible to pay withholding tax (TDS – Tax Deduction at Source) as per the Income tax law of Nepal applicable at the time of the payment.
ITB 15.7 (b) iii	In addition to the CIP prices specified in (b)(i) above, the price of the Goods to be imported may be quoted FOB port of shipment : "***Not applicable***"
ITB 15.8	The prices quoted by the Bidder shall not be adjustable.
ITB 18.3	Period of time the Goods are expected to be functioning: (for the purpose of spare parts): **Seven (7) years from the completion of warranty period.** **Price Validity:** The quoted unit prices shall remain valid until Seven **(7) years** from the date of completion of **Warranty Period** as mentioned in the GCC and SCC and applicable in all subsequent purchases on later dates within or after the warranty period.
ITB 19.2	Manufacturer's Authorization Letter is required. **Manufacturer's Authorization:**

	The bidder for this tender shall be a manufacturer of **FTTH OLT**. The Bidder shall provide the proof of being the manufacturer in the form of Registrations certificates from the concerned authority and company profile. If the bidder itself claims to be the manufacturer of the offered goods, such bidder shall provide the proof of being the manufacturer and need not provide the authorization for the offered goods it manufactures. Or, The Bidder shall be a firm/company authorized by the manufacturer of the offered **FTTH OLT** to participate in the bidding process. **The bidder shall submit manufacturer authorization from the manufacturers along with the bid. Manufacturer's Authorization Letter shall be in the format as specified in Section IV: Bidding Forms.** Manufacturer's Authorization Letter shall be in format as specified in Section IV. **If the bidder is not the manufacturer of the offered goods, non-**submission **of Manufacturer's Authorization Letter for the bidding from the Manufacturer shall result in rejection of the bid.** In addition to above documents, Nepalese Bidder shall submit up to date firm/Company registration certificate, Tax clearance certificate, and VAT Registration Certificate from Government of Nepal along with Bid proposal.
ITB 19.3	The Bidder is required to include with its bid, evidence that it will be represented by an Agent in Nepal for after sales service. **After sales service** includes "**Warranty and Extended Warranty Service**" mentioned in Section V: Schedule of Requirement. The bidder shall incorporate all costs in the quoted "Services" and "Goods" in SOP for compatibility of offered FTTH OLT, EMS and its Accessories with any other third-party Equipment during commissioning period and in "after sales service" period. After sales service is: Refer to Warranty, Extended Warranty in Technical Specification.
ITB 20.1	The bid validity period shall be 120 days.
ITB 20.2	**If due to certain reasons, bid** submission **date is extended the validity of the bid shall be extended accordingly without which bid shall be rejected.** The bidder shall extend the bid validity period and Bid security period as per Nepal Telecom's request if notification of Intention of Award and Notification of Award has already been issued during the period of bid validity as per ITB 42. A Bidder shall not be required nor permitted to modify its bid.
ITB 21.1	**<u>A Bid Security is required:</u>** The amount and the currency of the **Bid Security** shall be **NPR 11,852,000.00** (In Words: NPR Eleven Million Eight Hundred Fifty Two Thousand only) or **USD 90,130.00** (In Words: US Dollars Ninety Thousand One Hundred Thirty only) which shall be valid for minimum 30 days beyond the bid validity period (i.e. valid at least up to 15 March 2024).

<table>
<tr><td></td><td></td></tr>
<tr><td>ITB 21.2</td><td>If the Bidder wishes to submit the Bid Security in the form of cash, the cash should be deposited in the account number of the following bank:
<table>
<tr><th>Currency</th><th>For NPR</th><th>For USD</th></tr>
<tr><td>Account Name</td><td>Nepal Doorsanchar Company Limited</td><td>Nepal Doorsanchar Company Limited</td></tr>
<tr><td>Name of Bank:</td><td>NMB Bank Ltd. Head Office Babarmahal, Kathmandu, Nepal</td><td>Standard Chartered Bank Nepal Limited, New Baneshwor, Kathmandu, Nepal</td></tr>
<tr><td>A/C No.:</td><td>0010001373900349</td><td>01041562652</td></tr>
<tr><td>Swift Code</td><td>NMBBNPKA</td><td>SCBLNPKA</td></tr>
</table>
and submit the receipt of the deposited amount of cash along with the bid.

Bidders are requested to deposit sufficient amount including respective bank charges so that the net amount as mentioned above and shall be deposited in account of purchaser.

or
If the Bidder wishes to submit the Bid Security in the form of unconditional bank guarantee, the bidder should submit the original copy of the guarantee along with the bid. The format of Bid Security shall be as specified in Section IV: Bidding Forms.
Bid Security issued by foreign Bank must be counter– guaranteed by a "A" class commercial Bank in Nepal.

In case of consortium, the Bid Security, on behalf of consortium shall be submitted by the member of consortium designated by consortium for the submission of the Bid Security.</td></tr>
<tr><td>ITB 22.2</td><td>The written confirmation of Authorization to sign on behalf of the Bidder shall consist of: Power of Attorney to sign the bid</td></tr>
<tr><td colspan="2">D. Submission and Opening of Bids</td></tr>
<tr><td>ITB 23.1</td><td>Bidders shall submit-their bids "by electronic only".</td></tr>
<tr><td>ITB 23.1</td><td>Bid documents will be available in Purchaser's eGP portal (PDF Format). The bidders may submit their bid through e-submission which is available in e-GP web portal (e-bidding) at www.bolpatra.gov.np/egp .</td></tr>
<tr><td>ITB 24.1</td><td>For bid submission purposes only, the Purchaser’s address is: Nepal Telecom, Central Procurement Department, Office of Chief Technical Officer, Central Office, Kathmandu, Nepal</td></tr>
<tr><td>ITB 24.1</td><td>The deadline for bid submission is:</td></tr>
</table>

	Date: 17 October 2023 Time: 12 Noon
ITB 24.1	If the last date of purchasing, submission and opening of Bid falls on a government holiday then the next working day shall be considered as the last day without any change in the time and place as fixed.
ITB 27.1	The bid opening shall take place at: Date: 17 October , 2023 Time: 1:00 PM Place: Nepal Telecom, Central Procurement Department, Office of Chief Technical Officer, Central Office
E. Evaluation and Comparison of Bids	
ITB 37.1	The date for the selling exchange rate shall be the date of bid opening i.e. 17 October, 2023
ITB 38.1	Domestic preference: "Not Applicable"
ITB 39.3 (a)	If a Price Schedule shows items listed but not priced, their prices shall be assumed to be included in the prices of other items. An item not listed in the Price Schedule shall be assumed to be not included in the bid, and provided that the bid is substantially responsive, the average price of the item quoted by substantially responsive bidders will be added to the bid price and the equivalent total cost of the bid so determined will be used for price comparison.
ITB 39.3 (e)	" Adjustment is not applicable"
F. Award of Contract	
ITB 42.1	The maximum percentage by which quantities may be increased is: 15% The maximum percentage by which quantities may be decreased is: 15%
ITB 46.3	No application can be submitted before the Review Committee for review against the decision made by the chief of the Public Entity for the bid amount less than the value of Twenty Million (NRs. 20,000,000)
ITB 46.9	The bidder,filling application pursuant to ITB 46.4, shall have to furnih a cash amount ot Bank guarantee equal to ten percent (10 %) of amount of bid security in case of complaint against decision pursuant to ITB 27.8 and one percent (1%) of its quoted Bid amount in case of complaint against decision pursuant to ITB 43.1

Section III. Evaluation and Qualification Criteria

The purpose of the Evaluation and Qualification Criteria (EQC) is to specify the criteria that the Purchaser will use to evaluate the Bids to determine the lowest evaluated substantially responsive bid and post-qualify the lowest-evaluated Bidder. The Purchaser must prepare the EQC and include it as a part of the Bidding Document. The EQC is not a Contract document and, therefore, it is not a part of the Contract.

Table of Criteria

1. Evaluation Criteria

1.1Technical Criteria

1.2Domestic Preference

1.3Economic Criteria

1.4Multiple Contracts

1.5 Unit Price Inter-head absorption

2. Qualification Criteria

Evaluation Criteria

1.1 Technical Criteria

These criteria should specify the minimum technical level that the Goods and Related Services shall have in order to comply with the Section V. Schedule of Requirements. Whenever possible, these criteria should be evaluated on a pass–fail system, with a minimum acceptable level for each criteria enumerated.

However, a minor deficiency in technical compliance may not be cause for rejection of the Bid. The cost of making good any deficiency should likewise be added to the Bid Price concerned. The most frequently used methods assign to the non-conforming items or components, prices based on similar methods described above under Scope, with the price of the nonconforming items or components deducted.

The cost of all quantifiable deviations or deficiencies from the technical requirements as specified in Section V. Schedule of Requirements shall be evaluated. Nepal Telecom will make its own assessment of the cost of these deviations or deficiencies for the purpose of ensuring fair comparison of Bids.

Technical Specification's evaluation shall be based on clause by clause compliance statements, comments on Technical Specifications of Section V, technical details, technical proposal, catalogues, brochures, Form Spec-1, etc. furnished by each bidder. During evaluation, all the bids are examined in order to verify whether the specifications, offered quantity and capacity meet the requirement of Section V: "Schedule of Requirements" of bidding document and if the quantity and capacity is insufficient, adjustment of goods shall be done. The bidder needs to provide the details of the Technical Specifications, Bill of Materials (BoM)/ Bill of Quantity (BoQ) based on Section V Schedule of Requirements. If the offered quantity and Capacity is insufficient to meet the requirements of Section V Schedule of Requirement, the loading for insufficient quantity/capacity shall be carried out. If major items, without which the purpose of bidding will not be fulfilled, are missing, the bid shall be considered non-responsive and shall be rejected.

The Technical Specifications, BoQ/BoM shall not include any financial information related to price/Price bid in Technical Bid. A Technical Bid containing such material financial information shall be declared non-responsive.

If the loading of quantity/capacity is made during technical bid evaluation, the corresponding cost of price adjustment shall be carried out at the time Price Bid Evaluation. The cost of adjustment shall be used for financial comparison during the Price Bid Evaluation.

1.2 Domestic Preference –"Not Applicable"

If the BDS so specifies, the Procuring Entity will grant a margin of preference to goods manufactured in Nepal. The nationality of the manufacturer or supplier is not a condition for such eligibility. The methods and stages set forth hereunder shall be followed in the evaluation and comparison of bids.

For comparison, responsive bids shall be classified in one of the following three groups:

(a) **Group A:** bids exclusively offering goods manufactured in for which (i) labor, raw material, and component from within Nepal account for 30 percent or more of the EXW price of the product offered, and (ii) the production facility in which those goods will be manufactured or assembled has been engaged in manufacturing/ assembling such goods at least since the time of bid submission.

(b) **Group B:** all other bids offering goods manufactured in Nepal.

(c) **Group C:** bids offering goods manufactured outside Nepal that have been already imported or that will be directly imported.

The '**Method B**' is applicable as mentioned below.

1.2.1 Method A

1. The price quoted for goods in bids of groups A and B shall include all duties and taxes paid or payable on the basic materials or component purchased in the domestic market or imported but shall exclude the value added tax and similar taxes on the finished product. The price quoted for goods in bids of group C shall be on CIP (place of destination), which is exclusive of customs duties and other import taxes already paid or to be paid.
2. In the first step, all evaluated bids in each group shall be compared to determine the lowest bid in each group. Such lowest evaluated bids shall be compared with each other and if, as a result of this comparison, a bid from group A or group B is the lowest, it shall be selected for the award.
3. If as a result of the comparison under paragraph three above, the lowest evaluated bid is a bid from group C, the lowest evaluated bid from group C shall be further compared with the lowest evaluated bid from group A after adding to the evaluated price of goods offered in the bid from group C, for the purpose of this further comparison only, an amount equal to fifteen (15%) percent of the CIP bid price. The lowest evaluated bid determined from this last comparison shall be selected.

1.2.1 Method B

1. In supply, delivery and installation contracts in which there are a number of items of Goods and Related Services, a margin of preference shall be granted to eligible domestically produced Goods in accordance with the following provisions.

   (a) The preference margin shall not be applied to the whole package but only to the eligible domestically produced Goods within the package;

   (b) Goods offered from outside Nepal shall be quoted CIF or CIP (place of destination), which is exclusive of customs duties and other import taxes already paid or to be paid; and Goods offered locally shall be quoted EXW (ex-works free of sales and similar taxes) which shall include all duties and taxes paid or payable on the basic materials or component purchased in the domestic market or

imported, but shall exclude the value added tax and similar taxes on the finished product

(c) all other cost components for services and works such as costs for local handling, transportation, storage, installation, and commissioning shall be quoted separately;

(d) in the comparison of Bids, only the CIF or CIP price in each Bid of the Goods offered from outside Nepal shall be increased by fifteen (15%) percent;

(e) no margin of preference shall be applied to any associated services or works included in the package; and

(f) Bidders shall not be permitted or required to modify the mix of local and foreign Goods after bid opening.

1.3 Economic Criteria –

Once the bids are considered substantially responsive after detailed technical evaluation, all those responsive bids shall be judged from Financial Evaluation perspective only.

1.3.1 Adjustment for Scope

1.3.1.1 Local Handling and Inland Transportation- "Not Applicable"

1.3.1.2 . Offered Quantity

The offered quantity and capacity are based on the detailed BoM/BoQ provided from the bidder based on Section V Schedule of Requirements and the Price Schedule. If the loading of quantity/capacity is made during technical bid evaluation, the corresponding cost of price adjustment shall be made. If the offered quantity/items are not sufficient to meet the Purchaser's requirement and if the some of the quantity/items are omitted, but they don't constitute material deviation as per above clause 1.1 "Technical Criteria", such quantity/items will be added for the evaluation purpose only and to bring all the bidders in equal footing as per the following sub clauses to fulfill the requirement.

a. Under-Dimensioned (Short) Items

If the offered quantity/capacity is not sufficient to meet the Purchaser's requirement, required quantity will be loaded to fulfill the requirement and price will be adjusted accordingly taking into consideration the offered unit price of the same bidder.

b. Missing (Omission) Items

If some required items of **Price Schedule** are missing in the offer, then the **average price of all responsive bidders for such missing item(s)** will be considered for evaluation purpose and loaded to bring all bidders in equal footing.

c. If small differences are found such as in technical specification, description, feature which does not make the bid to be rejected, then the cost, which is calculated to the extent possible due to such differences, shall be included while evaluating price bid.

d. However, in all the cases of missing/short items mentioned above in (a) , (b) and (c) , all the prices loaded are only for evaluation purpose and if the bidder happens to be a successful

bidder, the Bidder shall provide all the missing/short items mentioned above free of cost to Purchaser.

If the loading amount after performing the loading as per (a), (b), (c) above exceed 15% of the Corrected Bid Price, the bid shall be considered as non-responsive and not considered for evaluation.

e. Absence of Unit Price and Total Price of the Particular Item

If the unit price and the total price of the same item are not quoted, their prices shall be assumed to be included in the prices of other items.

f. If major items, without which the purpose of bidding will not be fulfilled, are missing, the bid shall be considered non-responsive and shall be rejected.

g. Discrepancy in Unit Price in Lots and Phases

Unit Prices of the offered goods, services and inland transportation in all lots/Phases shall be same. In case of discrepancies in the Unit prices, the quoted unit price in respective lots shall be used for evaluation. However, lowest Unit Price among all shall be considered for all lots for the calculation and preparation of final Contract Price if the bidder happens to be the Successful Bidder.

h. Unit Price of Missing Items

In case of missing (omission) items, unit price of such items shall be finalized at the time of signing of Contract without exceeding the average price of the same item of the responsive bidders. The bidder needs to provide these items free of cost to Purchaser.

1.3.2 Adjustment for Deviations from the Terms of Payment: "Not Applicable"

"Deviations from the Terms of Payment as specified in SCC 15.1 are not permitted."

1.3.3 Adjustment for Deviations in the Delivery and Completion Schedule " Not Applicable"

"Deviations from the Delivery and Completion Schedule specified in Section V (Schedule of Requirements) are not permitted."

1.3.4 Operating and Maintenance Costs

Not Applicable

1.3.5 Spare Parts and after Sales Service Facilities

"Not Applicable"

1.3.6 Performance and Productivity of the Goods

Not Applicable

1.3.7 Specific additional Criteria

Not Applicable

1.4 Multiple Contracts –Not Applicable

1.5 Unit Price Inter-head absorption for services

Extended Warranty Service: The bidder shall quote the price for Extended Warranty Service per annum. The quoted cost per annum shall be at least 0.5% of the total cost of Goods.

If the bidder quotes less than the specified percentages, the amount of Extended Warranty Service shall be increased so as to meet the Bid requirement by reducing the unit price of the Goods proportionately at the time of contract.

Note-1: If the bidder quotes differently (less than/more than the percentage) as specified above, loading for evaluation shall not be performed. Only Unit price inter head absorption in accordance with the above provision shall be performed

Note-2: Unit price inter head absorption as per above mentioned provision shall be performed at the time of contract document preparation.

Qualification Criteria

1.1 Eligibility

Criteria	Compliance Requirements				Documents
Requirement	Single Entity	Joint Venture			Submission Requirements
		All Partners Combined	Each Partner	One Partner	
2.1.1 Conflict of Interest					
No conflicts of interest in accordance with ITB 4.3.	Must meet requirement	Must meet requirement	Must meet requirement	Not applicable	Letter of Technical Bid
2.1.2 Government/DP Eligibility					
Not having been declared ineligible by government /DP, as described in ITB Sub-Clause 4.4.	Must meet requirement	Must meet requirement	Must meet requirement	Not applicable	Letter of Technical Bid
2.1.3 Government-Owned Entity					
Bidder required to meet conditions of ITB 4.5.	Must meet requirement	Must meet requirement	Must meet requirement	Not applicable	Letter of Technical Bid; Forms ELI – 1 and ELI - 2
2.1.4 UN Eligibility					
Not having been excluded by an act of compliance with a United Nations Security Council resolution in accordance with ITB 4.7.	Must meet requirement	Must meet requirement	Must meet requirement	Not applicable	Technical Bid Submission Sheet
2.1.5 Nationality					
Nationality in accordance with ITB 4.8.	Must meet requirement	Must meet requirement	Must meet requirement	Not applicable	Letter of Technical Bid; Forms ELI – 1 and ELI – 2 with attachments
2.1.6 Other Eligibility					
Firm Registration Certificate	must meet requirement	not applicable	must meet requirement	not applicable	Document attachment

Business Registration Certificate	must meet requirement	not applicable	must meet requirement	not applicable	Document attachment
VAT and PAN Registration certificate ***(only for domestic bidders)***	must meet requirement	not applicable	must meet requirement	not applicable	Document attachment
Tax Clearance Certificate/Tax return submission evidence/ evidence of time extension for the F/Y 078-79 ***(Only for domestic bidders)***	must meet requirement	not applicable	must meet requirement	not applicable	Document attachment

2.2 Pending Litigation.

Criteria	Compliance Requirements				Documents
Requirement	**Single Entity**	**Joint Venture**			**Submission Requirements**
		All Partners Combined	**Each Partner**	**One Partner**	
All pending litigation, arbitration or other material events impacting the net worth and/or liquidity of the bidder, if any, shall be treated as resolved against the Bidder and so shall in total not represent more than 50 (Fifty) percent of the Bidder's net worth calculated as the difference between total assets and total liabilities.	Must meet requirement	Not applicable	Must meet requirement	Not applicable	Form LIT - 1

2.3 Financial Situation

2.3.1 Historical Financial Performance

Criteria	Compliance Requirements				Documents
Requirement	**Single Entity**	**Joint Venture**			**Submission Requirements**
		All Partners Combined	**Each Partner**	**One Partner**	
Submission of audited balance sheets and income statements for the last three (3) consecutive fiscal years (any three consecutive fiscal years from 2018, 2019, 2020,2021 and 2022) to demonstrate the current soundness of the Bidder's financial position. As a minimum, the Bidder's net worth for the last year calculated as the difference between total assets and total liabilities should be positive.	Must meet requirement	Not applicable	Must meet requirement	Not applicable	Form FIN – 1 And Submission of audited balance sheets and income statements

2.3.2 Average Annual Turnover

Criteria	Compliance Requirements				Documents
Requirement	Single Entity	Joint Venture			Submission Requirements
		All Partners Combined	Each Partner	One Partner	
Minimum average annual turnover of USD 2.75 Million calculated as total payments received by the Bidder for supply contracts completed or under execution over the last three years.	Must meet requirement	Must meet requirement	Must meet 25 % of the requirement	Must meet 40% of the requirement	Form FIN – 2 along with authentic evidence.

2.3.3 Financial Resources

Criteria	Compliance Requirements				Documents
Requirement	Single Entity	Joint Venture			Submission Requirements
		All Partners Combined	Each Partner	One Partner	
The Bidder must demonstrate access to, or availability of, financial resources such as liquid assets unencumbered real assets, and other financial resources, (other than any contractual advance payments) to meet the cash-flow requirement of USD 2.75 Million	Must meet requirement	Must meet requirement	Must meet 25 % of the requirement	Must meet 40 % of the requirement	Form FIN - 3

2.4 Experience

2.4.1 General Experience

Bidder for this bid and General Experience

Criteria	Compliance Requirements		Documents
Requirement	**Single Entity**	**Joint Venture**	**Submission Requirements**
a) Bidder for this bid The bidder for this tender shall be a manufacturer of **FTTH OLT**. The Bidder shall provide the proof of being the manufacturer in the form of Registrations certificates from the concerned authority and company profile. If the bidder itself claims to be the manufacturer of the offered goods, such bidder shall provide the proof of being the manufacturer and need not provide the authorization for the offered goods it manufactures. Or, The Bidder shall be a firm/company authorized by the manufacturer of the offered FTTH OLT to participate in the bidding process. The bidder shall submit manufacturer authorization from the manufacturers along with the bid. Manufacturer's Authorization Letter shall be in the format as specified in Section IV: Bidding Forms. The company profile and certificate of registration/ incorporation of Bidder and Manufacturer shall be submitted along with bid proposal.	Must meet requirement	Must meet requirement	Document Attachment.

Criteria	Compliance Requirements				Documents
Requirement	**Single Entity**	**Joint Venture**			**Submission Requirements**
		All Partners Combined	**Each Partner**	**One Partner**	
b) General Experience Experience under supply contracts in the role of prime supplier (single entity or JV member) or subcontractor for at least the last three (3) years prior to the applications submission deadline.	Must meet requirement	Not applicable	Must meet requirement	Not applicable	Form EXP – 1

2.4.2 Specific Experience

Criteria	Compliance Requirements	Documents

Requirement	Single Entity	Joint Venture			Submission Requirements
		All Partners Combined	Each Partner	One Partner	
Experience under supply contracts in the role of prime supplier (single entity or JV member) or subcontractor in at least one (1) contracts within the last three (3) years, with a value of at least **USD** 2.75 Million (total of all contracts) with nature, and complexity similar to the scope of supply described in Section V (Schedule of Supply).	Must meet requirement	Must meet requirement	Not applicable	Not applicable	EXP – 2

2.4.3 Technical Experience

Criteria	Compliance Requirements		Documents
Requirement	**Single Entity**	**Joint Venture**	**Submission Requirements**
a) Manufacturer's Experience The manufacturer of the **FTTH OLT** shall have been manufacturing for at least five (5) years on tender notice published date. In order to fulfill the requirement of this clause Bidder shall submit Client/user certificates or Authentic certificates from the concerned authorities along with the Bid proposal.	Must meet requirement	Must meet requirement	Form EXP-3 with Document Attachment
b) The proposed **FTTH OLT** has been installed and commissioned in at least 3 (three) Telecom Operators or Internet Service Provider (ISP) and in 2 (Two) countries with at least 24,000 (Twenty- Four thousands) OLT port in at least one (1) Telecom Operator or ISP. The bidder shall submit Authentic user/client certificates from the Telecom operators along with the Bid proposal.	Must meet requirement	Must meet requirement	Form EXP-3 with Document Attachment
c) Equipment Field Proven-ness The offered series/model of **FTTH OLT** must have been in satisfactory operation for a minimum period of at least 1 (one) year at the time of Tender Notice Publish Date. The bidder shall submit Authentic user/client certificates from the Telecom operators/ ISPs along with the Bid proposal	Must meet requirement	Must meet requirement	Form EXP-3 and Document Attachment

Criteria	Compliance Requirements		Documents
Requirement	**Single Entity**	**Joint Venture**	**Submission Requirements**
d) Supply record: The **FTTH OLT** manufactured by the proposed manufacturer shall have been installed and commissioned with a total capacity of at least 30,000 OLT Ports or 2 Million FTTH home pass to telecom operator(s)/ ISP.	Must meet requirement	Must meet requirement	Form EXP-3 and Supply Record Form
e) Bidder as an Integrator's Experience The bidder (the System Integrator firm/company authorized by the manufacturer) shall have experience in the installation of **FTTH OLT and EMS** in at least one telecom operator or ISP in the last three (3) years period at the date of bid opening.	Must meet requirement	Must meet requirement	User/Client Certificate/ Authentic Documents.
f) <u>Quality Assurance Certificate (ISO):</u> The proposed Manufacturer(s) shall be ISO-9000 (Series) certified. ISO-9000 Series Quality Assurance Certificate for manufacturing of the offered FTTH OLT and EMS shall be submitted along with bid proposal. The ISO certificate shall be valid at least upto the tender Notice Publish Date.	Must meet requirement	Must meet requirement	ISO Certificate
g) <u>Back-to-Back agreement (B2B agreement):</u> If the bidder is not the manufacturer, the bidder shall submit B2B Agreement or commitment letter with the manufacturer. The B2B agreement shall include, but not limited to at least commitment for providing the goods as per SOR and technical specifications as per tender document. B2B agreement shall have the agreement for availability of spares during installation, commissioning, warranty and extended warranty period. The B2B agreement shall cover below points: • The manufacturer shall provide technical support during installation, commissioning, integration and during warranty and extended warranty periods. • Nepal Telecom shall have direct access to the manufacturer's Technical Assistance Center (TAC) and Research and Development (R&D) team to raise the tickets for maintenance purposes. **Note:** If bidder wishes to submit the B2B agreement before contract signing, the bidder shall submit a commitment letter. In such a case, if bidder fails to submit the B2B agreement before contract signing, Nepal Telecom shall forfeit the Bid Security.	Must meet requirement	Must meet requirement	B2B Agreement document or Commitment letter for B2B agreement.

2.4.4 Production Capacity (Optional): Not Applicable

Criteria	Compliance Requirements				Documents
Requirement	Single Entity	Joint Venture			Submission Requirements
		All Partners Combined	Each Partner	One Partner	
The Bidder or manufacturer shall demonstrate that it can supply the type, size, and quantity of the goods as required by Purchaser in accordance with the Delivery and Completion Schedule in Section V (Schedule of Supply).	Must meet requirement	Must meet requirement	Not applicable	Not applicable	Form EXP – 4

Note:

- If the Bidder submits bid on behalf of a merged company, authentic document regarding the merging shall be submitted along with the bid document. The merged company shall meet the requirement of "Qualification Criteria" (wherever applicable). However, the qualification and field proven-ness of separate companies in such cases will be combined for the purpose of verifying the Bidder's experience criteria as mentioned in "Qualification Criteria" (for the related goods and services only) of. Bid submitted on behalf of amalgamated/acquired companies having independent legal status will be treated separately and shall meet all the requirements mentioned in "Qualification Criteria" individually.

- In case Bidder is global company (Parent/Holding/Branch/Subsidiary Company), the bidder shall individually meet all the requirements as mentioned "Qualification Criteria".
  However, if global bidder wishes, the qualification of the Bidder (branch/subsidiary company) and qualification of Bidder's Parent/Holding companies and their equipment will also be combined for the purpose of verifying the criteria of "Qualification Criteria".

  In the cases mentioned above a letter from the Head Quarter (Parent/Holding Company) with the following information shall be submitted along with the bid:

  a) Authorization to the branch/subsidiary whose product is being offered to submit and sign the bid

  b) Company Structure showing the relationship between Parent/Holding/Branch/Subsidiary Companies

- **Nepal Telecom's Right to verify the Authenticity of the submitted documents**

  Bidder shall submit certificates with the letter head of the issuing authority duly signed with date by the authorized person, stamped with official seal and with name, designation of the signatory in the letter regarding Bidder's/Manufacturer's experience and field proven-ness as mentioned as and where in this Bid document. All the documents written in the language other than English language shall be followed by English translations. Translation shall be done by authorized institution/Agency/ Concerned Embassy in Nepal.

  Nepal Telecom reserves the right to verify the authenticity of the certificates and satisfactory operation of the equipment supplied by the bidder in other administrations. The bidder shall provide the name with his/her designation, Company, email, telephone number and fax number of the contact persons of operators and/or the concerned authority, issuing the certificates in order for Nepal Telecom to verify the authenticity or seek clarification of the submitted certificates if necessary. The bidder shall bear the responsibility of providing response from the concerned

authority if verification of submitted certificate is required. If there is no response from the mentioned contact person and if the information mentioned in the certificate is found to be not true, the certificate shall be considered invalid.

End of Section III

Section IV. Bidding Forms

Letter of Technical Bid

(The Bidder shall accomplish the** Letter of Technical Bid **in its Letter Head Clearly showing the Bidders Complete name and address.)

Date: _____

Contract No.: _____

Invitation for Bid No.: _____

To: _____

We, the undersigned, declare that:

(a) We have examined and have no reservations to the Bidding Document, including Addenda issued in accordance with Instructions to Bidders (ITB) Clause 9.

(b) We offer to supply in conformity with the Bidding Document and in accordance with the delivery schedule specified in the Section V (Schedule of Requirements), the following Goods and Related Services: ***[insert a brief description of the goods and related services]***

(c) Our Bid consisting of the Technical Bid and the Price Bid shall be valid for a period of ….. ***[insert validity period as specified in ITB 20.1 of the BDS]*** days from the date fixed for the bid submission deadline in accordance with the Bidding Document, and it shall remain binding upon us and may be accepted at any time before the expiration of that period;

(d) Our firm, including any subcontractors or suppliers for any part of the Contract, have nationalities from eligible countries in accordance with ITB 4.8 and meet the requirements of ITB 3.4 & 3.5

(e) We are not participating, as a Bidder or as a subcontractor/supplier, in more than one Bid in this bidding process in accordance with ITB 4.3(e), other than alternative Bids in accordance with ITB 14;

(f) Our firm, its affiliates or subsidiaries, including any Subcontractors or Suppliers for any part of the contract, has not been declared ineligible by DP, under the Purchaser's country laws or official regulations or by an act of compliance with a decision of the United Nations Security Council;

(g) We are not a government owned entity/We are a government owned entity but meet the

requirements of ITB 4.5;

(h) We declare that, we including any subcontractors or suppliers for any part of the contract do not have any conflict of interest in accordance with ITB 4.3 and we have not been punished for an offense relating to the concerned profession or business.

(i) The following commissions, gratuities, or fees, if any, have been paid or are to be paid with respect to the bidding process or execution of the Contract:

Name of Recipient	Address	Reason	Amount
_____	_____	_____	_____
_____	_____	_____	_____

(If none has been paid or is to be paid, indicate "none.")

(j) We declare that we are solely responsible for the authenticity of the documents submitted by us. The document and information submitted by us are true and correct. If any document/information given is found to be concealed at a later date, we shall accept any legal actions by the purchaser.

(k) We agree to permit GoN/DP or its representative to inspect our accounts and records and other documents relating to the bid submission and to have them audited by auditors appointed by the GoN/DP.

Name _____

In the capacity of _____

Signed _____

Duly authorized to sign the Bid for and on behalf of _____

Date _____

Letter of Price Bid

The Bidder must accomplish the Letter of Price Bid in its letterhead clearly showing the Bidder's complete name and address.

Date: .....

Name of the contract: .....

Invitation for Bid No.: .....

To:…….

We, the undersigned, declare that:

(a) We have examined and have no reservations to the Bidding Documents, including Addenda issued in accordance with Instructions to Bidders (ITB) Clause 9;

(b) We offer to supply in conformity with the Bidding Document and in accordance with the delivery schedule specified in the **Section V (**Schedule of Requirements**)**, the following Goods and Related Services: ***[insert a brief description of the goods and related services]***

(c) The total price of our Bid, excluding any discounts offered in item (d) below, is:

[Incase of only one lot/package, insert the total Bid Price in words and figures];

[Incase of multiple lots/packages, insert the total price of each lot/package]

(d) The discounts offered and the methodology for their application are:

The discounts offered are: ***[specify in detail each discount offered]***

The exact method of calculations to determine the net price after application of discounts is shown below: ***[specify in detail the method that shall be used to apply the discounts]***;

(e) Our bid shall be valid for a period of ***[insert validity period as specified in ITB 20.1]*** days from the date fixed for the bid submission deadline in accordance with the Bidding Documents, and it shall remain binding upon us and may be accepted at any time before the expiration of that period;

(f) If our bid is accepted, we commit to obtain a performance security in accordance with the Bidding Document;

(g) We understand that this bid, together with your written acceptance thereof included in your

notification of award, shall constitute a binding contract between us, until a formal contract is prepared and executed;

(h) We understand that you are not bound to accept the lowest evaluated bid or any other bid that you may receive;

(i) We agree to permit the Employer/DP or its representative to inspect our accounts and records and other documents relating to the bid submission and to have them audited by auditors appointed by the Employer.

(j) We confirm and stand by our commitments and other declarations made in connection with the submission of our Letter of Technical Bid.

Name: .....

In the capacity of.....

Signed ……...

Duly authorized to sign the Bid for and on behalf of……

Date……....

ELI-1: Bidder's Information Form

[The Bidder shall fill in this Form. No alterations to its format shall be permitted and no substitutions shall be accepted.]

1.	Bidder's Legal Name:	***[insert full name]***
2.	In case of JV, legal name of the representative member and of each member:	***[insert full name of each member in the JV and specify the representative member]***
3	Bidder's Country of Registration:	***[insert country of registration]***
4.	Bidder's Year of Registration:	***[insert year of incorporation]***
5.	Bidder's Legal Address in Country of Registration	***[insert street/number/town or city/country]***
6.	Bidder's trading address:	***[insert street/number/town or city/country]***
7.	Bidder's Telephone/Fax numbers:	***[insert telephone/fax numbers, including country and city codes]***
8.	Bidder's Email Address:	***[insert email address]***
9.	Bidder's Authorized Representative Information:	
	Name:	***[insert full name]***
	Address:	***[insert street/number/town or city/country]***
	Telephone/Fax numbers:	***[insert telephone/fax numbers, including country and city codes]***
	Email Address:	***[insert email address]***

Attached are copies of the following documents:

1. In case of a single entity, articles of incorporation or constitution and company incorporation/registration of the legal entity named above, in accordance with ITB 4.2 and ITB 4.8
2. Authorization to represent the firm or Joint Venture named above, in accordance with ITB 22.2
3. In case of a Joint Venture, a letter of intent to form a Joint Venture or Joint Venture agreement, in accordance with ITB 4.2
4. In case of a government-owned enterprise, any additional documents not covered under 1 above required to comply with ITB 4.5

ELI-2: Joint Venture Information Form

Each member of the Joint Venture must fill out this form separately to provide information relating to each JV member.

1.	**Bidder's legal name:**	***[insert full name]***
2.	Joint Venture Partner's legal name:	***[insert full name of Joint Venture Partner]***
3.	Joint Venture Partner's Country of Registration:	***[insert country of registration]***
4.	Joint Venture Partner's Legal Address in Country of Registration:	***[insert street/number/town or city/country]***
5.	Joint Venture Partner's Trading address	***[insert street/number/town or city/country]***
6.	Joint Venture Partner's Year of Registration:	***[insert year of registration]***
7.	Joint Venture Partner's Telephone/Fax numbers:	***[insert telephone/fax numbers, including country and city codes]***
8.	Joint Venture Partner's Email Address:	***[insert email address]***
9.	Joint Venture Partner's Authorized Representative Information:	
	Name:	***[insert full name]***
	Address:	***[insert street/number/town or city/country]***
	Telephone/Fax numbers:	***[insert telephone/fax numbers, including country and city codes]***
	Email Address:	***[insert email address]***
1. Articles of incorporation or constitution and company incorporation/registration of the legal entity named above, in accordance with ITB ITB 4.2 and ITB 4.8 2. Authorization to represent the firm named above, in accordance with ITB 22.2 3. In the case of a government-owned enterprise, documents establishing legal and financial autonomy and compliance with commercial law, in accordance with ITB 4.5		

Form LIT 1: Pending Litigation Form

Each Bidder or member of a JV must fill in this form

Choose one of the following:

- No pending litigation, arbitration or any other material events impacting the net worth and/or liquidity of the bidder.
- Below is a description of all pending litigation, arbitration involving the Bidder or any other material events impacting the net worth and/or liquidity of the bidder (or each Joint Venture partner if Bidder is a Joint Venture).

Year	Matter in Dispute	Value of Pending Claim in NRs	Value of Pending Claim as a Percentage of Net Worth
[insert year]	• Contract Identification***: [indicate complete Contract name, number, and any other identification]*** • Name of Purchaser: ***[insert full name]*** • Address of Purchaser: ***[insert street/city/country]*** • Matter in dispute: ***[indicate main issues in dispute]*** • Party who initiated the dispute: ***[indicate "Purchaser" or "Supplier"]*** • Status of dispute: ***[indicate if it is being treated by under Arbitration or being dealt with by the Judiciary]***	***[insert amount]***	***[insert amount]***

Form FIN-1: Financial Situation Form

Each Bidder must fill out this form.

In case of a Joint Venture, each Joint Venture Partner must fill out this form separately and provide the Joint Venture Partner's name:

Joint Venture Partner: ***[Insert Name of Joint Venture Partner]***

Financial Data for Previous …….Years (in NRs)		
Year 1:	**Year 2:**	**Year …..:**

Information from Balance Sheet

Total Assets (TA)			
Total Liabilities (TL)			
Net Worth = TA-TL			
Current Assets (CA)			
Current Liabilities (CL)			
Working Capital = CA-CL			

Information from Income Statement

Total Revenues			
Profits Before Taxes			
Profits After Taxes			

❑ Attached are copies of financial statements (balance sheets including all related notes, and income statements) for number of years, as indicated above, complying with the following conditions:

- All such documents reflect the standalone financial situation of the legal entity or entities comprising the Bidder and not the Bidder's parent companies, subsidiaries, or affiliates.
- Historic financial statements must be audited by a certified accountant.
- Historic financial statements must be complete, including all notes to the financial statements.
- Historic financial statements must correspond to accounting periods already completed and audited (no statements for partial periods shall be requested or accepted).

Form FIN-2: Average Annual Turnover Form

Each Bidder must fill out this form.

The information supplied should be the Annual Turnover of the Bidder or each partner of a Joint Venture in terms of the amounts billed to clients for each year for work in progress or completed to NRs at the end of the period reported.

In case of a Joint Venture, each Joint Venture Partner must fill out this form separately and provide the Joint Venture Partner's name:

Joint Venture Partner: ***[Insert Name of Joint Venture Partner]***

Annual Turnover Data for the Last…… Years	
Year	**Amount (in USD)**
Average Annual Turnover	

Form FIN-3: Financial Resources Form

Specify proposed sources of financing, such as liquid assets, unencumbered real assets, and other financial means (other than any contractual advance payments) available to meet the total cash flow requirements of the subject contract

Financial Resources		
No.	**Source of financing**	**Amount (in USD/ NRS)**
1		
2		
3		

Form EXP-1: General Experience

[The following table shall be filled in for the Bidder and for each member of a JV. Each contract shall be supported by Signed Contract Agreement or any other relevant evidence.]

[Identify contracts that demonstrate continuous supply over the past [number] years. List contracts chronologically, according to their commencement (starting) dates.]

General Experience			
Starting Year	**Ending Year**	**Contract Identification**	**Role of Bidder**
[indicate year]	***[indicate year]***	• Contract name: ***[insert full name]*** • Brief description of the supply performed by the Bidder: ***[describe supply performed briefly]*** • Amount of contract: ***[insert amount]*** • Name of Purchaser: ***[indicate full name]*** • Address: ***[indicate street/number/town or city/country]***	***[insert "Prime Supplier"(Single entity or JV member) or "Subcontractor"]***

Form EXP-2: Specific Experience Form

[The following table shall be filled in for contracts performed by the Bidder and by each member of a JV. Each contract shall be supported by Signed Contract Agreement or any other relevant evidence.]

Contract of Similar Nature			
Item	**Information**		
Contract Identification	***[insert contract name and reference identification number, if applicable]***		
Award date	***[insert day, month, year, e.g., 10 January, 2022]***		
Completion date	***[insert day, month, year, e.g., 12 July, 2022]***		
Role in Contract ***[check the appropriate box]***	Prime supplier		Sub contractor ☐
	Single entity ☐	JV Member ☐	
Total Contract amount	***[insert total contract amount]***		***[Insert Currency]***
Description of the contract performed by the Bidder	***[Insert brief description of contract to justify similarity]***		
If partner in a JV or subcontractor, specify participation of total Contract amount	***[Insert percent of total]***		***[Insert Amount]***
Purchaser's Name:	***[Insert full name]***		
Purchaser's Address:	***[indicate street / number / town or city / country]***		
Purchaser's Telephone/fax number:	***[insert telephone/fax numbers, including country and city area codes]***		
Purchaser's E-mail:	***[insert E-mail address, if available]***		

The Bidder shall complete this form for each contract completed.

Form EXP - 3: Technical Experience

Fill out one (1) form per contract. Each form shall be supported by Signed Contract Agreement or any other relevant evidence.

Technical Experience				
Name of Product				
Manufacturer:		Address and Nationality:		
(i) Product has been in production for at least. . . . . years.	Description of Goods	Year of Production		Number of units produced
	[insert description of Goods]	*[insert years]*		*[insert number]*
(ii) Product (or equipment) has been sold a minimum of. . . . . units of similar type and specification over the last three (3) years.	Description of Goods	Year of Production		Number of units that has been sold
	[insert description of Goods]	*[insert years]*		*[insert number]*
(iii) Product has been in operation for a minimum of . . . . . years.	Description of Goods	Number of units that has been sold and years		Details of purchasers
	[insert description of Goods]	*[insert number]*	*[insert year]*	*[insert name, adress (street / number / town or city / country), telephone/fax numbers with country and city code, email adresses if available]*
(iv) manufacturer must have a manufacturing experience of ……. years	Description of Goods	Number of units that has been sold and years		Documentry Evidence
	[Lithium Ion Battery]	*[insert number]*	*[insert year]*	

Note:

- *Non-submission of user certificates/authentic documentary evidence for above requirement from the bidder shall result in rejection of the bid.*
- *This Form shall be filled as per the requirements of bid document and qualification criteria.*
- *In addition to above requirement, bidder may provide more detailed information by adding rows/columns/ additional information sheets.*

Supply Record Form

S.N.	Description of Product	Country	Quantity	Date of Operation		Purchaser's Name	Purchaser's Country	Address, Name, Tel., Fax, e-mail of the Contact Person
				From (date)	Till (date)			
1								
2								
3								
4								
5								
6								
7								
8								
9								
10								

Form EXP - 4: Production Capacity

Fill out one (1) form per product and manufacturer.

Production Capacity		
Name of Product		
Manufacturer:		**Address and Nationality:**
Production facility 1 (include location):	*[Insert description of goods and production capacity]*	
Production facility 2 (include location):	*[Insert description of goods and production capacity]*	
Production facility 3 (include location):	*[Insert description of goods and production capacity]*	

Form Spec-1: Bidder's proposed Specification Form

The bidder shall fill this form to provide the information on technical specifications and standards of offered goods. Bidder's Proposed Technical Specifications and Standards in column 4 shall comply with the Purchaser Requirement (Specifications and standards) specified by the Purchaser in the Schedule of Requirements.

The bidder shall prepare the technical proposal based on the Section V, Schedule of requirements. Bidder's Technical Proposal will include an assessment of the Bidder's technical capacity features/ functionality for the offered goods and services in accordance with the requirements stipulated in Section V (Schedule of Requirements). The Technical Proposal, Technical Specifications, BoQ/BoM shall not include any financial/price related information in Technical Bid

Item No.	Name of Goods or Related Service	Country of Origin and Brand	Bidder's Proposed TS and Standards	Reference page/ no. / Catalogue page/ no.	Status of compliance
1	**2**	**3**	**4**	**5**	**6**
[insert item No.]	*[insert name]*	*[insert country of Origin and Brand name]*	*[insert TS and Standards]*	*[insert reference page or no. / catalogue page or no. if any]]*	*[insert status]*

Description of Goods/Equipments

The Description of the Goods/Equipment shall be based on the List of Goods in Section V Schedule of Requirement in format below.

SN	Description of Equipment/Goods	Unit	Total Quantity	Country of Origin	Manufacturer	Make and Model
…	…….	…….	…….	…….	……	……
…	…….	…….	…….	…….	……	……

The bidder shall provide Bill of Quantity (BOQ)/ Bill of Material (BoM) in a separate sheet with detail breakdown for each item and its components (if applicable).

Compliance of Technical Specifications

the bidder shall fill compliance (Fully compliance or Partially compliance or Non Compliance statement) in each and every Clauses of Technical specifications of the bid document. Bidder shall provide the detail information justifying the compliance statement with necessary reference/ comments on each and every clause.

User (Client) Certificate/Authentic Documents Information

The User (Client) Certificate shall have at least following information:

(1) The user (Client) certificate/Authentic Documents shall be in official letter head with i) Name of the company, ii) Address of the Company, iii) Telephone, Fax and Web site

(2) The user certificate/Authentic Documents shall be sealed and signed with i) Name and designation of the signatory, ii) Telephone, Fax and e-mail of the signatory, iii) Signing Date, and iv) Official Seal

(3) Service provider name and address

(4) The information about the equipment:

- (i) Product Model and Version
- (ii) Installation Site (Site Address)
- (iii) Operation Details
  - (a) Date of Supply and Delivery
  - (b) Quantity Supplied
- (iv) Product Performance (Satisfactory/unsatisfactory)

Price Schedule Forms

Bidder shall not quote different unit price for different lot. If different unit price is quoted lowest unit price of that item shall be considered.

Summary of Bid Prices

Goods (Foreign Currency Portion)	US$/EUR	
Goods (Nepalese Rupees Portion) (including VAT)	NPR	
Services (Foreign Currency Portion)	US$/EUR	
Services (Nepalese Rupees Portion) (Including VAT)	NPR	
Inland Transportation (Including VAT)	NPR	
Total Bid Price		
Foreign Currency Portion		
Total Price (Goods + Services)	US$/EUR	
NPR Portion		
Total Price (Goods + Services + Inland Transportation) (Including VAT)	NPR	

Price Schedule and Quantity There of for Goods

Customs Entry Point: Tribhuvan International Airport (TIA), Kathmandu,
Shipment: By air
Package Name : Part A
Delivery Site: Sundhara

SN	Description of Equipment	Country of Origin	Manufacturer /Make	Model	Units	Total Qty.	Currency (US$/EUR/NPR)	Unit price FOB port or specify port of loading in Quoted Currency	Unit price CIP Custom Entry Point in Quoted Currency	Total price CIP Custom Entry Point in Quoted Currency	Unit price of Inland Transportation to Warehouse in NPR	Total price of Inland Transportation to Warehouse in NPR
1	**OLT Type 3 with Installation Materials**				Port	144						
2	**OMS/EMS**				Set	1						
a	EMS for OLT with Installation Materials				Set	1						
b	Client Terminal Type 1				Set	10						
c	Client Terminal Type 2				Set	20						
3	**Interfaces**											
a	Interface for CRM				Lot	1						
b	Interface for other 3rd Party ONT/ONU				Lot	10						
c	Interface for NOC, IMS and BRAS				Set	1						
4	**Documentation**				Set	1						
5	**Tools and Test Instrument**				Set	1						
	Total											

-Package Name : Part B
Delivery Site: Central Store Chhauni
Shipment: By Sea/Land

SN	Description of Equipment	Country of Origin	Manufacturer /Make	Model	Units	Quantity		Total Quantity	Currency (US$/EUR/NPR)	Unit price FOB port or specify port of loading in Quoted Currency	Unit price CIP Custom Entry Point in Quoted Currency	Total price CIP Custom Entry Point in Quoted Currency	Unit price of Inland Transportation to Warehouse in NPR	Total price of Inland Transportation to
						Lot I	**Lot II**							
1	OLT Type 1-1 (16 Port) with Installation Materials				Set	80	86	166						
2	OLT Type 2-3 (48 Port) with Installation Materials				Set	31	28	59						
3	OLT Type 2-5 (80 Port) with Installation Materials				Set	2	11	13						
4	OLT Type 3-8 (128 Port) with Installation Materials				Set	8	4	12						
5	OLT Type 3-14 (224 Port) with Installation Materials				Set	5	0	5						
6	OLT Type 3-24 (384 Port) with Installation Materials				Set	1	0	1						
7	OLT Type 3-40 (640 Port) with Installation Materials				Set	1	0	1						
8	ODF 360 with Installation Materials				Set	4	0	4						
9	ODF 144 with Installation Materials				Set	28	28	56						
10	ODF 48 with Installation Materials				Set	71	84	155						
11	GPON Line Cards, patch cord and its accessories				Ports	400	400	800						
12	Multiport Combo XGSGPON Line Card, patch cords and its accessories				Ports	640	960	1600						
13	10G 10km 1310nm SFP+				Nos	10	15	25						
14	Spares				Lot	1	1	2						
	Total													

Cost of Goods
A) Cost of goods (FOB Price) _____
B) Cost of Freight _____

C) Cost of Insurance _____
Total Price of Goods CIP Customs Entry Point (exclusive of Customs, Duties and Taxes) (A+B+C) _____ (in Figures)
(In Words _____)
Total Inland Transportation Cost (Inclusive of VAT) from Customs Entry point to Supplier's Warehouse in NPR. _____ (in Figures)
(In Words _____)
Signature of Bidder: _____
Full Name:
Designation: _____
Official Seal: _____ Date: _____

Note:

- *The bidder shall provide Bill of Quantity (BOQ) in a separate sheet with detail breakdown for each item and its components. The BOQ must include FOB and CIP unit price of all the items (If Applicable).*
- *This Price Schedule shall be duly filled, signed along with date and stamped with official seal. Bid with Price Schedule not duly filled and without signature, date and official stamp shall be rejected and not be considered for evaluation.*
- *The Bidder shall quote price in accordance with the Clause No. 15 of ITB and Clause No. ITB 15.7 of BDS*
- *All the price quoted in Nepalese Currency shall be inclusive of Taxes, Duties and VAT applicable in Nepal*

Price Schedule and Quantity There of for Related Services

i) Service to be Rendered Outside Nepal

SN	Description	Unit	Lot I	Lot II	Total Quantity	Country of Service Delivery	Currency (US$/ EUR/ NPR)	Unit price in Quoted Currency	Total price in Quoted Currency
1	**Training**								
1.1	**Engineering Training**								
1.1	FTTH Design, Planning and Project management Training (15 Working Days)	Person	9	9	18				
1.2	OLT and EMS System Training (15 Working Days)	Person	9	9	18				
1.3	OLT and EMS O&M Training (15 Working Days)	Person	9	9	18				
1.4	Senior Engineers Training (10 Working days)	Person	6	6	12				
1.5	Senior Management Visit (5 Working Days)	Person	2		2				
2	**Factory Inspection**								
2.1	Factory Inspection for OLT and EMS (5 Working Days)	Person	2	2	4				
	Total								

ii) Service to be Rendered inside Nepal

SN	Description	Unit	Quantity	Unit Price (in NPR)	Total Price (in NPR)
1	**3rd Party Service Integration Cost**				
1.1	Integration of offered EMS to CRM system.	Lot	1		
1.2	Integration of any third party ONT to offered OLT system.	No. of Integration	10		
1.3	Integration of Offered EMS to NOC, IMS and BRAS	No of Integration	3		
2	**Survey, Installation, Testing and Commissioning Service for Part A Sites**	Site	1		
3	**Extended Warranty Service**	Year	3		
	Total				

Total Price of Service to be rendered inside Nepal in Quoted currency for the cost incurred outside Nepal (I) _____ (in Figures)
(In words _____)

Total Price of Service to be rendered outside Nepal (II) _____ (in Figures)
(In words _____)

Total Price of Service to be rendered inside Nepal in NPR for the cost incurred inside Nepal (including VAT) (III) _____ (in Figures)
(In words _____)

Signature of the Bidder: _____

Full Name: _____

Designation: _____
Bidder's official seal and date: _____

Note:

- *The bidder shall provide Bill of Quantity (BOQ) in a separate sheet with detail breakdown for each item and its components.*
- *This Price Schedule shall be duly filled, signed along with date and stamped with official seal. Bid with Price Schedule not duly filled and without signature, date and official stamp shall be rejected and not be considered for evaluation.*
- *The payment shall be made after deduction of the outstanding taxes applicable in Nepal, e.g., TDS)*
- *The Bidder shall quote price in accordance with Clause No. 15 of Section I: ITB and ITB 15.7 of BDS*
- *All the price quoted in Nepalese Currency shall be inclusive of Taxes, Duties and VAT applicable in Nepal*
- *Total cost related to extended warranty service shall be at least 0.5% per annum of Total cost of Goods. Please refer to Section III "Evaluation Method and Criteria"*

Bid Security

Bank Guarantee

Bank's Name, and Address of Issuing Branch or Office
(On Letter head of the Bank)

[This is the format for the Bid Security to be issued on the letterhead by a Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law of Nepal]

[insert Bank's Name, and Address of Issuing Branch or Office]

Date: ***[insert date]***

Beneficiary: ***[insert Name and Address of Purchaser]***

BID GUARANTEE No.: ***[insert number]***

We have been informed that ***[insert name of the Bidder]*** (hereinafter called "the Bidder") intends to submit its bid to you (hereinafter called "the Bid") for the execution of ***[insert name of contract]*** under Invitation for Bids No***. [insert IFB number]*** ("the IFB").

Furthermore, we understand that, according to your conditions, bids must be supported by a bid guarantee.

At the request of the Bidder, we ***[insert name of Bank]*** hereby irrevocably undertake to pay you any sum or sums not exceeding in total an amount of ***[insert amount in figures, (insert amount in words)]*** upon receipt by us of your first demand in writing accompanied by a written statement stating that the Bidder is in breach of its obligation(s) under the bid conditions, because the Bidder:

(a) has withdrawn or modifies its Bid:

i) during the period of bid validity specified by the Bidder on the Letter of Bid, in case of electronic submission

(ii) from the period twenty-four hours prior to bid submission deadline up to the period of bid validity specified by the Bidder on the Letter of Bid, in case of hard copy submission; or

(b) does not accept the correction of errors in accordance with the Instructions to Bidders (hereinafter "the ITB"); or

(c) changes the prices or substance of the bid while providing information pursuant to clause 29.1 of ITB; or

(d) having been notified of the acceptance of its Bid by the Purchaser during the period of bid validity, (i) fails or refuses to execute the Contract Agreement, or (ii) fails or refuses to furnish the performance security, in accordance with the ITB.

(e) is involved in fraud and corruption in accordance with the ITB.

This guarantee will expire: (a) if the Bidder is the successful Bidder, upon our receipt of copies of the contract signed by the Bidder and the performance security issued to you upon the instruction of the Bidder; and (b) if the Bidder is not the successful Bidder, upon the earlier of (i) our receipt of a copy of your notification to the Bidder of the name of the successful Bidder; or (ii) thirty (30) days after the expiration of the Bidder's bid which comes to be ***[insert the date]***.

Consequently, any demand for payment under this guarantee must be received by us at the office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees, ICC Publication No. 758.

. . .Bank's seal and authorized signature(s) . . .

[Note: All italicized text is for use in preparing this form and shall be deleted from the final product.]

Manufacturer's Authorization Letter

[*This letter of authorization should be on the letterhead of the manufacturer and should be signed by the person with the proper authority to sign documents that are binding on the manufacturer]*

Date: *[insert date of Bid Submission]*

IFB No.: *[insert number]*

To: *[insert complete name and address of Purchaser]*

WHEREAS *[insert complete name of Manufacturer or Manufacturer's authorized agent]* who are official manufacturers of *[insert type of goods manufactured]* having factories at *[insert full address of Manufacturer's factories]*, do hereby authorize *[insert complete name of Bidder]* exclusively to submit a Bid in relation to the Invitation for Bids indicated above, the purpose of which is to provide the following Goods, manufactured by us *[insert name and/or brief description of the goods]* and to subsequently sign the Contract.

We hereby extend our full guarantee and warranty in accordance with Clause 27 of the General Conditions of Contract, with respect to the Goods offered by the above firm.

Name: ***[insert complete name of person signing the Authorization]***

In the capacity of: ***[insert legal capacity of person signing the Authorization]***

Signed: ***[insert signature of person whose name and capacity are shown above]***

Duly authorized to sign the Authorization for and on behalf of: ***[insert complete name of Manufacture]***

Date: ***[insert date of signing]***

End of Section IV - Bidding Forms

Section V. Schedule of Requirements

Table of Contents

A : List of Goods and Delivery Schedule

1 Schedule of Requirements (SOR) for Goods

2 Schedule of Requirements (SOR) for Services

3 Delivery Schedule

B: Technical Specifications

1 General Technical Specifications

2 Detail Technical Specification

C: Inspection and Test

D: Issuance of Certificate

List of Goods, Services and Delivery Schedule

1. Schedule of Requirements (SOR) for Goods

Lot I Part A

S.N	Site Name	Item No.	Description	Reference (Section V)	Unit of Measurement	Quantity
1	Sundhara	1	**OLT Type 3 with Installation Materials**	Chap 2, Cl.No. 2 Chap 1, Cl.No. 10.11	Port	144
		2	**OMS/EMS**		Set	1
		a	EMS for OLT with Installation Materials	Chap 2, Cl.No 3 Chap 1, Cl.No. 10.11	Set	1
		b	Client Terminal Type 1	Chap 2, Cl.No 3.17.1	Set	10
		c	Client Terminal Type 2	Chap 2, Cl.No 3.17.2	Set	20
		3	**Interfaces**			
		a	Interface for CRM	Chap 1, Cl.No 6.1	Lot	1
		b	Interface for other 3rd Party ONT/ONU	Chap 1, Cl.No 6.1	Lot	10
		c	Interface for NOC, IMS and BRAS	Chap 1, Cl.No 6.1	Set	1
		4	**Documentation**	Chap 1, Cl No 10.12	Set	1
		5	**Tools and Test Instrument**	Chap 1, Cl No 10.10	Set	1

Part B Sites

S. N	Description	Reference (Section V)	Unit	Quantity		Total
				Lot I	Lot II	
1	OLT Type 1-1 (16 Port) with Installation Materials	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Set	80	86	166
2	OLT Type 2-3 (48 Port) with Installation Materials	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Set	31	28	59
3	OLT Type 2-5 (80 Port) with Installation Materials	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Set	2	11	13
4	OLT Type 3-8 (128 Port) with Installation Materials	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Set	8	4	12
5	OLT Type 3-14 (224 Port) with Installation Materials	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Set	5	0	5
6	OLT Type 3-24 (384 Port) with Installation Materials	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Set	1	0	1
7	OLT Type 3-40 (640 Port) with Installation Materials	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Set	1	0	1
8	ODF 360 with Installation Materials	Chap 2, Cl.No. 4	Set	4	0	4
9	ODF 144 with Installation Materials	Chap 2, Cl.No. 4	Set	28	28	56
10	ODF 48 with Installation Materials	Chap 2, Cl.No. 4	Set	71	84	155
11	GPON Line Cards, patch cord and its accessories	Chap 1, Cl.No. 10.11 Chap 2, Cl.No. 2	Ports	400	400	800
12	Multiport Combo XGSGPON Line Card, patch cords and its accessories	Chap 2, Cl. No. 2	Port	640	960	1600
13	10G 10km 1310nm SFP+	Chap 2, Cl. No.2.5	Nos	10	15	25
14	Spares	Chap 1, Cl.No. 19	Lot	1	1	2

2. Schedule of Requirements (SOR) for Services

i. Service to be Rendered outside Nepal

SN	Description	Unit	Lot I	Lot II
1	**Training**			
1.1	**Engineering Training**			
1.1	FTTH Design, Planning and Project management Training (15 Working Days)	Person	9	9
1.2	OLT and EMS System Training (15 Working Days)	Person	9	9
1.3	OLT and EMS O&M Training (15 Working Days)	Person	9	9
1.4	Senior Engineers Training (10 Working days)	Person	6	6
1.5	Senior Management Visit (5 Working Days)	Person	2	
2	**Factory Inspection**			
2.1	Factory Inspection for OLT and EMS (5 Working Days)	Person	2	2

iii) Service to be Rendered inside Nepal

SN	Description	Unit	Lot I	Lot II
1	**3rd Party Service Integration Cost**			
1.1	Integration of offered EMS to CRM system.	Lot	1	
1.2	Integration of any third party ONT to offered OLT system.	No. of Integration	10	
1.3	Integration of Offered EMS to NOC, IMS and BRAS	No. of Integration	3	
2	**Survey, Installation, Testing and Commissioning Service for Part A Sites**	Sites	1	
3	**Extended Warranty Service**	Year	3	

3. Delivery and Completion Schedule

1. The goods shall be delivered by Sea/Land up to the final destination sites as per Section V: Schedule of Requirements.

2. The delivery of Lot I Part A goods shall be made by air shipment. Supplier shall complete the installation along with Hardware/Software Completion report (Pre PAT report) and invite for provisional acceptance testing within 150 days from the date of contract signing.

3. The goods under Lot I Part B shall be delivered within 120 days from the date of contract signing to the respective store(s) as mentioned in SOR.

3. The Goods under Lot-II shall be delivered within 120 days from the date of issuance of Purchase Order (PO) from Nepal Telecom. While issuing the purchase order of Lot II, the number of ports of GPON and XGSPON may be modified as per requirement of Nepal Telecom without exceeding the total price of goods for Lot II.

Technical Specification

The bidder shall fill **Form Spec-1** *to provide the information on technical specifications and standards of offered goods in each and every clause.*

Chapter 1. General Technical Specifications:

Clause No.	Particulars of Nepal Telecom's Requirements
1.	**General** Nepal Doorsanchar Company Limited (Nepal Telecom, NT) plans to migrate/swap/expand the existing fixed line telephone and broadband systems all over Nepal and fulfil further the fixed line telephone demands by deploying Fiber to the Home Service (FTTH) in order to provide voice services, broadband data services and video services all over Nepal. This Project is intended for deploying FTTH OLT and its EMS system of around 700K capacity as stipulated in Schedule of Requirement (SoR), in order to expand as well as migrate existing copper-based fixed network subscribers. The project comprises of two lots as defined in SoR. In each lot, the implementation will be divided in to two parts, as follows: ➢ Part A: To be done by Supplier. ➢ Part B: To be done by NT
2.	In view of rapid technological developments taking place, the Bidder shall offer updated (latest) versions of the field proven equipment. The changes introduced in such equipment shall, however, be evolutionary and not revolutionary in nature. The Bidder shall submit the full details of the technological changes incorporated in the hardware and software of the offered equipment.
3.	Main Objectives of this tender are: i) Supply, Delivery, Installation, Commissioning of equipment to provide voice, data and IPTV services all over Nepal through Optical Line Terminal (OLT) and EMS ii) Fulfil the demands for fixed line voice, data and multimedia services all over Nepal by expanding its fixed line network. iii) Provide connectivity allowing different Value-Added Services through multi-vendor Application platforms.

Clause No.	Particulars of Nepal Telecom's Requirements
	iv) Interconnect offered EMS with Nepal Telecom's CRM for provisioning/de-provisioning of OLTs. v) Provide services maintaining network security and Quality of service.
4.	**Scope of Work** To fulfill the above objectives, the bidders are requested to provide the proposal along with the scope of work as following, details of which is explained further in this document:
4.1	Factory inspection at manufacturer's premises.
4.2	Training at manufacturer's premises training center.
4.3	Supply and delivery of all goods & services as in SOR of this section i.e. Optical Line Terminals (OLT) with EMS for FTTH Service with necessary network elements.
4.4	Knowledge transfer of Optical Line Terminal (OLT) and EMS for FTTH Service Installation, Operation and Maintanence as mentioned in SOR.
4.5	Acceptance testing of the system
4.6	Operation & Maintenance support service during stabilization period
4.7	Technical support and warranty level services i. Warranty service ii. Extended Warranty service (EWS)
5.	**Responsibilities of Nepal Telecom**
5.1	NEPAL TELECOM shall be responsible to undertake the following:
5.1.1	**Construction of infrastructure for the installation of the OLT:** It includes all the necessary civil works.
5.1.2	Provisioning of adequate floor space as per the Installation plan provided by the bidder.
5.1.3	Provisioning of -48V DC power supply, Air Conditioning, and false floor up to the equipment room.

Clause No.	Particulars of Nepal Telecom's Requirements
5.1.4	After the knowledge transfer, Part B sites installation will be undertaken by NT itself.
6.	**Responsibilities of the Supplier**
6.1	**Interoperability (IOT) Test** This project is intended to be a network system interworking with multi-vendor equipment. The bidder shall strictly guarantee the interoperability of their offered equipment with existing equipment/products manufactured by different vendors. The bidder shall study Nepal Telecom's CRM, IMS and BRAS system. The bidder shall strictly guarantee the integration of the offered EMS system with NT's IMS, BRAS system and CRM system for Provisioning and De-Provisioning. Similarly, the OLT system shall allow integration of 3rd party ONT/ONU to its OLT system for seamless triple play service and pass the TR069 protocol transparently between NT's ACS (Automatic configuration server) and 3rd party ONTs.
6.2	The Bidder shall provide the details of the tests with list of equipment of other vendors with whom the interoperability tests have been performed.
6.3	The bidder shall take full responsibility to provide all necessary software (including licenses) and hardware equipment for the end-to-end solution including network entities for all features and requirements mentioned in this bid document.
7.	**Factory Inspection and testing of the Offered equipment**
7.1	Supplier shall arrange for the Factory Inspection in the manufacturer's factory premises. The Optical Line Terminal (OLT), EMS, ODF and its accessories shall be tested in the manufacturer's factory premises before shipment. The equipment to be tested shall be of the same model and version that is being supplied. The test results shall be supplied with the equipment. Nepal Telecom shall depute Inspectors as mentioned in SoR to participate in the factory Inspection and acceptance test of the equipment at the invitation of the supplier. The bidder shall notify Nepal Telecom, the starting date of the inspection and the venue for the inspection at least thirty days prior to the shipment. The bidder shall provide all the necessary test equipment, tools and help to test the system's performance. The manufacturer shall correct all the deficiencies (if found) before the shipment of the equipment.
7.2	The test procedure for testing the equipment shall be provided to Nepal Telecom for approval, one month prior to the factory inspection. Nepal Telecom, if deemed

Clause No.	Particulars of Nepal Telecom's Requirements
	necessary, may revise the Test Procedure in accordance with technical specification of Contract document. Nepal Telecom shall approve the test procedure prior to start of Factory Inspection. The Factory Inspection and test shall be carried out based on the approved test procedure. However, if required, during the factory inspection, NT inspectors shall have the liberty to perform any test, to verify if any or all the technical requirements specified in the Nepal Telecom's Technical Specification are correctly implemented. It shall be the responsibility of the bidder to make necessary arrangement including the test equipment to perform such tests.
7.3	**Factory Inspection Report and Certificate** Upon completion of Factory Inspection, inspector(s) from Nepal Telecom and representatives of Supplier shall jointly submit the Factory Inspection Report along with the Test Result. The inspectors and supplier shall sign on each page of the Factory Inspection report and test result. Based on the Factory Inspection Report, Nepal Telecom shall issue Factory Inspection Certificate. Supplier shall submit Factory Inspection Certificate along with the shipping document.
7.4	The bidder shall provide local transportation, accommodation and within-country transport facility for Nepal Telecom's Inspectors, during the Factory Inspection and acceptance test. The cost of round-trip tickets for any travel required for the Inspectors within the supplier's country (if required) shall be included in the Factory Inspection costs. The inspector shall be insured for medical and all kind of risk during his/her stays in the manufacturer's country. Insurance cost shall be included in the factory inspection cost.
7.5	The number of days and number of inspectors for factory inspection are mentioned in **Schedule of Requirement for Services in Section V: Schedule of Supply**
7.6	**Daily allowances and Round-Trip Tickets** The daily allowances and the cost of round-trip air ticket for each inspector from Nepal will be borne by NEPAL TELECOM.
8.	**Trainings**
8.1	**Engineering Trainings at Supplier's Premises** The bidder shall provide the following trainings to the Nepal Telecom's Technical Persons. The training shall be conducted at the manufacturer's premises. The

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	Bidder shall propose the courses as given below. NT will finalize the course syllabus during Contract preparation. i. FTTH Design and Planning Training ii. OLT, EMS system Training iii. OLT, EMS Operation & Maintenance Training iv. FTTH Project Management Training v. Senior Engineers' Training vi. Senior Management Visit The Training shall be provided to the engineers/technical personals of relevant fields.
8.1.1	**Daily allowances and Round-Trip Tickets** The daily allowances and the cost of round-trip air ticket for each trainee and visit from Nepal will be borne by NEPAL TELECOM.
8.1.2	**Training Cost** For the training at Supplier's premises, the price quoted shall include tuition fee, accommodation, local transportation, training materials including handbooks/manuals (hard copy as well as soft copy) for each participant. Detailed breakdown of training cost showing cost of each of the components indicated above shall be provided. The cost of round-trip tickets for any travel required for the trainees within the supplier's country (if required) shall be included in the training costs. The trainees shall be insured for medical treatment, travel and all kinds of risks during their stay in the supplier's country. The insurance expenses shall be included in the quoted training cost. The details of all the trainings including number of days and trainees for all the trainings are mentioned in **Schedule of Requirement for Services in Section V: Schedule of Supply.**
9.	**Supply and Delivery of OLT System**
9.1	Supplier shall design, supply and deliver all the goods based on the requirements of NEPAL TELECOM. **All the goods shall be supplied and delivered in accordance with the Schedule of Requirement for Goods and Delivery Schedule in Section V: Schedule of Supply**
9.2	**Goods and Services for the Full Functionality of offered system**

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9.2.1	If the offered Goods (HW and SW including all licenses) and Services are found to be insufficient to realize the said objective of this tender document during Contract document preparation and during operation of the system (within the warranty period), then all additional materials (including Hardware and software including all licenses) required to make the system fully functional and to meet the requirements of the specification, must be provided free of cost to Nepal Telecom.
9.2.2	Any additional item (hardware and software including all licenses) and services beyond those listed in the **Schedule of Requirement for Services in Section V: Schedule of Supply,** necessary for the realization of the said functionalities, implementation, integration, testing, commissioning and operation in normal condition shall be quoted in the bid proposal. This shall be considered for evaluation. However, if the bidder does not quote them in the bid proposal, it shall be the full responsibility of the Supplier to avail those additional items during the course of project implementation without any additional cost to NT. The latest and field proven version of software shall be provided. During warranty period, all the software and hardware up gradation, modification and maintenance shall be of free of charge to NT
9.3	**Material Verification**
9.3.1	**For Part A sites and Part B sites:** The entry of the material to NT's store shall be done only in the presence of NT project office representative. The material shall be verified jointly by representatives of Nepal Telecom and Supplier as per invoice and packing list before the start of installation at NT's store. The verified equipment list shall be submitted to the Project Manager of NT before installation. Supplier's local freight forwarder shall obtain material delivery confirmation letter from NT Project office duly signed by Project Manager or any deputed engineers/personnel. Prior to the confirmation of proper material delivery, Supplier shall verify the authenticity of delivery report submitted by local clearing and forwarding agent on consultation with NT Project manager. Hardware deficiency record will be maintained if some items are found missing for both Part A and Part B Sites.
9.4	**Physical Counting**

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	Nepal Telecom shall physically verify all the goods delivered under Part B sites (spares) within 30 days from the date of delivery of goods in the store. The Part A sites physical counting and testing shall be done at the time of provisional acceptance test. The physical verification includes counting of the goods and visual inspection of the goods. Physical counting and checking will be performed by the Nepal Telecom's verification team to confirm that the delivered goods meet the number of quantities as per Schedule of Supply of this section.
10.	**Hardware/Software Installation, Configuration, Integration, Testing and Commissioning of OLT, EMS and its Accessories.**
10.1	The Supplier shall depute experts for hardware and Software Installation, Configuration, Integration, Testing and Commissioning of the Part A Sites as mentioned in Section V, Schedule of Supply. The bidders shall quote for the hardware and software installation, configuration, integration, testing and commissioning services, which shall be considered for evaluation which shall include transportation of goods from NT's store to the Part A sites.
10.2	The installation, configuration and testing of the Part B sites shall be done by Nepal Telecom after the successful Provisional Acceptance Test (PAT) of first, Part A, Pilot site. The Supplier shall provide details of pre-installation works to be carried out on the installation sites before delivery of the equipment. The pre-installation works shall be performed by Nepal Telecom as per the details provided. The bidder shall assist, train and transfer knowledge of installation, testing, supervision and commissioning of the OLT and EMS to NT Technical personals.
10.3	The software installation of the equipment & EMS system, and overall integration of all the equipment of Part A sites shall be performed by the supplier. NT personnel shall also be involved during the software installation and integration of the system.
10.4	The Technical expert of the supplier shall be fully capable to handle all the technical issues related to the Contract. The bidder shall provide bio data of all the people who will be engaged in the project, including their experiences. Nepal Telecom project office, if realizes that the experience of the assigned personnel is inadequate to carry out the task, shall have the full authority to reject him/her and ask the bidder to arrange for the more experienced personnel.

Clause No.	Particulars of Nepal Telecom's Requirements
10.5	The Bidder shall provide detailed installation documents in the form of hard copy and soft copy Containing all necessary installation diagrams, cabling details, rack wise/frame wise configuration details, installation practices and testing procedures to do proper installation.
10.6	Normally, the installation shall be carried out during working hours applicable in Nepal. The working hours could be changed, if required, on mutual agreement. However, software installations, patch loadings etc. shall be performed in the presence of NT personnel with the approval.
10.7	**Equipment Layout** The Bidder shall provide the typical equipment layout plans for the different sizes of the offered equipment. Full details of equipment dimensions, weights and floor loading as well as required ceiling height shall be supplied by the Bidder. The actual room layout for the equipment shall be agreed by both parties during site survey. Any change shall be agreed by both parties
10.8	**Pre-Installation Data Collection** The Supplier shall depute a competent technical team for site survey and collection of Network and equipment related data for Part A sites prior to the delivery of equipment to form a joint team with NT. The joint team shall collect all necessary data such as inter connection to existing networks (IP network), ODF layout, interfaces/connectors used, power system data, room layout, equipment layout, actual cable lengths etc.,
10.9	**Pre-Installation Work** The Bidders shall provide the details of pre-installation works for (site layout for making holes on the floors, walls, ceilings etc. and/or any other minor civil works) to NT. NT will carry out/complete this pre-installation work before the delivery of equipment.
10.10	**Tools and Test Instrument** It shall be the obligation of the supplier to arrange all the tools and test instruments that are required for carrying out installation, testing, commissioning and acceptance testing of the equipment. These tools and test instruments shall be handed over to Nepal Telecom after completion of installation and testing. The cost incurred for this purpose shall be included in the offer and shall be evaluated as part of the offer. The bidder shall also quote the breakdown price for the tools and test Instruments that are required for the regular operation and maintenance and installation tools

Clause No.	Particulars of Nepal Telecom's Requirements
	mentioned in the Section V, Schedule of Supply. If any equipment other than listed in Section V, Schedule of Supply, is required, those shall also be included in the offer for the required Set. If any test equipment other than those included in the offer is required for installation, testing, commissioning, acceptance testing and normal maintenance during warranty period, the Bidder shall arrange for such equipment without any additional cost to Nepal Telecom. **The price quoted for tools and test equipment shall be considered for evaluation**
10.11	**Installation Material**
	The bidder shall provide the adequate quantity of installation materials including Power cables, Racks (wherever applicable), ODF frames to accommodate cable connections, interconnection cable, Connectors, Patch cables and other accessories (including nuts, bolts, screws etc.) required for the installation and commissioning of the complete system. The small items under installation material, e.g. connectors, screws, bolts, ground strips shall be supplied 10% extra, in order not to delay the installation works due to losses of those items. **The supplier shall provide the detailed breakdown list of the installation materials, site-wise, that shall be supplied and the unit prices of each item.** For evaluation purposes, the patch cable length shall be 15 meters up to the ODF. All the patch cables shall be supplied with prefabricated connectors, in a bundle of 16 core patch cables. For evaluation purposes, the distance for power cables shall be calculated as 15 meters. However, the actual length shall be calculated for the project implementation during the site survey. **The cost of installation materials shall be considered for evaluation.**
10.12	**Documentation** The supplier shall provide original documentation required for installation, testing, operation, maintenance, configuration and expansion of all the system components and services including procedures. These documentations shall be written in English language. The supplier shall provide the API document for all components offered in the system required to be interfaced with all external entities during or after the project timeline. The bidder shall supply each document in soft copy and one set of related hard copy. The documents in soft copy shall be in easily available viewing formats like html, pdf etc. with easy navigation menu/hyperlink system.

Clause No.	Particulars of Nepal Telecom's Requirements
	NEPAL TELECOM will have full ownership and copyright of the documents for use within NEPAL TELECOM. **The prices quoted for documentation shall be considered for evaluation**
10.13	**Installation, testing and Commissioning.** The installation shall be carried out as per the following:
10.14	**Hardware Installation**
10.14.1	The physical installation of the equipment shall be performed according to the standard procedure. The supplier shall provide in advance, all the installation documents, which will contain all necessary installation diagrams, installation procedures and tests to be followed for proper commissioning and functioning of the equipment.
10.14.2	**Hardware Installation report** After completion of the physical installation and successful hardware testing, the installation team shall submit the Hardware Installation report to the NT Project Manager. The report shall contain the complete report of material delivered and installed at different locations (rooms and floors). Remaining items (if any) returned to NEPAL TELECOM store shall be clearly mentioned. The report shall also include actual installed equipment layout, cabling diagram and its configuration details. The supplier shall be held responsible for any delay in installation due to shortage of any kind of hardware/ materials or due to inadequate installation diagrams, documents, instructions and/or legends required for correct installation of equipment
10.15	**Software Installation and Testing**
10.15.1	The software installation shall be performed according to the standard procedure. The supplier shall provide in advance all the software installation documents, which will contain all necessary installation procedure and tests to be followed. Tests for servers and peripherals installed shall also be included. Nepal Telecom's trained engineers shall also be involved in all steps of software installation and testing.
10.15.2	The installation team shall also perform detailed software testing of the operating system, database, applications etc. and do hardware diagnostics. The tests shall include each requirement specified in the Technical Specifications. During this test, all modifications in the software, hardware, firmware, database, etc. that are

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	required to meet the Technical Specification shall be successfully incorporated. Every test performed shall be properly documented with date and signature of the test team.
10.16	**Software Installation and Test Report** After successful completion of the software installation and testing, the supplier shall submit the "Software Installation and Test Report" to NT Project Manager. The test report shall contain list of all the tests and results including the facilities and features mentioned in the Technical Specifications, and the correct status of their implementation.
10.17	**Integration Test with existing network** After successful software testing of the system, the system shall be interconnected with existing Call Servers, BRAS, IPTV middleware and ONT/ONUs operating in NT's existing FTTH network for full operability.
10.18	**Integration Test with existing CRM** After successful software testing of the system, the system shall be interconnected with NT's existing CRM.
10.19	**Completion of Installation, Testing, and Commissioning** The date of invitation from the supplier to perform Acceptance Test and upon confirmation of system's readiness for start of acceptance testing by Nepal Telecom, which leads to the successful acceptance testing without any major deficiency, shall be considered as the date of completion of Installation, Testing, and Commissioning. However, If the major deficiencies are found during the acceptance testing, the date when the major deficiencies are corrected shall be considered as the date of completion of the Installation, Testing, and Commissioning.
11.	**Acceptance Testing**
11.1	**General**
11.1.1	The supplier shall submit a detailed acceptance test procedures document. Test procedures shall include all the tests for features and functions **specified in the Contract**. The test procedure shall be submitted to NEPAL TELECOM for approval 2(two) Months prior to the date of acceptance test. In case of amendments and additions as deemed necessary by NT are required to meet the technical requirements in the submitted acceptance test procedure document, NT shall request for the same within 15 (Fifteen) days of submission of

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	the detailed test procedure document. The supplier shall again submit the amended acceptance test procedure document within 15 (fifteen) days from the date of such amendment request from NT.
11.1.2	After submission of the Hardware Installation Report and Software Test Report to NT Project Manager, the supplier shall invite NEPAL TELECOM to carry out acceptance testing. The acceptance testing will start within 15 working days from the date of receipt of such an invitation. Nepal Telecom with the support of Supplier shall complete PAT and submit the PAT report within 30 days from the date of formation of team.
11.1.3	If supplier has issued the invitation, but the installation site/system is found to be incomplete, the PAT shall be re-scheduled. The supplier shall make all the necessary arrangements to make system ready for acceptance and invite NT for PAT again. The later invitation which leads to successful PAT shall be applicable for the commissioning date, which shall also be applied for the application of Liquidated Damage (LQD), if any.
11.1.4	Acceptance testing shall comprise of physical verification and technical verification to see the technical performances of the equipment as per the Technical Specifications and shall be carried out jointly by the representatives of the supplier and NEPAL TELECOM. The supplier's personnel shall be available any time, for assistance or for the clarification to NEPAL TELECOM queries during the acceptance testing.
11.2	**Physical Verification**
11.2.1	Physical verification shall consist of physical counting of the material delivered, materials installed and balance items in the store against the bill of quantities in the Contract and the packing list. Spare cards shall also be checked in the live system for their correct functioning.
11.2.2	During the Physical verification, if some consumable parts are seen already damaged before the acceptance test is performed, it shall be the responsibility of the supplier to replace or replenish them. Defective/damaged items as found above are to be replaced during the Acceptance Testing, without any additional cost to NT.
11.3	**Technical Verification**
11.3.1	To carry out the technical verification, the test procedures mentioned in the approved Acceptance Test Procedure shall be followed.

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11.3.2	If any modifications in the software, hardware, firmware, database etc. are deemed necessary during the acceptance testing, all or relevant tests performed before these modifications shall be repeated if felt necessary.
11.3.3	No patch insertions, hardware or software modifications shall be done after the acceptance test without approval of Nepal Telecom.
11.3.4	All features, facilities, report generating tools, etc. that are provided during the acceptance testing shall have to function perpetually and shall not be removed by the supplier after acceptance testing.
12.	**Provisional Acceptance** Please refer to Section V, Schedule of Supply; D. Issuance of Certificate
12.1	**Provisional Acceptance Certificate (PAC):** After completion of the acceptance testing, Nepal Telecom will issue Provisional Acceptance Certificate (PAC) within 30-days. The Provisional Acceptance Certificate will be issued only if the commissioning is successfully performed without any major deficiencies. **NEPAL TELECOM may issue the Deficiency Clearance Letter if one or more of the following major deficiencies are noticed during acceptance testing.**
12.2	**Major deficiencies** Malfunctions as per any of the following shall be considered as major deficiency: i. Non-compliance of any mentioned protocol support ii. Loss of data. iii. Cannot handle Overload conditions. iv. System start-up (initialization), back up, reload and restarts of any one of the system level servers or access level cards. v. Non-Integration with existing CRM vi. No service related to call Servers, BRAS and IPTV server. vii. Failure to inter-operate offered OLT with existing ONT/ONU with full operability. Apart from above mentioned items, any action/function which affects the services in a degraded manner, shall be also considered as major deficiency.

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12.3	Issuance of Provisional Acceptance Certificate shall not prejudice any claim with respect to any defect or malfunction, which may subsequently develop during the operation of the system during stabilization, warranty period.
12.4	If the testing and commissioning of the system is delayed beyond the Contract schedule period due to reasons attributable to Supplier and /or if there are major deficiencies that can be solved with temporary solutions of the system, Nepal Telecom will have full authority to put the system into commercial service. Under such circumstances, the supplier is required to make the basic functions and services ready for putting the system into service and provide maintenance service (Technical support and maintenance of Hardware and Software) from the date the system is put into commercial service, at no additional cost to Nepal Telecom. In this case, Provisional Acceptance Certificate will not be issued. PAC will be issued when the major deficiency is cleared. Commissioning date shall be taken into account from the date of putting the system into operation with live traffic. Test traffic shall not be considered for the commissioning date.
12.5	**Acceptance Certificate (AC)** Nepal Telecom shall issue Acceptance Certificate (AC) of equipment under part B sites (including spares) of Lot-I within thirty (30) days from the date of successful completion of stabilization period of Part A Lot-I. Nepal Telecom shall issue Acceptance Certificate (AC) of equipment under part B sites (including spares) of Lot-II within six (6) months from the date of issuance of Delivery Completion Certificate (DCC) of Part B Lot-II.
13.	**Operation & Maintenance Support Service during Stabilization Period**
13.1	The stabilization period shall start after the date of issuance of PAC
13.2	The Stabilization period shall be considered completed when each of the following criteria has been met during one consecutive 90 days' period: i. The full facilities of the system shall be available for more than 99.99% of the time. ii. No major problem shall arise during this period.
13.3	A supplier's technical expert shall be available to solve the problem. Minor problems shall be rectified within 24 hours. The experts shall diagnose the hardware and software faults and rectify the hardware and software faults as required.

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13.4	The supplier shall replace/repair the faulty cards, modules, terminals and any other equipment including third party equipment supplied, if any.
13.5	If all the requirements mentioned in the preceding Clauses are not met, another stabilization period of ninety (90) days shall be put into effect from the last date of occurrence of the fault / outage or failure without additional cost to NT.
13.6	Supplier is responsible for the operation and maintenance support services after commercialization of the system until the issuance of FAC. After the issuance of FAC, the Warranty period shall commence as mentioned in Clause No. 15. of this Section. During the Warranty period Supplier shall fulfil all the requirements as mentioned in Clause No 15.3 of this Section.
14.	**Final Acceptance Certificate** NEPAL TELECOM shall have the liberty to perform any test to verify if any or all the technical requirements specified in the technical specifications document are correctly implemented, if necessary, before issuance of FAC. It shall be the responsibility of the supplier to make the necessary arrangements, including the test equipment to perform such tests. NEPAL TELECOM will issue the Final Acceptance Certificate for the equipment Phase-wise after the supplier fulfils the following requirements: i. Successful completion of stabilization Period ii. Successful implementation of all the technical requirements of Nepal Telecom's Tender Specification and other obligations as per the Contract iii. Clearance of all the deficiencies from the Provisional Acceptance Testing and clearance of all pending faults and operational problems that are found during stabilization period. iv. Arrangement of technical and repair services to solve the hardware/ software problems by the supplier during the stabilization period. The Final Acceptance Certificate shall not be issued until all above-mentioned requirements are met by the supplier. After the issuance of Stabilization Period Completion Certificate (SCC) on successful Completion of Stabilization Period, Final Acceptance Certificate (FAC) shall be issued within 30 days.
15.	**Warranty**
15.1	The twelve (12) Months following the issuance of Final Acceptance Certificate/ Acceptance Certificate shall be designated as the Warranty Period. Supplier should

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	perform warranty services as per clause no 15.3 of this section during warranty period for all the offered equipment including third party equipment.
15.2	NT will issue the **Warranty Completion Certificate** (WCC) after successful completion of the Warranty Period.
15.3	**Warranty Services** The supplier shall do the regular monitoring of the performance of the system, report the same to Nepal Telecom and shall provide the following services during the warranty period:
15.3.1	Depute experienced personnel for the warranty services mentioned above with full availability. Technical support for 24-hours 7-days a week 365 days shall be provided through assistance via phone, fax, e-mail or on-line access. If the maintenance is not successful by the above means, an expert is required on site to solve all reported problems. The warranty period shall be extended and the payments withheld if the services mentioned above are not provided to the satisfaction of Nepal Telecom.
15.3.2	Replacement of faulty equipment shall be included in the warranty service to be provided by the supplier. During this period the bidder shall bear all the expenses for replacement, transportation, insurance and customs duties.
15.3.3	Upgrade of hardware, software version to new version/releases, patch loading and changes in software shall be done if required for solving problems or according to availability. Prior to implementing the patches/upgrade etc., permission shall be taken from NEPAL TELECOM with details of patches/upgrade to be implemented, it's effects and detailed checklist to perform the task. For upgrading the system, the supplier shall provide necessary updating documents, dispatching supplier's expert to implement the changes and support to implement new hardware and software.
15.3.4	Until the completion of warranty period, the supplier shall always and under all conditions be entirely responsible for the satisfactory performance of the system.
15.3.5	The warranty period shall be extended and the payments shall be withheld if the services mentioned in the above-mentioned warranty clauses and Service Level Requirement are not fully met. The warranty period shall be considered successfully completed only if all the repairs and support issues raised during the period are fully resolved.

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15.3.6	Service Level Requirement for Technical Support and Warranty Level Service shall be, as mentioned in Clause No. 17 of this section.
16.	**Extended Warranty Service**
16.1	**General**
16.1.1	Extended Warranty Service is services to be rendered after the completion of Warranty Service. The cost of Extended Warranty Service on an annual basis shall be valid up to three (3) years after expiry of Warranty and if required by NT, will be extended for four more years.
16.1.2	The Extended Warranty Service shall include technical support for operation and maintenance and emergency support: Technical support for operation and maintenance shall include supplying information through documents, telephone, fax, email or software modifications (patches), availing service of the experts to solve the problems of hardware and software and to replace faulty parts. Emergency Support shall include immediate shipment of the spares and immediate dispatch of expert(s), as required.
16.2	**Technical Support**
16.2.1	Bidder shall provide the technical assistance for solving any technical problems in the hardware/software systems via telephone, email, fax or online portal to Nepal telecom Engineers. In case of emergency, technical support shall provide immediate shipment of the spares and immediate dispatch of expert(s), as required. The technical support procedure shall be as per clause no 16.3
16.2.2	The bidder shall provide new software version/releases, patch and changes in software, if required, for solving problems or according to availability during this AMS service for the smooth running of the system till its lifetime. For upgrading the system, the supplier shall provide necessary updating documents, dispatching supplier's expert to implement the changes and support to implement new hardware and software.
16.3	**Technical Support Procedure**

Clause No.	Particulars of Nepal Telecom's Requirements
	The technical support procedure during Annual Maintenance Service Period shall be as follows:
16.3.1	**Reporting of the Problem**
16.3.7.1	**Fault Reporting** The supplier shall also open a Web portal tool for booking/registering the faults reported by NT during the Annual Maintenance Service Period. The Web portal shall be password protected and shall be able to be accessed by authorized NT personnel only. The details of faults booked for each site, its nature, priority level, time taken to resolve the issue, solutions provided, status of each fault reported etc. shall be available on the portal site. Supplier shall also provide options to report faults through email, SMS, telephone, fax etc. Problem shall be considered reported irrespective of the medium.
16.3.7.2	The supplier shall design a fault reporting docket format/ procedure, covering all the details. The fault docket shall be used for technical support, warranty and extended warranty level services during all the service periods.
16.3.7.3	The supplier shall identify each report with an automated unique "Case Number" for tracking purposes.
16.3.7.4	NT will contact the technical expert and give information about the nature of fault over phone/FAX/e-mail/Web portal for which a fault docket should be prepared through Web based tool by the technical support center and online acknowledgement shall be made during Tele-Assistance service Period.
16.3.7.5	During critical or major problems, Nepal Telecom may call, send SMS, email or inform support staff for immediate support, which shall be responded immediately by the supplier.
16.3.2	**Duration of the Fault** The fault report time shall be the time of fault alarm generated in the system. The duration of the fault shall be calculated as per the fault occurrence according to the system log.
16.3.3	**Updates/Patches for Resolution of Problem** The supplier shall prepare necessary updates/patches etc. if required for resolving problems. After testing at their development center, the supplier shall provide updates/patches with complete updating procedure for testing and loading through electronic media at site. After a satisfactory test and approval from NT, the patches shall be made live.
16.3.4	**Problem Resolution and Docket Closure** NT staff will close the Fault Docket after making suitable entries and after the proper restoration of the fault up to NT's satisfaction. A copy of the Fault Docket duly filled-in shall be sent to the technical support Centre for record keeping.

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16.3.5	**Problem and Restoration Log** Once the fault has been rectified and the system & services are restored to normalcy, the visiting representative of the supplier shall record in the logbook and in online documentation, the details of the works done by them for restoration of the faults and also record the details of steps taken and procedures followed. Similar entries shall be made in the fault docket also.
17.	**Service Level Requirement (SLR) for technical support and warranty level services**
17.1.1	The Bidder shall assign an expert, available on a 24X7 basis to ensure the Service level requirements during technical support services and warranty periods.
17.1.2	The Bidder shall provide a single Point of Contact for support issues for all the Hardware and Software including third party goods and software supplied by the Bidder under the Contract during warranty, and EWS. In any situation and circumstances, Nepal Telecom shall not be liable to interact with any of the partners/collaborators or sub-Contractors of the Bidder.
17.1.3	The Bidder shall provide complete postal address, Telephone numbers, FAX numbers and email addresses of Point of Contact. Any change in Name, Address, Phone number, FAX Number, email address, instant messaging ID, contract details etc. shall have to be intimated in writing by the Bidder to Nepal Telecom at the earliest.
17.1.4	The Bidder shall also provide the name of alternate contact person or Technical Support Centre with address & telephone/FAX no., email address, instant messaging ID, who may be contacted by Nepal Telecom staff for support in case of no response/poor response from the designated technical experts.
17.1.5	**Technical Support Center** To meet the SLR, the bidder shall maintain Technical Support Center till the completion of extended warranty period which shall be manned, round the clock, all the seven days of the week throughout the year, by fully competent and responsible Technical Personnel who are: i. Capable of giving all types of necessary technical guidance/assistance over phone to the Nepal telecom staff for fast restoration of faults and ii. Capable of attending the faults at the Nepal Telecom site whenever needed by deputing competent technical expert.

Clause No.	Particulars of Nepal Telecom's Requirements
17.2	**Preventive Maintenance**
17.2.1	**Routine Preventive Maintenance** The technical expert from supplier shall prepare and provide the detail procedures for preventive maintenance, for general system health checkup, for educating/guiding the site personnel on various operational, technical and maintenance related matters etc.
17.2.2	**Preventive Maintenance Schedule** The preventive maintenance schedule shall be prepared by the supplier in advance. Nepal Telecom reserves the right to make changes as per requirements. The preventive maintenance shall not affect the normal functioning of the system. The bidder shall propose preventive maintenance activities and necessary arrangements and tools shall be provided. The details of activities to be carried out during preventive maintenance visits shall be finalized jointly with Nepal Telecom before the start of the service periods. The109chedulee of routine operational and maintenance activities to be carried out shall be provided by supplier.
17.3	**Categorization of the Problem**
17.3.1	**Critical Problem(s)** "Critical Problem(s)" means: i. Critical load/system failure, high rate of call/session/event failure, specific area call/session/event failure, inability to generate charged data records, cluster failure, abnormally delayed processing in any one module, practically non operation of customer services, malfunctioning of critical modules. ii. Any security glitches or faults at any of the EMS site, causing crash of any server or software program or switchover failure from active to standby and vice versa in normal or disaster situation. iii. Any fault in the equipment/system affecting the QOS and availability of service by more than 5% of equipped capacity. iv. Any problem causing direct effect on revenue.
17.3.2	**Major Problems**

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	"Major Problems" means: i. Problems like node failure, frequent call/session/event failures, error in major reports and delayed generation, malfunctioning of non-critical sub-modules, etc. shall also be considered as major problems. ii. Faults at the EMS site causing slow performance of EMS as a whole or any of the servers. iii. Any fault affecting the QOS and availability of service by 5% or less. iv. Any faults related to redundant systems.
17.3.3	**Minor Problems(s)** "Minor Problem(s)" means: I. Any fault causing failure or slowing down of remote operator terminal OMC/EMS access/downloading/printing except due to OMC/EMS faults mentioned above. II. The failure to adhere/complete the preventive maintenance schedule/ activities as per the agreement. III. Any defects or inaccuracies, in the Documentation, delayed /nonresponse/incorrect response on requests for assistance from supplier for understanding of the features, trouble shooting, new configurations, report analysis, hardware/software updates; frequent change of experts support at sites etc. and any other problem not categorized as critical or major.
17.4	**Update** "Update" means a new version of software or hardware that contains bug fixes, error corrections, or maintenance releases where applicable, but does not contain enhancements or significant new functionality not included in the original Documentation or Specifications.
17.5	**Upgrade** "Upgrade" means a new version of software or hardware that contains enhancements or significant new functionality not included in the original Documentation or Specifications.
17.6	**<u>Technical Support Procedure</u>** The technical support procedure shall be as follows:

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17.6.1	**Categorization of Problem** The system shall categorize the problem according to the priority levels (Critical Problem, Major Problem and Minor Problem) as mentioned in this document.
17.6.2	***Reporting of the Problem***
17.6.3	**Fault Reporting** The supplier shall open a Web portal tool for booking/registering the faults reported by Nepal Telecom during **Stabilization period, warranty and extended warranty**. The Web portal shall be password protected and can be accessed by authorized Nepal Telecom personnel only. The details of faults booked, their nature, priority level, time taken to resolve the issue, solutions provided, status of each fault reported etc. shall be available on the portal site. Supplier shall also provide options to report faults through email, SMS, telephone, fax etc. Problem shall be considered reported irrespective of the medium.
17.6.4	The supplier shall design a fault reporting docket format/ procedure, covering all the details. The fault docket shall be used for technical support and warranty level services during all the service periods. The supplier shall identify each report with an automated unique "Case Number" for tracking purposes.
17.6.5	NT will contract the technical expert and give information about the nature of fault over phone/FAX/e-mail/Web portal for which a fault docket should be prepared through Web based tool by the technical support center and online acknowledgement shall be made. During critical or major problems, Nepal Telecom may call, send SMS, email or inform local support staff for immediate support, which shall be responded immediately by the supplier. During the service periods, in case of Problems, the supplier's support team shall initiate and process for resolutions.
17.6.6	**Updates/Patches for Resolution of Problem** The supplier shall prepare necessary updates/patches etc. if required for resolving problems. After testing at their development centers, the supplier shall provide updates/patches with complete updating procedure for testing at site and loading through electronic media. After satisfactory test and approval from Nepal Telecom at site, the patches shall be made live.

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17.6.7	The Supplier shall also ensure visits of the expert and competent technical staff of the manufacturers in case the fault is not completely rectified or not rectified by Nepal Telecom Engineers even after following the telephonic/fax/e-mail instructions and advice. Supplier shall make all reasonable efforts to avail qualified technical experts at site within the shortest time possible.
18.	**Technical Experts Assigned for The Project**
18.1	Installation of all the system shall be done by the supplier's experts together with NT personnel trained at the manufacturer's premises; this shall also include the installation of associated software, software configurations and overall integration of the complete system, as well as testing and commissioning to make the system ready for commercial service. The bidder shall provide competent experts on the offered equipment for the purpose. The experts shall also solve the problems faced during Installation, Configuration and Commissioning of the system.
18.2	Bidder's technical experts deputed for this project shall be proficient in English language and be experienced in the installation, testing and supervision of equipment and materials supplied.
18.3	NT reserves the right to demand replacement of such technical experts deputed by supplier for the project, if the personal assigned could not perform job as assigned.
19.	**Spare Parts:**
19.1	The supplier shall provide list of required spares, including spares for third party equipment that is required for warranty and extended warranty for the whole project according to MTBF requirements.
19.2	**Quantity of Spares**
19.2.1	The bidder shall quote for the required spares with unit price breakdown for each type of cards/sub-cards, modules, storage disk, sub-racks(shelf), GPON SFP.
19.2.2	Such quantity shall include at least 2 (Two) units of each type of cards/sub-cards, modules for all elements or 5% of each hardware whichever is greater. (if the quantity is found in floating point digit, the number of spare shall to upper level integer. E.g 5% of 45 will be considered as 3.)
19.3	NT will maintain those spares for each type of cards, modules in NT stores. The supplier may use the spares for maintenance during the warranty period and shall

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	replace them with a new unit at the earliest. Supplier shall be responsible in the event of unavailability of the spares due to the turnaround time of the replacing unit for the spare.
19.4	If NT needs to purchase additional spares, the unit price of spares shall not exceed that of the Contract unit prices.
19.5	If newer version of spare will be supplied during or after warranty period, it shall be functionally identical with backward compatibility to the ones being offered under this tender and shall not require any adaptation in the system.
19.6	**Spare Supply Period:** The Bidder shall guarantee the supply of the spares, including spares for third party equipment for **a period of Seven (7) years** from the expiry of warranty period.
19.7	**Mean time between failure (MTBF)** The bidder shall furnish MTBF formulae of the offered items including third party items.
19.8	**System Lifetime and Support** The equipment shall be designed for a life expectancy of at least Seven (7) years after completion of the warranty period without serious degradation of performance or reliability. The bidder shall also guarantee support for operation, maintenance, software, spare, repair and upgrading of the offered systems for the same period.

*****End of Chapter 1: General Technical Specifications *****

Chapter 2. Detailed Technical Specifications

Clause No.	Particulars of Nepal Telecom's Requirements
1. System Requirements	
1.1.	The Bidder shall quote for all necessary hardware, software and services required for proper functioning of all equipment to fulfill the technical and functional requirements mentioned in the document.
1.2.	The proposed network shall strictly follow open architecture to enable easy inter-working with products offered by different vendors.
1.3.	The Bidder shall submit a detailed architecture and description of each proposed elements of the OLT and EMS system, including but not limited to, its capacity, protocol supported, interface, etc. proposed to be supplied as part of this tender to meet the functional as well as traffic requirement as envisaged in this tender.
1.4.	The Bidders shall provide a detailed description of the maximum capacity and the hardware platform for each element involved.
1.5.	The proposed OLT shall be capable of working in a multi-vendor environment.
1.6.	**Power consumption** The Bidder shall provide detailed table for maximum power consumption at full load condition for all the offered equipment.
1.7.	**Redundancy**
1.7.1.	The control card shall be 1+1 active sharing. Both cards are working in load sharing mode. In case of failure of one card, the system shall be operated without degradation of the performance.
1.7.2.	Power Supply shall be in 1+1 redundancy mode. The power supply shall have provision of feeding from two different sources. The DC-to-DC converters shall be provided separately for each subsystem and shall be in 1+1 redundancy mode.
1.7.3.	Uplink Interface redundancy shall be provided using different module/card. Both the module/card shall be accessible by both the control subsystems. Failure of an interface module/card shall not lead to switch over of control subsystems.

Clause No.	Particulars of Nepal Telecom's Requirements
1.8.	**Reliability**
1.8.1.	The main control board and interface board of the OLT shall have dual backup and hot swap without affecting the active services.
1.8.2.	The power supply board of the OLT shall have dual backup and hot swap without affecting the active services.
1.8.3.	All the boards of the OLT shall have hot swappable feature without affecting the performance and availability of the system
2.	**Optical Line Terminal (OLT)**
2.1.	**General Requirement**
2.1.1.	The GPON OLT integrated with L2/L3 functionality shall be used to provide high speed triple play services to residential and business customers via GPON ONUs. The solution shall be able to provide all the features and services to its subscribers
2.1.2.	All the GPON OLTs shall support at least 5 Services (Internet, IPTV, Voice, lease and ONT Management) per FTTH subscriber. All the licensing required for each OLT Interface Port, Uplink Port or Services in the GPON OLT shall be quoted and shall be open and usable without any restriction.
2.1.3.	GPON OLT shall be complied with ITU-T recommendations G.984.1, the G.984.2 + Amd1 + Amd2, G.984.5 and G.988 (ONU management and control interface (OMCI)). The GPON OLT shall be upgradable to XGS-PON and combo PON as defined by G.987 and G.9807.1 series in the same chassis. The bidder shall provide response for all these standards. In the proposed OLTs, single Port of combo PON shall support 10GPON and GPON subscriber both. For this requirement, the bidder shall propose control card which shall support both XGSPON and GPON service cards, in all proposed OLTs.
2.1.4.	The system shall allow interconnecting third party ONT/ONUs in the offered GPON OLT. There shall be no restriction in configuring and providing offered services through such ONT/ONUs. The bidder shall quote for any charges required including any licenses (if required) to connect any 3rd party ONT/ONUs.

Clause No.	Particulars of Nepal Telecom's Requirements
	The price quoted for the ONTs shall be considered for evaluation
2.1.5.	The bidder shall inform and give details of any major upgrade that may affect the ONT/ONU functionalities one month prior to implementation at Nepal Telecom.
2.1.6.	The product name, version number shall be provided.
2.1.7.	OLT shall support IPTV service. It shall support multicast mechanism, bandwidth and QoS guarantee. It shall support multicast user right management, channel management and conditional access control capabilities.
2.1.8.	OLT shall have cascading functionality to increase capacity.
2.1.9.	The bidder shall specify bus bandwidth as well as bandwidth indices ensuring high bandwidth for different service boards.
2.1.10.	The bidder may offer multiple number of OLT Chassis to fulfill the requirement of each site. The bidder may offer different chassis capacity depending upon the site requirement however the line cards shall be same for those chassis. The bidder shall install multiple OLT Chassis in a single rack. The bidder shall provide the required numbers of racks/cabinets with the necessary power distribution unit, fans, accessories etc. to equip the OLT Chassis on each site as mentioned in SoR.
2.1.11.	OLT Type: Type 1: This type of OLT shall have 2-4 GPON Service Slots and the chassis height shall not exceed 5 Rack Unit. Type 2: This Type of OLT shall have 5-8 GPON Service Slots. Type 3: This type of OLT shall have at least 9 GPON Service Slots.
2.1.12.	The OLT shall segregate media, signaling and management traffic based on different VLANs/ Physical Interface.
2.1.13.	The bidder shall provide the equipment with enough protection in their line cards under different conditions like environmental conditions, weather conditions of the terrain.

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2.1.14.	The OLT shall be able to interwork with the already deployed BRAS, and other servers in NT network.
2.2.	**Environment Conditions requirement** The offered OLT shall comply with following characteristics:
2.2.1.	Storage temperature: from -25ºC to +55ºC in compliance with ETS 300 019-2 / ETSI EN 300 019-1-1, Class 1.1
2.2.2.	Transportation: In compliance with ETS 300 019-2-2 Class 2.2. / ETSI EN 300 019-1-2 Class 2.3
2.2.3.	The Equipment shall comply with ETS 300 019-2 / ETSI EN 300 019-1-3 Class 3.1E standard with the following requirements: Operating temperature range: Indoor type: from -40ºC to +65ºC, Ambient humidity: 90 %.
2.2.4.	Voltage jumps protection. The system must comply with voltage jumps protection requirements: a. 61000 (IEC-801-5) level 2 or EN 61000-4-2 ESD, b. ITU-T K.20, c. ETS 300 386-1/ ETSI EN 300 386 V2.1.1.
2.2.5.	Bidder shall submit grounding specifications.
2.2.6.	Electric protection Safety must comply with 69050 (IEC 950) standards. or IEC 62368-1, EN 62368-1
2.2.7.	Safety requirements Safety must comply with 69050 (IEC 950) standards. or IEC 62368-1 , EN 62368-1
2.3.	**Specification for Indoor Cabinet of the OLT.**
2.3.1.	OLTs should be mechanically robust with an impact-resistant finish which can withstand shock and vibrations.

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2.3.2.	There shall be no protrusions or sharp edges, which could constitute a safety hazard for personnel. Neither shall there be any connector, switch, etc. protruding from the rack or module or sub-assembly which could be accidentally knocked and cause a partial or complete loss of traffic or interruption to the system.
2.3.3.	Low contact-resistance plugs and sockets shall be used; particular care being taken to minimize the effects of corrosion or metallic migration. Bidders shall provide full details of such arrangements.
2.3.4.	Gratings/ Spacing for heat exhaust from the rack shall be designed so that rodents will not be able to enter inside the rack.
2.3.5.	The sub-assemblies shall be sealed to prevent the ingress of fine dust particles.
2.3.6.	The cable entry points in the rack shall be possible to be sealed with metallic sliding covers/ adhesive plastic to make the rack internals rodent free.
2.3.7.	All empty slots of the shelves shall be provided with removable covers.
2.3.8.	The height of the indoor cabinet for easy placement shall not exceed 2200 mm.
2.3.9.	The OLT rack shall include adjustable rack base stand to be mounted in the room with raised floor.
2.4.	**Power Supply**
2.4.1.	There shall be 1+1 protection of the power system. For each OLT chassis, there shall be 2 Power cards/modules for redundancy.
2.4.2.	The bidder shall specify power consumption, in different operating conditions for all offered modules.
2.4.3.	It shall have protection mechanism for over voltage and over current (ITU-T Rec.K20)
2.5.	**Interfaces at the Network Side**
2.5.1.	The Type 2 and Type 3 OLT Chassis shall have at least 4x10GE SFP+ up-link interfaces and it shall be equipped with at least 2x 10GE SFP+

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	up-link interfaces. However, For the Type 1 OLT chassis with 32 or Lower OLT port requirements, it shall have at least 2x10GE SFP+ up-link interfaces and it shall be equipped with at least 1x 10GE SFP up-link interfaces. However, the 10GE interface shall be compatible with GE interface.
2.5.2.	The OLT shall support uplink port link aggregation from different cards.
2.5.3.	OLT cascading shall be supported.
2.5.4.	Link aggregation shall be supported across different network interface cards.
2.5.5.	The OLT shall be able to support multiple number of Link Aggregation groups per network interface card.
2.5.6.	The OLT shall be able to do LAG (Link Aggregation), adding port to the LAG, removing Port from the LAG and releasing the LAG.
2.5.7.	The OLT shall be able to retain LAG Basic Operation – with Hard Reset
2.5.8.	The OLT shall be able to retain LAG Basic Operation – during Upload and Download
2.6.	**Interfaces at the Side**
2.6.1.	**GPON**
2.6.2.	Subscriber Port shall support Upstream rate of minimum 1.244 Gigabits/s and Downstream rate of 2.488 Gigabits/s.
2.6.3.	Each Subscriber port shall support 64 subscribers with the use of single fiber PON i.e. it shall support at least 1:64 split ratio per GPON Port.
2.6.4.	It shall support at least type B protection features for subscribers such that two Subscriber Ports of OLT across different line cards can be connected in main and standby mode. When the main link fails the standby shall take over automatically.
2.6.5.	The OLT shall be supplied with all the required SFPs for subscriber ports and all the Port shall be SC/UPC.
2.6.6.	Supplied GPON OLT card shall be of at least 16 ports.

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2.6.7.	**Combo GPON**
2.6.8.	Each subscriber port shall be compatible with GPON and XGSPON ONT.
2.6.9.	Subscriber Port shall support Upstream rate of minimum 1.244 Gigabits/s and Downstream rate of 2.488 Gigabits/s for GPON ONTs and Upstream rate of minimum 10 Gigabits/s and Downstream rate of 10 Gigabits/s for XGPON ONTs.
2.6.10.	Each Subscriber port shall support 64 subscribers with the use of single fiber PON i.e. it shall support at least 1:64 split ratio per GPON Port.
2.6.11.	It shall support at least type B protection features for subscribers such that two Subscriber Ports of OLT across different line cards can be connected in main and standby mode. When main link fails the standby shall take over automatically.
2.6.12.	The OLT shall be supplied with all the required SFPs for subscriber ports and all the Port shall be SC/UPC.
2.6.13.	Supplied Combo GPON OLT card shall be of at least 16 ports.
2.7.	**Network Functionality**
2.7.1.	OLT shall be able to use Star, Tree and Daisy Chain Cascading topology, Ring cascading.
2.7.2.	OLT shall be able to use Rapid Spanning Tree Protocol as per IEEE 802.1w, Multiple Spanning Tree Protocol as per IEEE 802.1s.
2.7.3.	The proposed OLT shall have Multicast IGMP (latest version 3 or higher), Snooping, Multicast IGMP Proxy, DHCP relay, DHCP option 82, Multicast, PPPoE, IPoE, SNMP V2 and V3, FTP, TFTP, QinQ VLAN stacking, IP address filtering, MAC address filtering and at least 255 multi cast group.
2.7.4.	The proposed OLT shall have IEEE 802.1D Bridged Ethernet and shall support at least 4K IEEE 802.1Q – VLAN and Frame Prioritization over Ethernet.

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2.7.5.	OLT shall transport following protocols transparently from ONT/ONU to service provider and vice versa. ▪ IP Bridging/Routing (1483) and latest RFC ▪ PPPoE (RFC 2516)
2.7.6.	OLT shall support at least 128K MAC addresses per chassis.
2.7.7.	The OLT shall add or remove a VLAN tag to tagged or untagged incoming Ethernet frames.
2.7.8.	The OLT shall add or remove two levels of VLAN tagging (SVLAN and CVLAN) to tagged/ untagged incoming Ethernet frames.
2.7.9.	The OLT shall support 1:1 and N:1 VLAN forwarding according to TR101 of the DSL Forum.
2.8.	**QOS features**
2.8.1.	The OLT shall have the ability to classify traffic based on its type and priority, so that QoS policies can be applied accordingly. The OLT shall have up to eight priority queues.
2.8.2.	The OLT shall have IEEE 802.1 P & Q features
2.8.3.	The OLT shall have TOS priority. The OLT shall be able to manage queues and prioritize traffic based on its importance or priority.
2.8.4.	The OLT shall have ability to control the rate of traffic transmission to prevent congestion and ensure that high-priority traffic is given priority over lower-priority traffic.
2.8.5.	The OLT shall allow Dynamic Bandwidth Allocation (DBA)
2.8.6.	The OLT shall be able to detect and manage congestion in the network to ensure that traffic flows smoothly.
2.9.	**Scalability**
2.9.1.	The OLT shall be capable of modular expansion. Configuration and expansion of it shall allow greater flexibility. The bidder shall give the

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	ultimate capacity of each rack and a brief description of how expansion will be made.
2.9.2.	The OLT shall be capable of cascading. The bidder shall specify mode of cascading, necessary interfaces, requirements of physical transmission media, topology, and maximum number of equipment that can be cascaded
2.10.	**Security**
2.10.1.	It shall be capable of filtering L2 traffic like broadcast traffic, source MAC address, destination MAC address, etc.
2.10.2.	It shall support L2 ACL (Access Control List).
2.10.3.	The security mechanism shall be applied and explained for following cases: i. MAC Flooding attack ii. Broadcast flooding iii. ARP spoofing iv. MAC spoofing v. Unauthorized establishment of PPPOE/IPoE server vi. Unauthorized establishment of Multicast server vii. Spanning Tree attack viii. Flow Control ix. IGMP and DHCP filtering x. DoS Prevention xi. PPPOE/IPOE snooping filtering capability. xii. IGMP snooping filtering capability. xiii. DHCP snooping filtering capability
2.10.4.	The interface card shall be able to provide broadcast suppression per VLAN.
2.10.5.	The OLT shall provide source MAC filtering per port.

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2.10.6.	The OLT shall be able to limit the number of concurrent MAC addresses per port.
2.10.7.	The OLT shall be able to support blocking and filtering of direct User to User traffic on the same Line Card as well as different line cards.
2.10.8.	It shall be possible to define a blacklist of MAC addresses that are refused access to the network.
2.10.9.	The Bidder shall explain if the virtual MAC addresses (VMAC) is supported.
2.10.10.	The OLT shall support SSH (Secured Shell).
2.10.11.	The OLT shall support MAC spoofing. Hence, two different users cannot get services while they are using the same Source Address, and the system is blocking the traffic of the pretended user.
2.10.12.	The OLT shall support Server MAC Spoofing. Verifying that the user cannot transmit traffic with same Source Address as the server; by trying to do so, the system shall block the port.
2.10.13.	The OLT shall support handling of traffic flooding via the Out-Band port without CPU starvation.
2.10.14.	Security Mechanism shall be applied and explained: i. For PPPoE/IPoE filtering capability ii. For IGMP snooping filtering capability
2.10.15.	OLT access interface measurement counters The OLT shall support counters, via EMS as per the following:
2.10.15.1.	Per Interface Card i. Drop Events ii. Total Received iii. Broadcast iv. Multicast v. CRC Error vi. Unicast vii. Undersize

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	viii. Oversize ix. Fragments x. Jabbers xi. Collisions xii. 64 Octet Size / 64 Byte packets xiii. 65127 Octet Size / 65 to 127 Bytes packets xiv. 128255 Octet Size / 128 to 255 Bytes packets xv. 256511 Octet Size / 256 to 511 Bytes packets xvi. 5121023 Octet Size / 512 to 1023 Bytes packets xvii. 10241518 Octet Size / 1024 to 1518 Bytes packets xviii. RX Octets/ Bytes xix. TX Octets / Bytes xx. TX Good Octets
2.10.16.	Video Statistics Counters as Pass Through i. Channel Count ii. Busy Bandwidth iii. Joins iv. Success Joins v. Denied Joins vi. Failed Joins vii. Leaves viii. Gen Queries ix. Spec Queries x. Invalid Messages
2.10.17.	The OLT shall be able to detect and block rogue ONTs in any ports of the OLT.
3.	**NMS/EMS Requirements**
3.1.	**General Requirement**
3.1.1.	The bidder shall quote fully functional EMS, to manage the offered OLT.
3.1.2.	The offered EMS shall be able to interconnect with Nepal Telecom's Convergent Real Time Billing and Customer Support (CRTB & CS) System and any upcoming billing system in NT for provisioning management with SOAP/REST/TL1.

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3.1.3.	The offered EMS shall have APIs to connect with Nepal Telecom's provisioning platform with SOAP/REST/TL1.
3.1.4.	The functionality of the EMS shall be based on the following major areas: a) Fault management b) Configuration Management c) Alarm management d) Performance management e) Security Management
3.1.5.	The offered EMS shall feature platform-independent language, and a cross-platform, fully object-oriented distributed design to ensure scalability and maintainability. The system shall be deployed across hardware and software platform with UNIX/LINUX Servers.
3.1.6.	The offered EMS shall provide graphical user interface that provide convenient method for performing configuration, monitoring and routine network maintenance for users and administrators
3.1.7.	The EMS and its various modes shall be able to perform various requirements mentioned in this specification such as management, observation, maintenance, and configuration without any restrictions
3.1.8.	The offered EMS system shall be integrated with NOC/NMS systems with standard North Bound Interface (NBI) like SNMP, CORBA, TL1, SOAP/XML, File. The bidder shall quote for the integration Price of EMS to NMS system which includes description document for all supporting NBI and integration services too.
3.1.9.	The bidder shall provide the NBI for FCAPS modules of NOC system. All cost involved for license and service integration cost shall be included along with the bid.
3.1.10.	The bidder shall provide NBI and required MIB information to integrate with NOC system. The bidder shall provide a description document for all supporting NBI.
3.1.11.	The EMS shall be able to maintain the data consistency between the network management server and the NEs.

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3.2.	**Fault Management** This shall broadly cover Alarms, Fault localization, Diagnostics and testing.
3.2.1.	It shall provide real-time alarms, alarm history and events. It shall support customization of filters and views. Visual or audio alerts shall be able to be selected to indicate alarms, which can be acknowledged or cleared. Moreover, the system will detect the NE status automatically, and then generate or clear alarms
3.2.2.	It shall be able to define whether an alarm is of critical, urgent, non-urgent nature, and setup a full-fledged Alarm Policy.
3.2.3.	A summary of all alarms (OLT, ONT, and EMS) shall be presented on demand or at configurable intervals to the user by email or SMS or to a remote EMS monitoring point by SNMP, CORBA, REST or SOAP protocol.
3.2.4.	The EMS shall be able to co-relate all the alarms and the root cause of the alarm shall be available for further diagnosis.
3.2.5.	It shall give a visual indication of an alarm depending on its severity level.
3.2.6.	All the Alarm related information, such as start of alarm, end of alarm, acknowledge time shall be able to be logged to a write protected file
3.2.7.	Alarm escalation procedures shall be possible to be defined, depending on severity, time elapsed, location, service affected, vendor, customer and technology. It shall have the capability to escalate the alarms to higher authorities via SMS, emails etc. **SMS Notification:** The offer shall include SMPP interface for the purpose of SMS notification to be interfaced with SMSC (GSM). NT will provide IP link directly or indirectly. The receiver(s) of the notification shall be configurable. The alarm category to be notified shall be configurable. It shall also be configurable to choose the recipient based on location of the alarm origination upto ONT level. The content of the notification shall be configurable. **Email Notification:** For the purpose of email notification, NT will provide an email ID and the IP address of SMTP server along with internet connection through the IP network. The offer shall include the application to be able to perform the required function. The receiver(s) of the notification shall be configurable. The alarm category to be notified shall be configurable. It shall also

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	be configurable to choose the recipient based on location of the alarm origination upto ONT level. The content of the notification shall be configurable.
3.2.8.	It shall be able to run diagnostic routines and to locate the fault up to a certain part of the network. It shall have capabilities to identify faults up-to the module / port level.
3.2.9.	It shall be possible to run automatic or manual tests based on certain policies and authorizations.
3.2.10.	EMS shall store logs of minimum of 6 months shall be stored and able to be browsed and storage shall be based on search criteria like severity, time, date etc. The logs shall be at least operation, configuration, alarms and security.
3.2.11.	Along with system alarms, environment alarms shall be essentially included and integrated in the alarm systems. The environmental alarms sensors shall be available in OLTs. The bidder shall provide details of the implementation.
3.2.12.	Cleared alarms shall be kept on the EMS system for a configurable period of time and must be able to be managed (viewed, filtered) from the EMS GUI
3.3.	**Configuration Management:** This function broadly covers Provisioning, Control, Network Database preparation and maintenance.
3.3.1.	It shall be capable of provisioning and management of all types of subscriber services.
3.3.2.	It shall be possible to activate, change or de-activate services or features upon request from user and/or provisioning/billing system.
3.3.3.	It shall be able to configure a new network element with the corresponding network database entries.
3.3.4.	It shall be able to add, modify or delete the network elements.
3.3.5.	The EMS shall be able to indicate the hierarchy relationships among elements, which include shelves, interface units, and ports. The hierarchy relationships include at least the following information: (1) the physical index of each shelf, (2) the physical index and type, e.g., GPON/ GE, of each interface unit, and (3) the physical and logical indexes of each port. The logical index, or called interface index, of each port in an OLT shall be unique.

Clause No.	Particulars of Nepal Telecom's Requirements
3.3.6.	The EMS shall provide real time monitoring and display functions of the FTTH line, subtend interface and the Network interface.
3.3.7.	The EMS shall be able to collect and display the maintenance signal alarms/events including LPR, LOS, LOF, and Link Up/Down for FTTH. The alarm/events shall be exportable in .csv, .xlsx, .txt etc. format.
3.3.8.	The EMS shall be able to export and import NE topology.
3.3.9.	The EMS shall provide ping command for testing the Network equipment and path health
3.3.10.	The EMS shall be able to create and delete the VLAN/TCONT/GEM values and configure the data rate for each link.
3.3.11.	The EMS shall be able to configure and read the parameters including target noise margin, and desired rate for each FTTH line.
3.3.12.	The EMS shall be able to download the updated software to the OLT.
3.3.13.	The EMS shall be able to reset OLT's FTTH subscriber interface.
3.3.14.	The EMS shall be able to enable/disable OLT's subscriber interface unit on port basis and service basis.
3.3.15.	The EMS shall be able to configure the Administration Status and read Operational Status and Administration Status for FTTH subscriber interface and network interface.
3.3.16.	The EMS shall be able to create and delete bridge port connections and assign the same/different Tx/Rx QoS profiles to each link.
3.3.17.	The EMS shall be able to create and delete QoS profiles and assign specific values to QoS parameters.
3.3.18.	The EMS shall be able to enable/disable the snooping, or proxy function.
3.3.19.	The EMS shall be able to retrieve performance parameters from the network interface card in the following categories: i. Packet counters (Drop events, Total received, Broadcast, Multicast, CRC Error, Unicast, Undersize, Oversize, Fragments, Jabbers, Collisions, Flow Control)

Clause No.	Particulars of Nepal Telecom's Requirements
	ii. Octet Counters (Octets received/sent per size, Good Octets, Bad Octets)
3.3.20.	The EMS shall be able to retrieve the performance parameters of error packets and discarded packets on demand for each uplink network interface.
3.3.21.	The EMS shall be able to retrieve the Tx/Rx traffic data uplink network interface, and FTTH subscriber interface.
3.3.22.	The network representation shall be based on a tree like structure as well as in a graphical structure.
3.4.	**Performance Management:** This module gives the ability to detect and correct very low rate or intermittent error conditions, which cannot be detected by the Alarm Management module.
3.4.1.	Under this module it shall be able to set values and thresholds above or below which certain measurements on a long-term basis are to be carried out.
3.4.2.	The EMS shall co-relate and report only the root cause due to which all the threshold crossing alerts have been generated.
3.4.3.	Remote real time monitoring capabilities: System shall be able to generate real time monitoring events and alarms. All events shall be displayed in a single window. Detailed reports shall be stored in system for troubleshooting and analysis
3.4.4.	All MIBs shall be provided for integration with third party performance/alarm management system.
3.4.5.	System shall be able to perform measurement, observation and trace management.
3.4.6.	The EMS shall be able to periodically receive and indicate the performance data from the managed NEs. The performance counters results shall be collected on demand, routinely or by exception when a parameter threshold has been crossed.
3.4.7.	It shall be possible to export Performance management data to external systems for further analysis.
3.4.8.	The EMS shall be able to store transmit power, receive level, errors, bandwidth utilization of all the ONUs, OLT subscriber ports and OLT uplink ports for at least 6 months.

Clause No.	Particulars of Nepal Telecom's Requirements
3.4.9.	The system should allow to retrieve information at certain Intervals on all subscriber ports in the network concurrently without overloading the network elements
3.5.	**Security Management:** This broadly covers aspects related to intrusion detection, containment, and recovery and security administration.
3.5.1.	It shall be able to detect any incidents of security violations, such as alarms for door opening unauthorized access into network, physical tampering of equipment etc.
3.5.2.	Shall have functionality to support actions to limit the damage caused by the security intrusion, such as isolation of equipment, removal of user access permissions etc.
3.5.3.	All system access shall be via secure channels such as SSH, SSL. System shall be able to provide security against unauthorized access and attacks such as DOS/DDOS.
3.5.4.	All information from each Network element shall be presented to the user for taking appropriate actions to assess overall network performance.
3.5.5.	The offered management system shall be able to provide SLA reports and service reports. System shall support SNMP for collecting the element parameters. System shall be having integration capability with third party management system.
3.5.6.	Remote real time monitoring capabilities: System shall be able to generate real time monitoring events and alarms. All events shall be displayed in a single window. Detailed reports shall be stored in system for troubleshooting and analysis
3.5.7.	All MIBs shall be provided for integration with third party management system.
3.5.8.	The proposed solution shall provide Integrated Management (Provisioning Alarms).
3.5.9.	The proposed solution shall provide Integrated Configuration of Policies (Routing, QoS, SLA etc.)
3.5.10.	The proposed solution shall provide Topology hiding.

Clause No.	Particulars of Nepal Telecom's Requirements
3.6.	**Maintenance and Management Mode**
3.6.1.	The maintenance shall be possible in all the following modes simultaneously. i. Local management Mode ii. Remote Management Mode iii. Centralized Operation and Maintenance Mode
3.6.2.	**Local management Mode:**
3.6.2.1.	Interface Requirements: The equipment shall provide a local management interface (Console interface, 10/100Base-T interface etc.). The bidder shall provide details of the local management interface. This will enable to work locally with the related network element.
3.6.2.2.	Functional Requirements: The interface shall provide basic functions like configuration management, fault management, performance management and security management for equipment.
3.6.2.3.	Operation Platform: The required operator terminal shall be PC and OS shall be windows based with appropriate software loaded. The offered equipment shall work with cluster management principle.
3.6.2.4.	This mode shall work even though the EMS server is not reachable. In other words, this mode shall work even when the network element has no working link with remote terminal/EMS.
3.6.3.	**Remote Management Mode**
3.6.3.1.	The equipment shall provide remote maintenance and management via secure connection (SSH). The functional requirements of remote maintenance are the same as those of the local maintenance.
3.6.3.2.	This mode shall work even though the EMS server is not reachable. This mode shall work wherever there is TCP/IP connection with the network element.
3.6.4.	**Centralized Operation and Management Mode**

Clause No.	Particulars of Nepal Telecom's Requirements
3.6.4.1.	The equipment shall provide network management in SNMP protocol. The bidder shall list centralized operation and maintenance modes, corresponding network management software version, the needed hardware configuration as well as the maximum quantity of management facilities.
3.6.4.2.	The equipment shall be managed by SNMP V2, V3 or above and all operations of SNMP shall be able to be carried out.
3.6.4.3.	The equipment shall realize all the Management Information Base (MIB) about equipment configuration. The bidder shall explain how to use MIB. If the MIB specified by the bidder is adopted, the bidder shall tell the content and the format of the management information that is available from various interfaces of the equipment. In addition, the bidder shall open the protocol interface.
3.6.4.4.	The system shall work simultaneously with at least 50 operation and maintenance terminals in order to manage the equipment simultaneously, and the bidder shall clearly mention the maximum numbers of operation terminals that can be operated simultaneously.
3.6.4.5.	The equipment shall have in-band centralized network management mode as well as out-band mode. In-Band and out-band management system: a) In-band management is achieved through a connection between the EMS server and the network interface of the NEs. b) For in-band management it shall be possible to define a dedicated VLAN to handle the management traffic between the EMS and the NE. c) Out-of-band management shall be possible via a dedicated 100BaseT Ethernet management interface on the NE. The bidder shall explain the networking schemes under the two modes respectively. For the former, the bidder shall mention how to separate subscriber's information from network management information.
3.6.4.6.	The operation maintenance center shall have hierarchical, cell and authority distributed network management modes. The bidder shall explain the supportable number of levels for hierarchical network management system and the maximum abilities of NEs that can be managed. The bidder shall furnish the present capacity and the ultimate capacity of the offered system.

Clause No.	Particulars of Nepal Telecom's Requirements
3.7.	**Online manuals and Help System**
3.7.1.	All manuals shall be available electronically. The manual shall be used to display and browse through the complete NE and operations system documentation in electronic form.
3.7.2.	Help System The EMS manuals shall be supplemented by a help system that can be used by both users and administrators. Each EMS application shall have its own help system which offers the following information: i. Application overview ii. Step-by-step instructions on how to carry out application tasks. iii. Reference information on the application's main window and its elements, such as toolbar, status bar and menu commands iv. Comprehensive glossary of EMS specific terms v. Keyboard shortcuts vi. Context-sensitive help on items on the screen, including "What's This?" help and help relating to an active dialog box
3.8.	**Architecture**
3.8.1.	The local dual-system, hot standby with dual host, disk array and fault tolerance cluster software shall be provided for the redundancy architecture of the EMS. There shall not be single point of failure with respect to power/server/databases.
3.8.2.	The system availability shall be 99.999%
3.8.3.	Hardware
3.8.4.	The offered EMS shall be based on servers running on UNIX/LINUX and be able to achieve following goals: i. High degree of modularity and flexibility for easy expansion ii. Widely scalable and distributable system

Clause No.	Particulars of Nepal Telecom's Requirements
	iii. Maximum system reliability
3.8.5.	The architecture of the offered EMS shall be governed by the client/server principle. The clients shall be windows-based PC with intuitive GUI based application.
3.8.6.	All the necessary hardware shall be provided with a scalability of 200% of the total requirement. The details of licenses required and the costs shall be quoted including unit price of license.
3.8.7.	All supplied servers shall be installed with UNIX/LINUX operating system with latest patches.
3.9.	**Terminals**
3.9.1.	It shall be possible to assign one or more functions to any one terminal for operation and maintenance purpose.
3.9.2.	It is intended to locate multiple operator terminals at various locations. Combination of user identity and the terminal identification shall be allowed to perform certain operation and maintenance. The user, terminal and authorization shall be flexibly configured for different user levels having various access rights.
3.10.	**User Capacity**
3.10.1.	The system shall be able to create at least but not limited to 512 users and shall handle a minimum of 100 concurrent users from different terminals/clients. The bidder shall provide the maximum number of concurrent users that is supported by the offered system.
3.10.2.	The EMS shall be able to handle at least 10 concurrent users in the same command area.
3.10.3.	Terminal Session Handling. The operator's terminal shall log-on only after the personal identity and the authorized password are entered into the system. If the terminal is not used for a certain period (which shall be configurable) the terminal shall log-off automatically. The operator also shall be able to log off at any time manually. The user with higher authority shall be able to view logged on users and force log-off the users if required.
3.11.	**Security**

Clause No.	Particulars of Nepal Telecom's Requirements
3.11.1.	A hierarchical user identities system shall be adopted. Such that, it shall be possible to group user identities of the operators into different hierarchical levels. Each level shall have authority to perform different actions from the terminals. The grouping shall be highly flexible.
3.11.2.	Unauthorized operator action shall be prevented using personal identity of the operator and passwords. Each operator will be required to enter his identity and the password for the type of action he is going to undertake. The system will check the operators' identity and the password and permit to access the authorized area of the software data. Shall there be more than three attempts within a period of configurable time (for e.g. 15 minutes) to access the unauthorized area by any operator, an alarm report shall be generated and the terminal used shall be blocked for configurable time (for e.g. 10 minutes). The details of the attempts made including the personal identity and the password used, date and time shall be recorded in the history file and shall also generate alarm (with password suppressed). However, it shall be possible to print the full record of such attempts (including the password) if desired so by the authorized personnel.
3.11.3.	The subscriber changeable key number once assigned by the operator shall be displayed only by a higher-level password.
3.12.	**User Levels**
3.12.1.	Users of different hierarchical levels shall be used for accessing different areas of the software data. For each element of operator command (each and combination of the commands like display, modify, verify, assign, add, delete etc. is defined as an element), there shall be a separate user, which shall be flexibly configurable.
3.12.2.	A user of higher level shall have access to many areas of software data while one of lower level shall have access to a limited number of software areas.
3.12.3.	The user for read-only access of data shall be different from the one for read and write access of data, in the same area.
3.12.4.	The super-user or Administrator shall be able to assign, modify and delete the users, personal identities and passwords being used by other operators.

Clause No.	Particulars of Nepal Telecom's Requirements
	The individual operator shall be able to change the password but this will not result in a change in the accessible area. Access to the software data shall be defined by the combination of personal identity and the password.
3.13.	**Software Architecture**
3.13.1.	The offered EMS shall have modular software structure and shall be designed with the following goals: i. Operability ii. Flexibility and scalability iii. High Availability iv. High performance v. Continuity and robustness
3.13.2.	The offered EMS shall be based on standard software products guaranteeing high reliability and maintainability
3.13.3.	There shall not be any restrictions on operation due to licensing or user rights of the EMS in the lifetime of all the network elements and the EMS itself.
3.13.4.	The system shall provide global support for network management protocols including SNMP V2, V3 and higher/ICMP/ SFTP/ CLI/TL1 etc.
3.13.5.	CORBA/SNMP/SOAP/XML interface shall be provided to interconnect with upper layer management system, NOC/NMS/OSS.
3.13.6.	The offered system shall have standard interface with OSS/provisioning system so that they can perform provisioning and de-provisioning of services. The interface shall be based on TCP/IP. The bidder shall give details and explain the commands, functions, parameters and interface for the above-mentioned purpose. For this purpose, standard based interface like MML/ CORBA/ LDAP/ SNMP/ SOAP/XML/REST shall be used.
3.14.	**Backup and Restore**
3.14.1.	Backup and Restore of EMS EMS backup and restore shall provide a complete solution for backing up and restoring data of the EMS applications. In case of system or hardware failure, it

Clause No.	Particulars of Nepal Telecom's Requirements
	shall be possible to fall back to the backup data and restore it. In case of failure of backup restore operation, the administrator shall be notified by e-mail, SMS.
3.14.2.	Backup and Restore of Network elements There shall be provision to back-up and restore the data (example configuration data, subscriber data, trunk data, routing policies etc.) of the network elements and store in/from external media and Network server. It shall be possible to perform backup and restore of data parts separately. It shall be possible to restore the whole of the code and data from the backed-up data. The bidder shall explain details of testing the backed-up code and/or data offline or test load for the consistency and usability.
3.15.	**Topology Map Viewer**
3.15.1.	The offered EMS shall have Topology Map Viewer (function that shows overall network view and summary information for all monitored objects.
3.15.2.	It shall allow all online activities, such as viewing alarms and launching applications to deal with the alarms of a selected object or manage the selected object.
3.15.3.	The main features of the Topology Map Viewer application shall be as follows: i. Opening and printing maps ii. Selecting user-specific alarm filters iii. Refreshing alarms iv. Displaying alarms for a node v. Launching an application from a node or map object vi. Changing the properties of an object vii. Managing applications viii. Setting threshold conditions ix. Providing audible indications of threshold conditions
3.15.4.	The EMS shall have the ability to auto-discover the network elements and the links to include them in the visual / graphical map on the GUI.

Clause No.	Particulars of Nepal Telecom's Requirements
3.16.	**Multiple Command Execution, Scheduling and Miscellaneous features**
3.16.1.	Batch Mode Operation
3.16.1.1.	A number of commands (executable from the EMS) will be grouped and stored in a batch file (text file) in a PC. It shall be possible to execute all the commands in the batch file (after being transferred to the system) by giving a single command by the operator.
3.16.2.	Scheduling
3.16.2.1.	It shall be possible to create schedules, such that commands in a schedule will be executed at a pre-defined date and time
3.16.2.2.	It shall be possible to schedule, a command, or group of commands or a batch file, for execution i. Once, at a particular time ii. Periodically, at given minutes of an hour/ hour of a day/ day of a week/ date of a month
3.16.2.3.	It shall be possible to create at least 100 different schedules in proposed EMS.
3.16.3.	Miscellaneous
3.16.3.1.	The Batch mode operation or range inputs or scheduling shall not influence or degrade or limit the performance of the EMS.
3.16.3.2.	The batch mode operation or range inputs or scheduling shall have all the EMS features.
3.16.3.3.	It shall be possible to issue multiple commands from different users/terminals simultaneously. The commands shall be executed or queued then executed. If the commands given are from critical configuration areas the operator shall be prompted with messages like 'user … is executing the similar command'.
3.16.3.4.	It shall be possible to perform software upgrades in the NEs remotely from the management system. It shall also be possible to fall back to previous software versions after a remote upgrade.

Clause No.	Particulars of Nepal Telecom's Requirements
3.16.3.5.	The bidder's solution shall have the ability to perform mass downloads of configuration files, profiles, multicasting channels and packages, and mass replacement of port profiles to multiple NEs and ports simultaneously.
3.16.3.6.	The following mass configuration tasks shall be possible: i. Downloading port profiles to selected NEs. ii. Backup and restore of NE configuration files. iii. Performing software upgrades on multiple NEs simultaneously
3.16.3.7.	Management Information Service (MIS) Reports It shall be possible to generate various MIS reports based on various criteria like days, month-wise, time wise, year-wise, total up-to now, region-wise, or combinational search criteria. It shall be possible to list all the objects – like all subscriber numbers/port identities and/or provide only a summary report with total counts.
3.17.	**EMS Client/operator Terminals** The proposed client software shall be operable on the offered workstation.
3.17.1.	**Type 1 Terminal**

Clause No.	Particulars of Nepal Telecom's Requirements
3.17.1.1.	The client/operator workstation terminals shall have the following configuration or higher, as necessary: **CPU** 13th Gen Intel® Core™ i7-13700 30M Cache, up to 5.20 GHz **Graphics** Intel® UHD Graphics **Storage** 1TB M.2 PCIe NVMe SSD **RAM** At least 16GB DDR5 **Monitor** 27" TFT color LCD **OS** Windows 11 Pro **Accessories** Keyboard, Optical Mouse, 2x Ethernet card (10/100/1000 Base-T) and other accessories
3.17.2.	**Type 2 Terminal**
3.17.2.1.	The Type 2 terminals shall have the following configuration or higher, as necessary. **CPU** 13th Gen Intel® Core™ i7-1365U, vPro® (12 MB cache, 10 cores, 12 threads, up to 5.20 GHz Turbo) **Graphics** Intel®Iris®Xe Graphics, i7-1365U vPro Processor,16GB LPDDR5 Memory **RAM** 16 GB, LPDDR5, 4800 MT/s **Display** 14.0" FHD+ (1920x1200) AG, Touch, IPS, 300 nits, **Storage** 1TB PCIe NVMe SSD **Keyboard** Backlit Keyboard (US/International) with Fingerprint Reader **Ports (At least)** 2 USB Type-C Thunderbolt™ 4.0 with Power Delivery & DisplayPort 1.4 1 HDMI 2.0

Clause No.	Particulars of Nepal Telecom's Requirements
	2 USB 3.2 Gen 1 Type-A port, USB 3.2 Gen 1 Type-A port with PowerShare **Connectivity** Wi-Fi 6 AX1650 (2x2) and Bluetooth 5.0 **Camera** FHD IR Cam supporting Windows Hello **OS** Windows 11 Pro 64-bit English **Battery** Greater than 57WHr **Accessories** USB-C docking station
3.17.3.	The offered system shall include all the necessary hardware and software required to generate the statistics and traffic report.
4.	**Optical distribution frame (ODF)**
4.1.	ODF to be installed in CO exchanges shall be of rack system possessing following characteristics:
4.1.1.	Standard 19-inch installation: fully enclosed rodent proof structure.
4.1.2.	Keyway type.
4.1.3.	Full front operation: capable of installation against wall, side by side or back-to-back.
4.1.4.	Complete cable routing design with fiber bend radius over 40 mm.
4.1.5.	Modular design with easy installation.
4.1.6.	Splice and Distribution Module with capacity of 12 ports with SC/APC adaptors.
4.1.7.	Splice and distribution enclosure shall have a capacity of 72 ports with space for 6 splices and distribution module. ODF shall have a modular design for 19 inches standard frame. However, splice and distribution enclosure shall have space for 4 splice and distribution module in case of 48 Port ODF.
4.1.8.	Optimal arrangement for patch cords with fiber storage units.
4.1.9.	Reliable holding, protection and grounding of optical cables.
4.1.10.	Suitable for ribbon and non- ribbon fibers.

Clause No.	Particulars of Nepal Telecom's Requirements
4.1.11.	Shall be able to accommodate value added modular units such as fiber splitters, WDM etc.
4.1.12.	The size of rack shall be as per the port capacity requirement as shown in schedule of requirement.
4.1.13.	The Supplier shall supply necessary accessories for fixing the ODF.
4.1.14.	All the accessories and materials required for the installation of ODF shall form a set and shall be packaged in one single pack.
4.2.	The supplier shall provide the technical details of the offered products.
4.3.	All the accessories and materials required for the installation of OTB shall form a set and shall be packaged in one single pack.

****End of 2: DETAIL TECHNICAL SPECIFICATIONS****

Inspection and Test

The following inspections and tests shall be performed:

1 Factory Inspection:

Refer to Clause No. GCC 25.2 of Section VII: SCC and Clause No. 7 of Section V: Chapter 1: General Technical Specification.

2 Acceptance Test:

Refer to Clause No. 11 of Section V: Chapter 1: General Technical Specification for Acceptance Test (AT) detail.

Issuance of Certificates:

1. Issuance of Delivery Completion Certificate (DCC)

Nepal Telecom shall issue Delivery Completion Certificate (DCC) of Part B sites (including spares) within thirty (30) days from the date of successful delivery of goods and verification by Nepal Telecom in accordance with Clause No. 9.4 of Section V, General Technical Requirement. The DCC of Lot I shall be issued after issuance of PAC of Part A.

In case of non-delivery of the minor goods (hardware and software which do not affect in commercialization of the system), Nepal Telecom shall issue the DCC mentioning list of the minor non-delivered equipment and payment shall be made by deducting the price of the minor non-delivered goods. Rules of Liquidated Damages shall be imposed for delayed goods in accordance with Clause No. 26.1 of Section VII: Special Conditions of Contract.

However, the Supplier shall deliver all the minor goods before the issuance of PAC/AC/FAC. Separate DCC shall be issued for the delayed goods.

Issuance of DCC will not prejudice any claim with respect to any missing item or defect or malfunction, which may subsequently develop during the course of project.

2. Issuance of Provisional Acceptance Certificate (PAC)

After the successful installation and testing, Supplier shall invite Nepal Telecom for PAT of respective phase. Nepal Telecom shall form the PAT team and commence the PAT within 15 days from the date of invitation for PAT. Nepal Telecom with the support of Supplier shall complete PAT and submit the PAT report within 30 days from the date of formation of team. After successful PAT, Nepal Telecom and Supplier jointly submit the PAT report mentioning all the pending deficiencies (if exists). PAT also includes the physical verification of the goods as per Schedule of Supply of tender document.

If the deficiencies that do not affect the immediate commercialization of the System are observed during the PAT, those deficiencies shall be mentioned in the PAT report and shall be corrected within Stabilization Period.

However, the Supplier shall deliver all the minor goods before issuance of FAC. Payment of such delayed minor goods shall be made along with the payment to be made against the FAC. After the successful completion of PAT Nepal Telecom shall issue PAC within 30 days.

3. Acceptance Certificate

Nepal Telecom shall issue Acceptance Certificate (AC) of equipment under part B sites (including spares) of Lot-II within six (6) months from the date of issuance of Delivery Completion Certificate (DCC) of Part B Lot-II.

4. Final Acceptance Certificate (FAC)

Stabilization period

After the issuance of the provisional acceptance certificate (PAC), the stabilization period of ninety (90) days shall commence.

Nepal Telecom shall issue the Final Acceptance Certificate (FAC) within 30 days from date of successful completion of Stabilization period and issuance of DCC of Part B of Lot I. FAC shall be issued for goods (Part A and Part B) of Lot I.

5. Warranty Completion Certificate (WCC)

Nepal Telecom shall issue the Warranty Completion Certificate (WCC) within thirty (30) days after the successful completion of warranty as specified in general technical specification of this section.

6. Issuance of Extended Warranty Completion Certificate (EWCC)

After the issuance of WCC, three (3) years of Maintenance Service for complete goods and services shall commence. The bidder shall quote for the Maintenance Service for three years on an annual basis after completion of Warranty services. Nepal Telecom shall issue Purchase order for extended warranty service on annual basis. Nepal Telecom shall issue the Extended Warranty Completion Certificate (EWCC) within thirty (30) days after the successful completion of Extended Warranty Service specified in section VI, GCC and Section VII, SCC

7. Training Completion Certificate and Factory Inspection Certificate

Training Completion Certificate shall be issued after the successful completion of respective service.
Factory Inspection Certificate shall be issued after the successful completion of respective service.

End of Section V: Schedule of Supply

Section VI. General Conditions of Contract

The GCC contains standard provisions that have been designed to remain unchanged and **to be used without modifying their text**. The GCC clearly identifies the provisions that may normally need to be specified for a particular bidding process and require that such specification be introduced **through the SCC**.

The GCC are a Contract document and, therefore, are a part of the Contract.

Section VI. General Conditions of Contract

1. Definitions	1.1. The following words and expressions shall have the meanings hereby assigned to them: (a) "Contract" means the Agreement entered into between the Purchaser and the Supplier, together with the Contract Documents referred to therein, including all attachments, appendices, and all documents incorporated by reference therein. (b) "Contract Documents" means the documents listed in the Agreement, including any amendments thereto. (c) "Contract Price" means the price payable to the Supplier as specified in the Agreement, subject to such additions and adjustments thereto or deductions there from, as may be made pursuant to the Contract. (d) "Day" means calendar day. (e) "Delivery" means the transfer of the Goods from the Supplier to the Purchaser in accordance with the terms and conditions set forth in the Contract. (f) "Completion" means the fulfillment of the Related Services by the Supplier in accordance with the terms and conditions set forth in the Contract. (g) "GCC" means the General Conditions of Contract. (h) "Goods" means all of the commodities, raw material, machinery and equipment, and/or other materials that the Supplier is required to supply to the Purchaser under the Contract. (i) "Purchaser's Country" is the country specified in the Special Conditions of Contract (SCC). (j) "Purchaser" means the entity purchasing the Goods and Related Services, as specified in the SCC. (k) "Related Services" means the services incidental to the supply of the goods, such as insurance, installation, training and initial maintenance and other similar obligations of the Supplier under the Contract. (l) "SCC" means the Special Conditions of Contract. (m) "Subcontractor" means any natural person, private or government entity, or a combination of the above, including its legal successors or permitted assigns, to whom any part of the Goods to be supplied or execution of any part of the Related Services is subcontracted by the Supplier. (n) "Supplier" means the natural person, private or government entity, or a combination of the above, whose bid to perform the Contract has been accepted by the Purchaser

	and is named as such in the Agreement, and includes the legal successors or permitted assigns of the Supplier. (o) "GoN" means the Government of Nepal. (p) "The Site," where applicable, means the place named in the SCC.
2. Contract Documents	2.1 Subject to the order of precedence set forth in the Agreement, all documents forming the Contract (and all parts thereof) are intended to be correlative, complementary, and mutually explanatory.
3. Fraud and Corruption	3.1 If the Purchaser determines that the Supplier has engaged in corrupt, fraudulent, collusive, coercive or obstructive practices, in competing for or in executing the Contract, then the Purchaser may, after giving 14 days' notice to the Supplier, terminate the Supplier's employment under the Contract and the provisions of GCC Clause 34.1 shall apply. For the purposes of this Sub-Clause: (i) "corrupt practice" is the offering, giving, receiving or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party; (ii) "fraudulent practice" is any act or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation; (iii) "collusive practice" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party; (iv) "coercive practice" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party; (v) "obstructive practice" is (aa) deliberately destroying, falsifying, altering or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a GoN/DP investigation into allegations of a corrupt, fraudulent, coercive or collusive practice; and/or threatening, harassing or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation; or (bb) acts intended to materially impede the exercise of the GoN/DP's inspection and audit rights provided for under ITB Clause 3.5 and GCC Clause 25.

	3.2 Without prejudice to any other rights of the Purchaser under this Contract, on the recommendation of the Purchaser, Public Procurement Monitoring Office may **blacklist** a Bidder/Supplier for its conduct for a period of one (1) to three (3) years on the following grounds and seriousness of the act committed by the bidder: (a) if it is established that the Supplier committed acts specified in ITB 3.2, (b) if it is established later that the Bidder has committed substantial defect in implementation of the contract or has not substantially fulfilled its obligations under the contract or the completed work is not of the specified quality as per the contract. 3.3 Incase of DP funded bid, DP: (a) will cancel the portion of the loan allocated to a contract if it determines at any time that representatives of the Borrower or of a beneficiary of the loan engaged in corrupt, fraudulent, collusive or coercive practices during the procurement or the execution of that contract, without the Borrower having taken timely and appropriate action satisfactory to the Bank to remedy the situation; (b) will sanction a firm or individual, including declaring them ineligible, either indefinitely or for a stated period of time, to be awarded a Bank-financed contract if it at any time determines that they have, directly or through an agent, engaged, in corrupt, fraudulent, collusive or coercive practices in competing for, or in executing, a Bank-financed contract; and (c) will have the right to require that Suppliers to permit the Bank to inspect their accounts and records and other documents relating to the bid submission and contract performance and to have them audited by auditors appointed by the Bank.
4. Interpretation	4.1 If the context so requires it, singular means plural and vice versa. 4.2 Incoterms (a) The meaning of any trade term and the rights and obligations of parties thereunder shall be as prescribed by Incoterms. (b) EXW, CIF, CIP, and other similar terms, shall be governed by the rules prescribed in the current edition of Incoterms, published by the International Chamber of Commerce at the date of the Invitation for Bids or **as specified in the SCC**.

	4.3 Entire Agreement The Contract constitutes the entire agreement between the Purchaser and the Supplier and supersedes all communications, negotiations and agreements (whether written or oral) of parties with respect thereto made prior to the date of Contract. 4.4 Amendment No amendment or other variation of the Contract shall be valid unless it is in writing, is dated, expressly refers to the Contract, and is signed by a duly authorized representative of each party thereto. 4.5 Nonwaiver (a) Subject to GCC Sub-Clause 4.5(b) below, no relaxation, forbearance, delay, or indulgence by either party in enforcing any of the terms and conditions of the Contract or the granting of time by either party to the other shall prejudice, affect, or restrict the rights of that party under the Contract, neither shall any waiver by either party of any breach of Contract operate as waiver of any subsequent or continuing breach of Contract. (b) Any waiver of a party's rights, powers, or remedies under the Contract must be in writing, dated, and signed by an authorized representative of the party granting such waiver, and must specify the right and the extent to which it is being waived. 4.6 Severability If any provision or condition of the Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of any other provisions and conditions of the Contract.
5. Language	5.1 The Contract as well as all correspondence and documents relating to the Contract exchanged by the Supplier and the Purchaser, shall be written in the language **specified in the SCC**. Supporting documents and printed literature that are part of the Contract may be in another language provided they are accompanied by an accurate translation of the relevant passages in the language specified in the SCC, in which case, for purposes of interpretation of the Contract, this translation shall govern. 5.2 The Supplier shall bear all costs of translation to the governing language and all risks of the accuracy of such translation.
6. Joint Venture, Consortium or Association	6.1 If the Supplier is a joint venture, consortium, or association, all of the parties shall be jointly and severally liable to the Purchaser for the fulfillment of the provisions of the Contract and shall designate one party to act as a leader with authority

	to bind the joint venture, consortium, or association. A bidder can submit only one bid either as a partner of the joint venture or individually. The composition or the constitution of the joint venture, consortium, or association shall not be altered without the prior consent of the Purchaser. 6.2 The contractor shall not handover the responsibility of the contract to any one member or some members of Joint Venture or any other parties, not involved in the contract.
7. Notices	7.1 Any Notice given by one party to the other pursuant to the Contract shall be in writing to the address **specified in the SCC**. The term "in writing" means communicated in written form with proof of receipt. 7.2 A Notice shall be effective when delivered or on the Notice's effective date, whichever is later.
8. Governing Law	8.1 The Contract shall be governed by and interpreted in accordance with the laws of Nepal.
9. Settlement of Disputes	9.1 The Purchaser and the Supplier shall make every effort to settle amicably by direct negotiation any disagreement or dispute arising between them under or in connection with the Contract. 9.2 Any dispute between the Parties as to matters arising pursuant to this Contract which cannot be settled amicably within thirty (30) days after receipt by one Party of the other Party's request for such amicable settlement may be referred to Arbitration within 30 days after the expiration of amicable settlement period as specified in SCC.
10. Scope of Supply	10.1 Subject to the SCC, the Goods and Related Services to be supplied shall be as specified in Section V, Schedule of Requirements.
	10.2 Unless otherwise stipulated in the Contract, the Scope of Supply shall include all such items not specifically mentioned in the Contract but that can be reasonably inferred from the Contract as being required for attaining Delivery and Completion of the Goods and Related Services as if such items were expressly mentioned in the Contract.
11. Delivery	11.1 Subject to GCC Sub-Clause 32.1, the Delivery of the Goods and Completion of the Related Services shall be in accordance with the Delivery and Completion Schedule specified in the Section V, Schedule of Requirements. The details of documents to be furnished by the Supplier are **specified in the SCC**.
12. Supplier's Responsibilities	12.1 The Supplier shall supply all the Goods and Related Services included in the Scope of Supply in accordance with GCC

	Clause 10, and the Delivery and Completion Schedule, as per GCC Clause 11.
13. Purchaser's Responsibilities	13.1 Whenever the supply of Goods and Related Services requires that the Supplier obtain permits, approvals, and import and other licenses from public authorities in Nepal, the Purchaser shall, if so required by the Supplier, make its best effort to assist the Supplier in complying with such requirements in a timely and expeditious manner. 13.2 The Purchaser shall pay all costs involved in the performance of its responsibilities, in accordance with GCC Sub-Clause 13.1.
14. Contract Price	14.1 The Contract Price shall be as specified in the Agreement subject to any additions and adjustments thereto, or deductions there from, as may be made pursuant to the Contract. 14.2 Prices charged by the Supplier for the Goods delivered and the Related Services performed under the Contract shall not vary from the prices quoted by the Supplier in its bid, with the exception of any price adjustments authorized in the SCC.
15. Terms of Payment	15.1 The Contract Price shall be paid **as specified in SCC**. 15.2 The Supplier's request for payment shall be made to the Purchaser in writing, accompanied by invoices describing, as appropriate, the Goods delivered and Related Services performed, and by the documents submitted pursuant to GCC Clause 11.1 and upon fulfillment of all the obligations stipulated in the Contract. 15.3 Unless otherwise specified in the SCC, the Purchaser shall retain from each payment due to the Contractor the proportion stated in the SCC. Half of the total amount retained shall be repaid to the Supplier not later than thirty (30) days following the date of completion of the Supplier's performance obligations under the Contract, including any warranty obligations and half when the supplier has submitted the evidence of submission of tax return to the concerned Internal Revenue Office. 15.4 Payments shall be made promptly by the Purchaser, no later than thirty (30) days after submission of an invoice or request for payment by the Supplier, and the Purchaser has accepted it. 15.5 The currency or currencies in which payments shall be made to the Supplier under this Contract shall be as specified in the SCC. 15.6 In the event that the Purchaser fails to pay the Supplier any payment by its due date or within the period set forth in the

	GCC 15.4, the Purchaser shall pay to the Supplier interest on the amount of such delayed payment at the rate shown in the SCC, for the period of delay until due payment has been made.
16. Taxes and Duties	16.1 For goods supplied from outside Nepal, the Supplier shall be entirely responsible for all taxes, stamp duties, license fees, and other such levies imposed outside Nepal. However, Tax deduction at source shall be applied as per taxation laws of Nepal. 16.2 For goods supplied from within the Nepal, the Supplier shall be entirely responsible for all taxes, duties, license fees, etc., incurred until delivery of the contracted Goods to the Purchaser. Tax deduction at source shall be applied as per taxation law of Nepal. 16.3 If any tax exemptions, reductions, allowances or privileges may be available to the Supplier in Nepal, the Purchaser shall use its best efforts to enable the Supplier to benefit from any such tax savings to the maximum allowable extent.
17. Performance Security	17.1 The Supplier shall, within fifteen (15) days of the receipt of notification of Contract award, provide a Performance Security for the due performance of the Contract in the amounts and currencies specified in the SCC. 17.2 The proceeds of the Performance Security shall be payable to the Purchaser as compensation for any loss resulting from the Supplier's failure to complete its obligations under the Contract. 17.3 The Performance Security shall be denominated in the currency of the Contract, or in a freely convertible currency acceptable to the Purchaser, and shall be in one of the forms stipulated by the Purchaser in the SCC, or in another form acceptable to the Purchaser. 17.4 The Performance Security shall be discharged by the Purchaser and returned to the Supplier not later than thirty (30) days following the date of completion of the Supplier's performance obligations under the Contract, including any warranty obligations.
18. Copyright	18.1 The copyright in all drawings, documents, and other materials containing data and information furnished to the Purchaser by the Supplier herein shall remain vested in the Supplier, or, if they are furnished to the Purchaser directly or through the Supplier by any third party, including suppliers of materials, the copyright in such materials shall remain vested in such third party.

19. Confidential Information	19.1 The Purchaser and the Supplier shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any documents, data, or other information furnished directly or indirectly by the other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following completion or termination of the Contract. Notwithstanding the above, the Supplier may furnish to its Subcontractor such documents, data, and other information it receives from the Purchaser to the extent required for the Subcontractor to perform its work under the Contract, in which event the Supplier shall obtain from such Subcontractor an undertaking of confidentiality similar to that imposed on the Supplier under GCC Clause 19. 19.2 The Purchaser shall not use such documents, data, and other information received from the Supplier for any purposes unrelated to the Contract. Similarly, the Supplier shall not use such documents, data, and other information received from the Purchaser for any purpose other than the design, procurement, or other work and services required for the performance of the Contract. 19.3 The obligation of a party under GCC Sub-Clauses 19.1 and 19.2 above, however, shall not apply to information that: (a) the Purchaser or Supplier need to share with the Donor for Donor funded project or other institutions participating in the financing of the Contract; (b) now or hereafter enters the public domain through no fault of that party; (c) can be proven to have been possessed by that party at the time of disclosure and which was not previously obtained, directly or indirectly, from the other party; or (d) otherwise lawfully becomes available to that party from a third party that has no obligation of confidentiality. 19.4 The above provisions of GCC Clause 19 shall not in any way modify any undertaking of confidentiality given by either of the parties hereto prior to the date of the Contract in respect of the Supply or any part thereof. 19.5 The provisions of GCC Clause 19 shall survive completion or termination, for whatever reason, of the Contract.
20. Subcontracting	20.1 The Supplier shall notify the Purchaser in writing of all subcontracts awarded under the Contract if not already specified in the Bid. Subcontracting shall in no event relieve the Supplier from any of its obligations, duties, responsibilities, or liability under the Contract.

	20.2 Subcontracts shall comply with the provisions of GCC Clauses 3.
21. Specifications and Standards	21.1 Technical Specifications and Drawings (a) The Supplier shall ensure that the Goods and Related Services comply with the technical specifications and other provisions of the Contract. (b) The Supplier shall be entitled to disclaim responsibility for any design, data, drawing, specification or other document, or any modification thereof provided or designed by or on behalf of the Purchaser, by giving a notice of such disclaimer to the Purchaser. (c) The Goods and Related Services supplied under this Contract shall conform to the standards mentioned in Section V, Schedule of Requirements and, when no applicable standard is mentioned, the standard shall be equivalent or superior to the official standards whose application is appropriate to the country of origin of the Goods. 21.2 Wherever references are made in the Contract to codes and standards in accordance with which it shall be executed, the edition or the revised version of such codes and standards shall be those specified in the Section V, Schedule of Requirements. During Contract execution, any changes in any such codes and standards shall be applied only after approval by the Purchaser and shall be treated in accordance with GCC Clause 32.
22. Packing and Documents	22.1 The Supplier shall provide such packing of the Goods as is required to prevent their damage or deterioration during transit to their final destination, as indicated in the Contract. During transit, the packing shall be sufficient to withstand, without limitation, rough handling and exposure to extreme temperatures, salt and precipitation, and open storage. Packing case size and weights shall take into consideration, where appropriate, the remoteness of the final destination of the Goods and the absence of heavy handling facilities at all points in transit. 22.2 The packing, marking, and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided for in the Contract, including additional requirements, if any, specified in the SCC, and in any other instructions ordered by the Purchaser.
23. Insurance	23.1 Unless otherwise specified in the SCC, the Goods supplied under the Contract shall be fully insured, in a freely convertible currency from an eligible country, against loss or

	damage incidental to manufacture or acquisition, transportation, storage, and delivery, in accordance with the applicable Incoterms or in the manner specified in the SCC.
24. Transportation	24.1 Obligations for transportation of the Goods shall be in accordance with the Incoterms specified in Sections V, Schedule of Requirements.
25. Inspections and Tests	25.1 The Supplier shall at its own expense and at no cost to the Purchaser carry out all such tests and/or inspections of the Goods and Related Services as are specified in Sections V, Schedule of Requirements. 25.2 The inspections and tests may be conducted on the premises of the Supplier or its Subcontractor, at point of delivery, and/or at the final destination of the Goods, or in another place in Nepal as specified in the SCC. Subject to GCC Sub-Clause 25.3, if conducted on the premises of the Supplier or its Subcontractor, all reasonable facilities and assistance, including access to drawings and production data, shall be furnished to the inspectors at no charge to the Purchaser. 25.3 The Purchaser or its designated representative shall be entitled to attend the tests and/or inspections referred to in GCC Sub-Clause 25.2, provided that the Purchaser bear all of its own costs and expenses incurred in connection with such attendance including, but not limited to, all traveling and board and lodging expenses. 25.4 Whenever the Supplier is ready to carry out any such test and inspection, it shall give a reasonable advance notice, including the place and time, to the Purchaser. The Supplier shall obtain from any relevant third party or manufacturer any necessary permission or consent to enable the Purchaser or its designated representative to attend the test and/or inspection. 25.5 The Purchaser may require the Supplier to carry out any test and/or inspection not required by the Contract but deemed necessary to verify that the characteristics and performance of the Goods comply with the technical specifications, codes and standards under the Contract, provided that the Supplier's reasonable costs and expenses incurred in the carrying out of such test and/or inspection shall be added to the Contract Price. Further, if such test and/or inspection impede the progress of manufacturing and/or the Supplier's performance of its other obligations under the Contract, due allowance will be made in respect of the Delivery Dates and Completion Dates and the other obligations so affected. 25.6 The Supplier shall provide the Purchaser with a report of the results of any such test and/or inspection.

	25.7 The Purchaser may reject any Goods or any part thereof that fail to pass any test and/or inspection or do not conform to the specifications. The Supplier shall either rectify or replace such rejected Goods or parts thereof or make alterations necessary to meet the specifications at no cost to the Purchaser, and shall repeat the test and/or inspection, at no cost to the Purchaser, upon giving a notice pursuant to GCC Sub-Clause 25.4. 25.8 The Supplier agrees that neither the execution of a test and/or inspection of the Goods or any part thereof, nor the attendance by the Purchaser or its representative, nor the issue of any report pursuant to GCC Sub-Clause 25.6, shall release the Supplier from any warranties or other obligations under the Contract.
26. Liquidated Damages	26.1 Except as provided under GCC Clause 31, if the Supplier fails to deliver any or all of the Goods or perform the Related Services within the period specified in the Contract, the Purchaser may without prejudice to all its other remedies under the Contract, deduct from the Contract Price, as liquidated damages, a sum equivalent to the percentage specified in the SCC of the Contract Price for each day of delay until actual delivery or performance, up to a maximum deduction of the percentage specified in the SCC. Once the maximum is reached, the Purchaser may terminate the Contract pursuant to GCC Clause 34.
27. Warranty	27.1 The Supplier warrants that all the Goods are new, unused, and of the most recent or current models, and that they incorporate all recent improvements in design and materials, unless provided otherwise in the Contract. 27.2 Subject to GCC Sub-Clause 21.1, the Supplier further warrants that the Goods shall be free from defects arising from any act or omission of the Supplier or arising from design, materials, and workmanship, under normal use in the conditions prevailing in Nepal. 27.3 Unless otherwise specified in the SCC, the warranty shall remain valid for twelve (12) months after the Goods, or any portion thereof as the case may be, have been delivered to and accepted at the final destination indicated in the SCC. 27.4 The Purchaser shall give Notice to the Supplier stating the nature of any such defects together with all available evidence thereof, promptly following the discovery thereof. The Purchaser shall afford all reasonable opportunity for the Supplier to inspect such defects. 27.5 Upon receipt of such Notice, the Supplier shall, within the period specified in the SCC, expeditiously repair or replace

	the defective Goods or parts thereof, at no cost to the Purchaser. 27.6 If having been notified, the Supplier fails to remedy the defect within the period specified in the SCC, the Purchaser may proceed to take within a reasonable period such remedial action as may be necessary, at the Supplier's risk and expense and without prejudice to any other rights which the Purchaser may have against the Supplier under the Contract.
28. Patent Indemnity	28.1 The Supplier shall, subject to the Purchaser's compliance with GCC Sub-Clause 28.2, indemnify and hold harmless the Purchaser and its employees and officers from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Purchaser may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract by reason of: (a) the installation of the Goods by the Supplier or the use of the Goods in the country where the Site is located; and (b) the sale in any country of the products produced by the Goods. Such indemnity shall not cover any use of the Goods or any part thereof other than for the purpose indicated by or to be reasonably inferred from the Contract, neither any infringement resulting from the use of the Goods or any part thereof, or any products produced thereby in association or combination with any other equipment, plant, or materials not supplied by the Supplier, pursuant to the Contract. 28.2 If any proceedings are brought or any claim is made against the Purchaser arising out of the matters referred to in GCC Sub-Clause 28.1, the Purchaser shall promptly give the Supplier a notice thereof, and the Supplier may at its own expense and in the Purchaser's name conduct such proceedings or claim and any negotiations for the settlement of any such proceedings or claim. 28.3 If the Supplier fails to notify the Purchaser within thirty (30) days after receipt of such notice that it intends to conduct any such proceedings or claim, then the Purchaser shall be free to conduct the same on its own behalf. 28.4 The Purchaser shall, at the Supplier's request, afford all available assistance to the Supplier in conducting such

	proceedings or claim, and shall be reimbursed by the Supplier for all reasonable expenses incurred in so doing. 28.5 The Purchaser shall indemnify and hold harmless the Supplier and its employees, officers, and Subcontractors from and against any and all suits, actions or administrative proceedings, claims, demands, losses, damages, costs, and expenses of any nature, including attorney's fees and expenses, which the Supplier may suffer as a result of any infringement or alleged infringement of any patent, utility model, registered design, trademark, copyright, or other intellectual property right registered or otherwise existing at the date of the Contract arising out of or in connection with any design, data, drawing, specification, or other documents or materials provided or designed by or on behalf of the Purchaser.
29. Limitation of Liability	29.1 Except in cases of gross negligence or willful misconduct: (a) neither party shall be liable to the other party for any indirect or consequential loss or damage, loss of use, loss of production, or loss of profits or interest costs, provided that this exclusion shall not apply to any obligation of the Supplier to pay liquidated damages to the Purchaser; and (b) the aggregate liability of the Supplier to the Purchaser, whether under the Contract, in tort, or otherwise, shall not exceed the total Contract Price, provided that this limitation shall not apply to the cost of repairing or replacing defective equipment, or to any obligation of the Supplier to indemnify the Purchaser with respect to patent infringement.
30. Change in Laws and Regulations	30.1 Unless otherwise specified in the Contract, if after the date of the Invitation for Bids, any law, regulation, ordinance, order or bylaw having the force of law is enacted, promulgated, abrogated, or changed in Nepal where the Site is located (which shall be deemed to include any change in interpretation or application by the competent authorities) that subsequently affects the Delivery Date and/or the Contract Price, then such Delivery Date and/or Contract Price shall be correspondingly increased or decreased, to the extent that the Supplier has thereby been affected in the performance of any of its obligations under the Contract. Notwithstanding the foregoing, such additional or reduced cost shall not be separately paid or credited if the same has already been accounted for in the price adjustment provisions where applicable, in accordance with GCC Clause 14.
31. Force Majeure	31.1 The Supplier shall not be liable for forfeiture of its Performance Security, liquidated damages, or termination for

	default if and to the extent that its delay in performance or other failure to perform its obligations under the Contract is the result of an event of Force Majeure. 31.2 For purposes of this Clause, "Force Majeure" means an event or situation beyond the control of the Supplier that is not foreseeable, is unavoidable, and its origin is not due to negligence or lack of care on the part of the Supplier. Such events may include, but not be limited to, acts of the Purchaser in its sovereign capacity, wars or revolutions, fires, floods, epidemics, quarantine restrictions, and freight embargoes. 31.3 If a Force Majeure situation arises, the Supplier shall promptly notify the Purchaser in writing of such condition and the cause thereof. Unless otherwise directed by the Purchaser in writing, the Supplier shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall seek all reasonable alternative means for performance not prevented by the Force Majeure event.
32. Change Orders and Contract Amendments	32.1 The Purchaser may at any time order the Supplier through Notice in accordance GCC Clause 7, to make changes within the general scope of the Contract in any one or more of the following: (a) drawings, designs, or specifications, where Goods to be furnished under the Contract are to be specifically manufactured for the Purchaser; (b) the method of shipment or packing; (c) the place of delivery; and (d) the Related Services to be provided by the Supplier. 32.2 If any such change causes an increase or decrease in the cost of, or the time required for, the Supplier's performance of any provisions under the Contract, an equitable adjustment shall be made in the Contract Price or in the Delivery and Completion Schedule, or both, and the Contract shall accordingly be amended. Any claims by the Supplier for adjustment under this Clause must be asserted within thirty (30) days from the date of the Supplier's receipt of the Purchaser's change order. 32.3 Prices to be charged by the Supplier for any Related Services that might be needed but which were not included in the Contract shall be agreed upon in advance by the parties and shall not exceed the prevailing rates charged to other parties by the Supplier for similar services.
33. Extensions of Time	33.1 If at any time during performance of the Contract, the Supplier or its Subcontractors should encounter conditions

	impeding timely delivery of the Goods or completion of Related Services pursuant to GCC Clause 11, the Supplier shall promptly, and at least twenty one (21) days before the expiry of procurement contract, notify the Purchaser in writing of the delay, its likely duration, and its cause. As soon as practicable after receipt of the Supplier's notice, the Purchaser shall evaluate the situation and may at its discretion extend the Supplier's time for performance, in which case the extension shall be ratified by the parties by amendment of the Contract. 33.2 Except in case of Force Majeure, as provided under GCC Clause 31, a delay by the Supplier in the performance of its Delivery and Completion obligations shall render the Supplier liable to the imposition of liquidated damages pursuant to GCC Clause 26, unless an extension of time is agreed upon, pursuant to GCC Sub-Clause 34.1.
34. Termination	34.1 Termination for Default (a) The Purchaser, without prejudice to any other remedy for breach of Contract, by Notice of default sent to the Supplier, may terminate the Contract in whole or in part: (i) if the Supplier fails to deliver any or all of the Goods within the period specified in the Contract, or within any extension thereof granted by the Purchaser pursuant to GCC Clause 33; (ii) if the Supplier fails to perform any other obligation under the Contract. (iii) The supplier uses the advance payment for matters other than the contarctual obligations. (iv) The purchaser may terminate the contract at any time in the following condition. (a) does not commence the work as per the contract, (b) abandons the contract with out completing, (c) fails to achieve progress as per the contract. (b) In the event the Purchaser terminates the Contract in whole or in part, pursuant to GCC Clause 34.1(a), the Purchaser may procure, upon such terms and in such manner as it deems appropriate, Goods or Related Services similar to those undelivered or not performed, and the Supplier shall be liable to pay to the Purchaser for any whole costs for such similar Goods or Related Services. However, the Supplier shall continue performance of the Contract to the extent not terminated.

	(c) if the Supplier, in the judgment of the Purchaser has engaged in corrupt, fraudulent, collusive, coercive or obstructive practices, as defined in GCC Clause 3, in competing for or in executing the Contract 34.2 Termination for Insolvency The Purchaser may at any time terminate the Contract by giving Notice to the Supplier if the Supplier becomes bankrupt or otherwise insolvent. In such event, termination will be without compensation to the Supplier, provided that such termination will not prejudice or affect any right of action or remedy that has accrued or will accrue thereafter to the Purchaser. 34.3 Termination for Convenience (a) The Purchaser, by written Notice sent to the Supplier, may terminate the Contract, in whole or in part, at any time for its convenience. The Notice of termination shall specify that termination is for the Purchaser's convenience, the extent to which performance of the Supplier under the Contract is terminated, and the date upon which such termination becomes effective. (b) The Goods that are complete and ready for shipment within seven (7) days after the Supplier's receipt of the Notice of termination shall be accepted by the Purchaser at the Contract terms and prices. For the remaining Goods, the Purchaser may elect: (i) To have any portion completed and delivered at the Contract terms and prices; and/or (ii) To cancel the remainder and pay to the Supplier an agreed amount for partially completed Goods and Related Services and for materials and parts previously procured by the Supplier.
35. Assignment	35.1 Neither the Purchaser nor the Supplier shall assign, in whole or in part, their obligations under this Contract, except with prior written consent of the other party.

Section VII. Special Conditions of Contract

The following Special Conditions of Contract (SCC) shall supplement the General Conditions of Contract (GCC). Whenever there is a conflict, the provisions herein shall prevail over those in the GCC.

GCC 1.1(i)	The Purchaser's country is: **Nepal**
GCC 1.1(j)	The Purchaser is: Nepal Doorsanchar Company Limited (Nepal Telecom, NT)
GCC 1.1 (p)	The Site is: Nepal Doorsanchar Company Limited, WCSD, Chhauni Kathmandu
GCC 4.2 (b)	The version of Incoterms shall be: ***2020***
GCC 5.1	The language shall be: **English**
GCC 7.1	The contact address for further information is as follows: Name: Nepal Telecom, Central Procurement Department, Office of CTO, Central Office Address: Bhadrakali, Kathmandu, Nepal Tel. No. : +977 1 4210309 e-mail Address: procurement@ntc.net.np
GCC 9.2	In case of arbitration, the arbitration shall be conducted in accordance with the arbitration procedures in accordance with law of Nepal at Kathmandu.
GCC 10.1	The Scope of Supply shall be defined in: ***Section V, Schedule of Requirements***
GCC 11.1	**A. Details of shipping and documents to be furnished by the Supplier shall be:** **a. "For Goods supplied from abroad as per Incoterms CIP"** Upon shipment, the Supplier shall notify the Nepal Telecom and the Insurance company by fax and email the full details of the shipment including contract number, description of goods, quantity, the airway bill/ bill of lading, or truck receipt number and date, port of loading, date of shipment, port of discharge, L/C number etc. The Supplier shall send by courier service a copy of following documents to the Nepal Telecom with a copy to the Insurance company: i. Five (5) copies of the ***Supplier's invoices*** showing goods description, quantity, unit price, total amount and L/C number. ii. Original and four (4) copies of the ***negotiable clean airway bill, bill of lading, or truck receipt*** marked freight prepaid and four (4) copies of ***non-negotiable airway bill/ bill of lading or truck receipt*** with LC number. iii. Five (5) copies of ***packing list*** identifying contents of each package; iv. ***Insurance Certificate***; v. Manufacture's /supplier's ***guarantee certificate***; vi. ***Certificate of origin*** issued by chamber of commerce

	vii. ***Manufacturer's Factory Inspection*** report indicating quantity, batch no. etc. viii. ***Factory Inspection certificate issued by Nepal Telecom*** as per the Inspection Report submitted by Nepal Telecom Inspector. ix. ***Pre-Shipment Inspection Certificate and Pre-Shipment Technical Verification Certificate*** certified/ issued by the recognized International Surveyor. **b. For Goods from within the Purchaser's country. as per Incoterm EXW:** Upon delivery of the Goods to the transporter, the Supplier shall **notify** the Purchaser and send the following documents to the Purchaser: **i.** 4 copies of the Supplier's invoice showing the description of the Goods, quantity, unit price, and total amount; **ii.** Delivery note, airway, railway receipt, or truck receipt; **iii.** Manufacturer's or Supplier's warranty certificate; **iv.** Inspection certificate issued by the nominated inspection agency, and the Supplier's factory inspection report; **v.** Certificate of Origin. A set of above-mentioned non-negotiable documents shall be received by Nepal Telecom within seven (7) days from the date of dispatch of goods and if not received, the supplier shall be responsible for any consequential expenses and effects.
GCC 14.2	The prices charged for the Goods delivered and the Related Services to be performed shall be fixed for the duration of the contract.
GCC 15.1	The terms of payment to be made to the Supplier under the contract shall be as follows: 100% Payment of the foreign currency and Local Currency component for the Goods and Services shall be made through Irrevocable Letter of Credit (L/C) opened in favour of Supplier. All payment under this contract shall be made only after deduction of withholding tax (TDS – Tax Deduction at Source) as per the Income tax law of Nepal. **<u>Opening of L/C</u>** Nepal Telecom shall open irrevocable letter of credits (L/C) for the goods and service (excluding AMS). First Letter of credit of goods shall be opened and later on the amount of services shall be added by the amending the original L/C. Supplier shall submit error free Pro-Forma Invoice within 7 days from the date of signing the Contract for Lot-I and within 7 days from the issuance of PO for Lot-II. Nepal Telecom shall open L/C within 15 days from the date of receipt of the error free Pro-Forma invoice from supplier. The name and other details of the recognized international surveyor shall be included in Pro-Forma Invoice.

	Opening of L/C For Extended Warranty Service The supplier shall submit an error free Pro-Forma invoice for EWS before the expiry of warranty period. Nepal Telecom shall open new L/C or amend the existing L/C on annual basis within 15 days. Delay in submission of the error free pro-forma invoice may result in delay in opening of letter of credit which ultimately may delay the implementation of the system and shall attract liquidated damage. The supplier shall provide separate pro-forma and commercial invoices for the goods and services. The breakdown costs of the freight and insurance along with the costs of goods to be delivered shall be clearly mentioned in the pro-forma and commercial invoice.
GCC 15.1	***Payment of Goods(foreign currency)*** Payment for the goods shall be made against the submission of required certificates and documents along with the commercial invoice. The Payment shall be made as follows: **A. For Part-A of Lot-I** **Advance Payment:** **Ten percent (10%)** of contract price of Goods under respective lot shall be paid through Letter of Credit against submission of Advance Payment Guarantee (APG) as specified in Section VIII for the equivalent amount by the Supplier to the NEPAL TELECOM within 30 days from the receipt date of Advance Payment Guarantee. The initial validity of such bank guarantee shall be at least twelve (12) **months** from its issuance date. In case of delay in delivery of the complete hardware, the validity of the guarantee shall be extended accordingly. The Advance Payment Guarantee shall be released only after the issuance of PAC. ***Supplier not wishing to receive the advance payment may receive the amount of Advance Payment along with the payment to be made against the PAC/AC or FAC. In such a case Supplier shall formally request Nepal Telecom in writing.*** **On the issuance of Provisional Acceptance Certificate (PAC):** **Seventy percent (70%)** payment of the price of all goods (Lot I Part A) shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the issuance date of the **Provisional Acceptance Certificate (PAC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier. ***Liquidated damages, short fall of goods and any other charges payable to the Nepal Telecom shall be deducted at the time of PAC.*** **On the issuance of Final Acceptance Certificate (FAC)** **Fifteen percent (15%)** payment of the price of all goods (Lot I :Part A and Part B) shall be made through irrevocable letter of credit (L/C) within thirty (30) days

from the issuance date of the **Final Acceptance Certificate (FAC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

On the issuance of Warranty Completion Certificate (WCC)
Remaining **Five percent (5%)** payment of the price of the goods under respective lot shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the issuance date of the **Warranty Completion Certificate (WCC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

Payment Summary Goods For Part-A (Foreign Currency)

Advance	PAC	FAC	WCC
10%	70%	15%	5%

B. For Part-B of Lot-I

Advance Payment:
Ten percent (10%) of contract price of Goods under respective lot shall be paid through Letter of Credit against submission of Advance Payment Guarantee (APG) as specified in Section VIII for the equivalent amount by the Supplier to the NEPAL TELECOM within 30 days from the receipt date of Advance Payment Guarantee. Initial validity of such bank guarantee shall be at least twelve (12) **months** from its issuance date. In case of delay in delivery of the complete hardware, the validity of the guarantee shall be extended accordingly. The Advance Payment Guarantee shall be released after the issuance of Final AC.

Supplier not wishing to receive the advance payment may receive the amount of Advance Payment along with the payment to be made against the PAC (for Part A)/DCC(for Part B) or FAC. In such a case Supplier shall formally request Nepal Telecom in writing.

On the issuance of Delivery Completion Certificate (DCC):
Seventy percent (70%) payment of the price of the goods under respective lot shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the date issuance of the **Delivery Completion Certificate (DCC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

Liquidated damages, short fall of goods and any other charges payable to the Nepal Telecom shall be deducted at the time of DCC payment.

On the issuance of Final Acceptance Certificate (FAC)
Fifteen percent (15%) payment of the price of the goods under lot I shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the date issuance of the **Acceptance Certificate (AC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

On the issuance of Warranty Completion Certificate (WCC)
Remaining **Five percent (5%)** payment of the price of the goods under respective lot shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the date issuance of the **Warranty Completion Certificate (WCC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

Payment Summary Goods For Part-B for Lot I

Advance	DCC	FAC	WCC
10%	70%	15%	5%

For Lot I (both Part A and Part B) one FAC shall be issued.

All the payment under this contract shall be made only after deduction of withholding tax amount (TDS- Tax deduction at Source) as per the income tax law of Nepal

C. For Part-B of Lot-II

Advance Payment:
Ten percent (10%) of contract price of Goods under respective lot shall be paid through Letter of Credit against submission of Advance Payment Guarantee (APG) as specified in Section VIII for the equivalent amount by the Supplier to the NEPAL TELECOM within 30 days from the receipt date of Advance Payment Guarantee. Initial validity of such bank guarantee shall be at least twelve (12) **months** from its issuance date. In case of delay in delivery of the complete hardware, the validity of the guarantee shall be extended accordingly. The Advance Payment Guarantee shall be released after the issuance of Final AC.

Supplier not wishing to receive the advance payment may receive the amount of Advance Payment along with the payment to be made against the DCC or AC. In such a case Supplier shall formally request Nepal Telecom in writing.

On the issuance of Delivery Completion Certificate (DCC):
Seventy percent (70%) payment of the price of the goods under respective lot shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the date issuance of the **Delivery Completion Certificate (DCC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

Liquidated damages, short fall of goods and any other charges payable to the Nepal Telecom shall be deducted at the time of DCC payment.

On the issuance of Acceptance Certificate (AC)

Fifteen percent (15%) payment of the price of the goods under respective lot shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the date issuance of the **Acceptance Certificate (AC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

On the issuance of Warranty Completion Certificate (WCC)
Remaining **Five percent (5%)** payment of the price of the goods under respective lot shall be made through irrevocable letter of credit (L/C) within thirty (30) days from the date issuance of the **Warranty Completion Certificate (WCC)** by the **Nepal Telecom** and submission of the claim to release the payment by Supplier.

Payment Summary Goods For Part-B for Lot II

Advance	DCC	AC	WCC
10%	70%	15%	5%

All the payment under this contract shall be made only after deduction of withholding tax amount (TDS- Tax deduction at Source) as per the income tax law of Nepal.

GCC 15.1

Payment of Services

Factory Inspection (In Plant Test)
Hundred Percentage (100%) payment of the factory Inspection of respective lot shall be made through irrevocable L/C upon claim along with invoice and Factory inspection certificate issued by Nepal Telecom presented by the Supplier after the successful completion of the factory inspection. Nepal Telecom will certify such claim within thirty (30) days of submission.

Payment of Training
Hundred Percent (100%) payment of the training of respective lot shall be made through irrevocable L/C upon claim along with invoice and Training Completion Certificate issued by Nepal Telecom. Nepal Telecom will certify such claim within thirty (30) days of submission.

Payment of Senior Management Visit
Hundred Percent (100%) payment of the Senior Management Visit of respective lot shall be made through irrevocable L/C upon claim along with invoice from the supplier and approval by Nepal Telecom. Nepal Telecom will certify such claim within thirty (30) days of submission.

Installation, Testing and commissioning service for Part-A Sites
Hundred Percentage (100%) payments for the installation, testing and commissioning service of respective lot shall be made through L/C after the issuance of the PAC for respective Lot.

	<u>3rd Party Service Integration service</u> Hundred Percentage (100%) payments for the 3rd Party Service Integration shall be made through L/C after the issuance of the PAC for respective Integration Services. **<u>Payment for Extended Warranty Services (EWS)</u>** Hundred Percentage (100%) payment of EWS shall be made through L/C on half yearly basis upon submission of claims and invoices to Nepal Telecom on certification by Nepal Telecom's Project Manager of satisfactory discharge of services as per Section V "Technical Specification". ***All the payment under this contract shall be made only after deduction of withholding tax amount (TDS- Tax deduction at Source) as per the income tax law of Nepal.***
GCC 15.1	**<u>Payment for Local Currency Portion (if applicable)</u>** The cost of the goods with origin Nepal including inland transportation cost shall be inclusive of all taxes and duties such as VAT, Customs Duties, and Security Tax etc. applicable in Nepal. The Bidder shall submit commercial invoices with the amount inclusive of VAT. **i. Payment of Inland Transportation service from Customs Entry Point to Final Destination:** Hundred percent (100%) Payment for local currency incurred in inland transportation in Nepal of respective lot & part shall be made through A/C Payee Cheque to the Supplier within Thirty (30) days upon a claim: i. after the issuance of PAC for Part-A. ii. after the issuance of DCC for Part-B. ii. **Payment of the goods and services with country-of-origin Nepal:** Payment for the Goods with Country-of-Origin Nepal shall be made in Nepalese Currency through L/C as under: 1. 70% payment on PAC for Part-A and 90% payment on AC for Part-B (Liquidated damages, short fall of goods and any other charges payable to the Nepal Telecom shall be deducted at the time of the payment.) 2. 20% Payment on FAC for Part-A 3. 10% Payment on WCC for Part-A & Part-B The Supplier may authorize any other service provider (Manufacturer/ Subsidiary/ Local Partner/ Consortium Member/Local Agent) to receive the payment. However, other service provider (Manufacturer/ Subsidiary/ Local Partner/ Consortium Member/Local Agent) shall submit VAT registration Certificate from the Government of Nepal. ***All the payment under this contract shall be made only after deduction of withholding tax amount (TDS- Tax deduction at Source) as per the income tax law of Nepal.***
GCC 15.1	**<u>L/C Amendment and Effective Date</u>** In case the L/C has to be amended due to reasons attributable to the Supplier, the effective date of L/C will be the date on which L/C was originally established.

	If the L/C has to be amended due to reasons attributable to Nepal Telecom, the effective date of L/C will be the date on which L/C is amended. All the charges for L/C payable outside Nepal shall be borne by the Supplier. In case L/C amendment is requested by the Supplier for the reasons attributable to the Supplier, all bank charges for such amendment (reconfirmation charge, negotiation charge etc.) inside and outside Nepal shall be borne by the Supplier.
GCC 15.3	The proportion of payments retained is: ***"Not applicable"***
GCC 15.5	**The currencies for payments shall be** NPR/USD/EURO
GCC 15.6	The interest rate that shall be applied for payment delay is: ***"Not applicable".***
GCC 17.1	The Supplier shall provide a Performance Security as follows: I. If bid price of the bidder selected for acceptance is up to 15 (fifteen) percent less than the approved cost estimate, the performance security amount shall be 10 (Ten) percent of the bid price. II. For the bid price of the bidder selected for acceptance is more than 15 (fifteen) percent below of the cost estimate, the performance security amount shall be determined as follows: **Performance Security Amount = [(0.85 x Cost Estimate –Bid Price) x 0.5] + 10% of Bid Price.** The Bid Price and Cost Estimate shall be exclusive of Value Added Tax. The Performance Security shall be valid for the period of at least of 1 (one) month more than the warranty period as mentioned in Section GCC 27. The performance security shall be forfeited in case the Supplier fails to complete the contractual obligation and rectify the defects within warranty period.
GCC 17.3	**The types of acceptable Performance Securities are :** A bank guarantee issued by Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law located in Nepal or commercial bank located abroad, acceptable to the Purchaser, in the format included in Section VIII, Contract Forms. Performance Security issued by foreign Bank must be counter – guaranteed by Commercial Bank or Financial Institution eligible to issue Bank Guarantee as per prevailing Law in Nepal.
GCC 22.2	The packing, marking, and documentation within and outside the packages shall be: Name: Nepal Telecom, Central Procurement Department, Office of CTO, Central Office Address: Bhadrakali, Kathmandu, Nepal Tel. No. : +977 1 4210309 Email: procurement@ntc.net.np Note: Details of The packing, marking information is specified in technical specification

GCC 23.1	The insurance coverage shall be as under: a. The goods supplied under the Contract shall be fully insured in a currency of Contract against any loss or damage incidental to manufacture or acquisition, transportation, storage and delivery in the manner specified in GCC 23.1 (d) below. b. The Supplier shall arrange for Insurance, naming the Purchaser as beneficiary. The insurance policy shall be issued by internationally recognized company or any insurance company incorporated in Nepal. c. The name of the insurance company and claim process shall be specified during contract Negotiation. d. The insurance shall be in an amount equal to 110 % of the CIP value of the goods from "warehouse to warehouse" on "all risks" basis (as per Institute Cargo Clauses – A) including risks of theft, pilferage, non-delivery (TPND), strike, riots, civil commotion (SRCC) and war clauses. All the items shall be fully insured by the supplier up to the final destinations. e. The insurance policy shall remain valid till ninety (90) days after the delivery of all the goods at the final destinations. f. In the event of damage/los of any item/part, the supplier shall provide required document to Nepal Telecom necessary for insurance claim. In the event of damage/loss of any item/part, the supplier shall replace damage/lost item/part without any cost to NT at first and after complete verification and testing of replaced goods, NT shall reimburse the amount received from insurance company to the supplier.
GCC 25.2	Tests and Inspections specified in Section V, Schedule of Supply, shall be carried out. 1. **<u>Factory Inspection:</u>** The inspection and testing of the goods shall be performed as per Section V "Technical Specification". The test procedure for testing the equipment shall be provided to Nepal Telecom for approval, ***one month prior*** to factory inspection after the signing of the Contract. Nepal Telecom if deemed necessary may revise the Test Procedure in accordance with technical specification of Contract document. Nepal Telecom shall approve the test procedure prior to start of Factory Inspection. Factory Inspection test is defined in Annex – I.

GCC 25.2	The bidder shall request for the nomination of factory inspectors along with the starting date of the inspection and the venue for the inspection at least **thirty (30) days** prior to the shipment. Nepal Telecom shall nominate the factory inspectors and inform the Supplier ***within 7 days*** from the date of receipt of request for the Supplier. Nepal Telecom shall depute two (2) inspectors (technical personnel) for the in-plant acceptance test (factory inspection) of the goods for a period of five (5) working days (excluding traveling time) on the Supplier's invitation. Nepal Telecom Inspectors have the right to inspect the production line and perform functional test to confirm the accuracy of the manufactured goods to meet Nepal Telecom's Technical Specification under this contract. The manufacturer shall provide all necessary setup and tools required to perform such functional test. The offered goods to Nepal Telecom shall be in no way limited or waived by reason of the offered goods having previously been inspected, tender passed by Nepal Telecom or its representatives prior to the goods shipped from the country of origin. The Supplier shall help to test the goods in close coordination with the deputed inspectors without any cost to the Nepal Telecom. Any non-compliance found during the testing shall be corrected by the Supplier before the shipment. The bidder shall quote the cost of In-Plant Test (Factory Inspection). The cost of In-Plant Test (Factory Inspection) shall include accommodation, local transport, medical insurance and any other applicable charges in the manufacturer country for the Nepal Telecom's Inspectors.
GCC 25.2	The round-trip air fare from Nepal to manufacturer's site and per diem allowance for the Nepal Telecom's inspectors shall be provided by the Nepal Telecom. After the completion of Factory Inspection, the inspectors shall submit the original/scan copy of the Factory Inspection Report ***within 3 days*** from the date of completion of Factory Inspection in format as specified in Section V: Sample Forms. Based on the Factory Inspection Report submitted by inspectors, the concerned Directorate/Department shall issue Factory Inspection Certificate ***within 3 days*** from the date of receipt of Factory Inspection report in format as specified in Section VIII: Sample Forms.

GCC 25.2

2. <u>Pre-Shipment Inspection and Pre-Shipment Technical Verification</u>:

The Supplier shall arrange for Pre-Shipment Inspection by the internationally recognized surveyor, certifying/ confirming the goods, their quantity and weight, prior to the packaging and loading in the container in case of containerized cargo or at the port of loading in case of break bulk cargo as per the shipping document (or commercial invoice) in accordance to contract document.

The Supplier shall also arrange for the Pre-Shipment technical verification of the goods to be shipped by the internationally recognized surveyor prior to shipment of the goods to confirm the goods to be shipped meet all the technical requirement of the Contract. The Supplier shall provide the certificate/ confirmation issued by the surveyor along with the shipping document as mentioned in Clause No. GCC 11.1 of this section.

The bidder shall include the cost of Pre-Shipment inspection and pre-shipment technical verification in the cost of goods.

The name and other details of the recognized international surveyor shall be submitted along with the submission of Proforma Invoice.

GCC 26.1

Liquidated Damages

If the Supplier fails to complete the delivery of respective lot within the time period specified in the **Table-1** given below, Nepal Telecom shall, without prejudice to its other remedies under the Contract, deduct from the total price of the respective lot (as per **Table-1**) payable to the Supplier, as liquidated damages, a sum equivalent to 0.5% percent of the price of the goods and inland transportation, which could not be delivered/ commissioned (as per the **Table-1**) for each week of delay until actual completion or performance up to a maximum deduction of 10% of the Total Contract price.

Table-I

S.N.	Item	Delivery Period (Please refer to delivery schedule in Section V: Schedule of Supply)	Deduction to be made as liquidated damages for each week of delay
1	Installation, Configuration, Integration, Testing and Commissioning of Optical Line Terminal (OLT) and its Accessories for Part A Sites	Within 150 days from the date of signing of Contract.	0.5% of the total Price of delayed goods under Part-A of Lot-I and related Delivery, Installation, Testing and Commissioning service including inland of Part-A of Lot-I. (shall be applicable for both USD &NPR Portion)
2	Supply and Delivery of Optical Line Terminal (OLT) and its Accessories for Part B	120 Days from Signing of Contract (Lot I) or 120 days from the issuance of Purchase Order (Lot-II)	0.5% of the total Price of delayed goods under the respective Lot.

GCC 26.1	***Note-1***: Delays caused due to reasons not attributable to the Supplier shall be excluded from the calculation of LQD. The delays due to reasons attributable to the supplier shall only be considered for calculation of liquidated damages. In case of occurrence of delays not attributable to Supplier, the supplier shall make a request for time extension prior to the expiry of the delivery, installation and commissioning period as mentioned in the Section V of Schedule of Supply. ***Note-2***: The calculation of LQD shall be done in weekly basis and for this purpose one week shall constitute seven days or less (i.e. even a delay of one day will be considered as a delay by one week).
GCC 26.1	The maximum amount of liquidated damages shall be: ***ten (10) percent of the Contract Price.*** The contract shall be terminated, if liquidated damages exceed 10 percent of the Contract Price and blacklisting process shall be initiated for the Supplier's failure to complete the contractual obligations.
GCC 27.3	The period of validity of the Warranty shall be for a period of one (1) year from the date of issuance of Final Acceptance Certificate (FAC) for Lot I and the period of validity of the Warranty shall be for a period of one (1) year from the date of issuance of Acceptance Certificate(AC) for Lot II. For the purposes of the Warranty, the place of final destination shall be as mentioned in section V: Schedule of Requirements.
GCC 27.5 & 27.6	The Supplier shall correct any defects covered by the Warranty within 60 days of being notified by the Purchaser of the occurrence of such defects. If the supplier fails to fulfill this defective liability, the clause no. GCC 26.1 shall applicable.

Section VIII: Contract Form

Letter of Intent (LOI)

[on letterhead paper of the Purchaser]

. . . . . .*[insert **date]**.*

To: . . . . . ***[insert name and address of the Contractor]***

Subject: ***Issuance of letter of intent to award the contract.***

This is to notify you that, it is our intention to award the contract ……. [insert ***date]*** for execution of the . . . . . *[Insert.name **of the contract and identification number] t**o* you as your bid price . . . . . *[insert currency and .**amount in figures and words].*** as corrected and modified in accordance with the Instructions to Bidders is hereby selected as substantially responsive lowest evaluated bid.

Authorized Signature: .....

Name: .....

Title: .....

CC:
[Insert name and address of all other Bidders, who submitted the bid]

Letter of Acceptance (LOA)

[on letterhead paper of the Employer]

Date. . . . . .

To: . . . . . ***name and address of the Supplier*** . . . . . .

Subject: ***Notification of Award***

This is to notify that your Bid dated . . . .[insert ***date]*** for execution of the . . . . . .*[insert* .***name of the contract and identification number]*** for the Contract price of ……..***[insert*** currency and ***amount in figures and words]***, as corrected in accordance with the Instructions to Bidders is hereby accepted in accordance with the Instruction to Bidders.

You are hereby instructed to contract this office to sign the formal contract agreement within 15 days. As per the Conditions of Contract, you are also required to submit Performance Security, as specified in SCC, consisting of a Bank Guarantee in the format included in Section VIII (Contract Forms) of the Bidding Document.

The Purchaser shall forfeit the bid security, in case you fail to furnish the Performance Security and to sign the contract within specified period.

Authorized Signature: ……

Name and Title of Signatory:

Contract Agreement

[The successful Bidder shall fill in this form in accordance with the instructions indicated]

THIS CONTRACT AGREEMENT is made

the *[insert: **number**]* day of *[insert: **month**], [insert: **year**]*.

BETWEEN

(1) *[insert complete name of Purchaser]*, a *[insert description of type of legal entity, for example, an agency of the Ministry of .... of the Government of { insert name of Country of Purchaser }, or corporation incorporated under the laws of { insert name of Country of Purchaser }]* and having its principal place of business at *[insert address of Purchaser]* (hereinafter called "the Purchaser"), and

(2) *[insert name of Supplier]*, a corporation incorporated under the laws of *[insert: country of Supplier]* and having its principal place of business at *[insert: address of Supplier]* (hereinafter called "the Supplier").

WHEREAS the Purchaser invited bids for certain Goods and ancillary services, viz., *[insert brief description of Goods and Services]* and has accepted a Bid by the Supplier for the supply of those Goods and Services in the sum of *[insert Contract Price in words and figures, expressed in the Contract currency(ies)]* (hereinafter called "the Contract Price").

NOW THIS AGREEMENT WITNESSETH AS FOLLOWS:

1. In this Agreement words and expressions shall have the same meanings as are respectively assigned to them in the Conditions of Contract referred to.

2. The following documents shall constitute the Contract between the Purchaser and the Supplier, and each shall be read and construed as an integral part of the Contract:

   (a) This Contract Agreement

   (b) Special Conditions of Contract

   (c) General Conditions of Contract

   (d) Technical Requirements (including Schedule of Requirements and Technical Specifications)

   (e) The Supplier's Bid and original Price Schedules

   (f) The Purchaser's Notification of Award

   (g) *[Add here any other document(s)]*

This Contract shall prevail over all other Contract documents. In the event of any discrepancy or inconsistency within the Contract documents, then the documents shall prevail in the order listed above.

3. In consideration of the payments to be made by the Purchaser to the Supplier as indicated in this Agreement, the Supplier hereby covenants with the Purchaser to provide the Goods and Related Services and to remedy defects therein in conformity in all respects with the provisions of the Contract.

4. The Purchaser hereby covenants to pay the Supplier in consideration of the provision of the Goods and Related Services and the remedying of defects therein, the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

IN WITNESS whereof the parties hereto have caused this Agreement to be executed in accordance with the laws of **"Nepal"** on the day, month, and year indicated above.

Signed by [**insert authorized signature for the Purchaser**] (for the Purchaser)

Signed by [**insert authorized signature for the Supplier**] (for the Supplier)

Performance Security

[The bank, as requested by the successful Bidder, shall fill in this form in accordance with the instructions indicated]

[**insert complete name and number of Contract**]

To: [**insert complete name of Purchaser**]

WHEREAS [**insert complete name of Supplier**] (hereinafter "the Supplier") has received the notification of award for the execution of **[insert identification number and name of contract]** (hereinafter "the Contract").] (hereinafter "the Contract").

AND WHEREAS it has been stipulated by you in the aforementioned notification of award that the Supplier shall furnish you with a security [**insert type of security**] issued by a reputable guarantor for the sum specified therein as security for compliance with the Supplier's performance obligations in accordance with the Contract.

AND WHEREAS the undersigned [**insert complete name of Guarantor**], legally domiciled in [**insert complete address of Guarantor**], (hereinafter the "Guarantor"), have agreed to give the Supplier a security:

THEREFORE WE hereby affirm that we are Guarantors and responsible to you, on behalf of the Supplier, up to a total of [**insert currency or currencies and amount of guarantee in words and figures**] and we undertake to pay you, upon your first written demand declaring the Supplier to be in default under the Contract, without cavil or argument, any sum or sums within the limits of [**insert currency and amount of guarantee in words and figures**] as aforesaid, without your needing to prove or to show grounds or reasons for your demand or the sum specified therein.

This security is valid until the [**insert day, month, and year**].

Name: [**insert complete name of person signing the Security**]

In the capacity of: [**insert legal capacity of person signing the Security**]

Signed: [**insert signature of person whose name and capacity are shown above**]

Duly authorized to sign the security for and on behalf of: **[insert seal and complete name of Guarantor]**

Date: [**insert date of signing**]

Advance Payment Security

[The bank, as requested by the successful Bidder, shall fill in this form in accordance with the instructions indicated.]

[**insert complete name and number of Contract**]

To: [**insert complete name of Purchaser**]

In accordance with the payment provision included in the Contract, in relation to advance payments, [**insert complete name of Supplier**] (hereinafter called "the Supplier") shall deposit with the Purchaser a security consisting of [**indicate type of security**], to guarantee its proper and faithful performance of the obligations imposed by said Clause of the Contract, in the amount of [**insert currency and amount of guarantee in words and figures**].

We, the undersigned [**insert complete name of Guarantor**], legally domiciled in [**insert full address of Guarantor**] (hereinafter "the Guarantor"), as instructed by the Supplier, agree unconditionally and irrevocably to guarantee as primary obligator and not as surety merely, the payment to the Purchaser on its first demand without whatsoever right of objection on our part and without its first claim to the Supplier, in the amount not exceeding [**insert currency and amount of guarantee in words and figures**].

This security shall remain valid and in full effect from the date of the advance payment being received by the Supplier under the Contract until **(insert day, month**, **year). [Contract completion date may be a basis for this date**]

Name: [**insert complete name of person signing the Security**]

In the capacity of: [**insert legal capacity of person signing the Security**]

Signed: [**insert signature of person whose name and capacity are shown above**]

Duly authorized to sign the security for and on behalf of: **[insert seal and complete name of Guarantor]**

Date: [**insert date of signing**]

Date:

Nepal Telecom

Factory Inspection Report

This is in reference to Contract No. … ***(Specify No. and name of Contract)*** dated (***Specify Date***) and LC No: … dated … issued by …, Nepal (specify the L/C No., date of issue and issuing bank) under the Contract No. ***(Specify Contract No.)***.

We would like to inform you that the Inspection & tests of the goods (please mention the name of items) under the above mentioned contract were carried out successfully in accordance with approved Acceptance Test Procedure. All the results were found in conformity with the Technical requirements of the Contract. Therefore, goods under the above mentioned Contract are hereby ready for dispatch.

Inspector from Nepal Doorsanchar Company Limited (Nepal Telecom)

Mr. … ,
Designation:
Nepal Telecom

Mr. … ,
Designation:
Nepal Telecom
Inspection done at manufacturing site:
Name of Supplier:
Address:
Date : From DD/MM/YY to DD/MM/YY
Representatives from Supplier

Mr.
Designation:

Factory Inspection Certificate

Date: …

Ref. No.: CTO|(***Contract No.)***|(**Fiscal year)**
Cha. Na.:
Name of Supplier:
Address of the Supplier:
Tel:
Fax:

Subject: <u>Factory Inspection Certificate</u>

This is in reference to Contract No. … ***(Specify No. and name of Contract)*** dated (***Specify Date***) and LC No: … dated … issued by …, Nepal (specify the L/C No., date of issue and issuing bank) under the Contract No. ***(Specify Contract No.)***.

This is to confirm that the goods (please mention the name of items, if specific items to be tested mentioned in the Contract) under the above mentioned Contract were inspected and tested successfully at manufacturer premises by Inspectors of Nepal Telecom in accordance with the approved test procedure. All the test results were found in conformity with the Technical requirements of the Contract. Therefore, goods under the above mentioned Contract are hereby cleared for dispatch.

Thanking you.

Sincerely yours.

_____
Post: …….
WCSD, Nepal Telecom

License Document Form (If applicable)

Nepal Telecom
Nepal Doorsanchar Company Limited
Wireline and Customer Services Directorate
Chhauni, Kathmandu

License for {Write name of the software product}

1. In consideration of the *[insert .**name of the contract and identification number]**,,* {Name and address of the software product Manufacturer} grants to Nepal Telecom a fully paid-up perpetual irrevocable non-exclusive and non-transferable Corporate license on {name of the software product} with effect from the delivery date throughout the territory of Nepal to access and use the Products, including all inventions, designs, customizations and marks embodied therein, supplied under the *[insert .**name of the contract and identification number]***, (hereinafter called the Licensed Products), which software may be:
   (a) used or copied for use on or with the Platforms for which they were acquired;
   (b) reproduced for safekeeping or backup purposes;
   (c) used with the External Programs by Nepal Telecom;
   (d) disclosed to and reproduced for use by the support service supplier or their subcontractors;
   (e) used or copied for use on or transferred to replacement computers;
   (f) subject to audit by the supplier to verify compliance with the license agreement;
   (g) copied for use in quality assurance of the licensed Programs.

2. Nepal Telecom shall use the Licensed Products in its own business only as Telecommunication Service Provider in Nepal.

3. {Name of the software product Manufacturer} warrants that:
   a) It has full power and authority to grant the corporate license to use the Programs and the information contained in the Manuals and associated documentation;
   b) The Programs will be fit for their purpose and will operate in accordance with the specifications and the manuals and related documents agreed between (a) Nepal Telecom and (b) {Name of the software product Manufacturer} and that the Program will be free from Material Defects;
   c) The Program will operate on the Platforms
   d) {Name of the software product Manufacturer} will provide correction of defects during entire operational life time of the offered equipment under the arrangements of *[insert .**name of the contract and identification number]***.

5. {*Name of the software product Manufacturer*} warrants that Nepal Telecom's use of the Licensed Products will not constitute an infringement of a patent, design right, copyright or any other proprietary rights of any person. {*Name of the software product Manufacturer*} indemnifies

Nepal Telecom and will save and hold Nepal Telecom harmless from and against all loss, damage, costs and expenses (including legal expenses) and liabilities of every kind whatsoever arising out of or in connection with any such claims, suit or proceedings.

5. ***This License shall be construed in accordance with and governed by the law of Nepal. Each party irrevocably agrees to submit to the exclusive jurisdiction of the Courts of Nepal is respect of any dispute, suit, action or proceedings which may arise out of or in connection with this License.***
Signed by_____
For and on behalf of {Write name of the software product Manufacturer}
Name:
Title: ***Stamp***

End of Section VIII: Contract Forms

SECTION-VI

Bill of Quantities

Notes for Unit Rate Contracts :
Objectives
The objectives of the Bill of Quantities are
(a) to provide sufficient information on the quantities of Works to be performed to enable Bids to be prepared efficiently and accurately; and
(b) when a Contract has been entered into, to provide a priced Bill of Quantities for use in the periodic valuation of Works executed.

In order to attain these objectives, Works should be itemized in the Bill of Quantities in sufficient detail to distinguish between the different classes of Works, or between Works of the same nature carried out in different locations or in other circumstances which may give rise to different considerations of cost. Consistent with these requirements, the layout and content of the Bill of Quantities should be as simple and brief as possible.
Content
The Bill of Quantities should be divided generally into the following sections:
(a) Preamble;
(b) Work Items (grouped into parts);
(c) Day works Schedule;
d) Provisional Sums; and
(d) Summary.

Preamble
The Preamble should indicate the inclusiveness of the unit prices, and should state the methods of measurement which have been adopted in the preparation of the Bill of Quantities and which are to be used for the measurement of any part of the works.

Work Items
The items in the Bill of Quantities should be grouped into sections to distinguish between those parts of the Works which by nature, location, access, timing, or any other special characteristics may give rise to different methods of construction, or phasing of the Works, or considerations of cost. General items common to all parts of the works may be grouped as a separate section in the Bill of Quantities.
Day work Schedule
A Day work Schedule should be included only if the probability of unforeseen work, outside the items included in the Bill of Quantities, is high. To facilitate checking by the Employer of the realism of rates quoted by the Bidders, the Day work Schedule should normally comprise the following:
(a) A list of the various classes of labor, materials, and Constructional Plant for which basic day work rates or prices are to be inserted by the Bidder, together with a statement of the conditions under which the Contractor will be paid for work executed on a day work basis.
(b) Nominal quantities for each item of Day work, to be priced by each Bidder at Day work rates as bid. The rate to be entered by the Bidder against each basic Day work item should include the Contractor's profit, overheads, supervision, and other charges.
Provisional Sums
A general provision for physical contingencies (quantity overruns) may be made by including a provisional sum in the Summary Bill of Quantities. Similarly, a contingency allowance for possible price increases should be provided as a provisional sum in the Summary Bill of Quantities. The inclusion of such provisional sums often facilitates budgetary approval by avoiding the need to request periodic supplementary approvals as the future need arises. Where such provisional sums or contingency allowances are used, the Contract Data should state the manner in which they will be used, and under whose authority (usually the Project Manager's).

Summary
The Summary should contain a tabulation of the separate parts of the Bill of Quantities carried forward, with provisional sums for Day work, for physical (quantity) contingencies, and for price contingencies (upward price adjustment) where applicable.

These Notes for Preparing Specifications are intended only as information for the Employer or the person drafting the Bidding documents. They should not be included in the final documents.

Bill of Quantities

Total of Procument Items	
Total Item Price	
VAT	
Grand Total	